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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S MEMORANDUM OF
POINTS AND AUTHORITIES IN
OPPOSITION TO DEFENDANTS'
DEMURRER**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

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EXHIBIT APPENDIX NAVIGATION

Pin cites below use **reporter, hearing, or clerk pagination as printed** on the lodged PDFs. The **SAC Exhibit Appendix** is the merged file SAC-06-EXHIBIT-APPENDIX.pdf (index page is PDF p. 1). The **Opposition Exhibit Appendix** is OPPOSITIONS-EXHIBIT-APPENDIX.pdf (Exhibits 1–8 and declaration support as Exhibits 9–13).

SAC exhibits (A–S) — first PDF page of each exhibit in SAC Exhibit Appendix

	SAC Ex.	Description	First PDF p.
A		Substitution of Attorney (CT)	2
B		MIL Nos. 6 & 17 (CT)	5
C		Feb. 18, 2025 hearing (p. 141 excerpt)	11
D		RT 7, p. 213 (Dolan admission)	14
E		RT 8, p. 108 (authentication)	17
F		CSAA denial letter	20
G		SFPD report	23
H		Compex subpoena	29
I		Abdelhalim deposition	34
J		Defensive pleading	41
K		Jan. 27, 2025 hearing (excerpts)	44
L		Jan. 28, 2025 hearing (p. 90)	100
M		Feb. 18, 2025 hearing (excerpts)	103
N		Feb. 28, 2025 hearing (pp. 291–294)	148
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P		RT 8 excerpts	164
Q		RT 10 excerpts	179
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S		Feb. 3, 2025 hearing (excerpts)	189

Opposition exhibits (1–13) — first PDF page in Opposition Exhibit Appendix

	Opp. Ex.	Description	First PDF p.
1		911 audio (native / slip)	2
2		BWC footage (native / slip)	4
3		CAD logs (native / slip)	6
4		SFPD report	8
5		Compex subpoena	14
6		Substitution of Attorney (CT)	19
7		Minute orders	22
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Common transcript pins → SAC appendix PDF page (instant action filing)

Pin (reporter / hearing pagination)	SAC Ex.	SAC Exhibit Appendix PDF p.
Jan. 27, 2025 hearing, p. 19	K	57
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Pin (reporter / hearing pagination)	SAC Ex.	SAC Exhibit Appendix PDF p.
Feb. 18, 2025 hearing, p. 141	M	106
Feb. 18, 2025 hearing, p. 181	M	146
Feb. 28, 2025 hearing, pp. 291–292	N	149–150
RT vol. 7, p. 213	O	161
RT vol. 8, p. 108	P	171
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Regenerate this block by running `inject_exhibit_appendix_navigation.py` after `extract_801_exhibits.py`.

I. INTRODUCTION

§I.A — The “Smoking-Gun” Preamble (Reliance, Nine-Point Chain, and Laws-Broken Matrix)

I. THE “SMOKING-GUN” PREAMBLE — WHAT THIS OPPOSITION IS ABOUT

This Opposition is grounded in the certified record of a fraud perpetrated upon this Court. At the heart of this case is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

I.A. THE COURT’S ARTICULATED RELIANCE

On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the defense and the subsequent rulings against Plaintiff:

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropri-

ately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven't heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong), Hr'g Tr. Feb. 28, 2025, pp. 291:26–292:7 (SAC Exh. N, SAC Exhibit Appendix pp. 149–150).

I.B. THE RULINGS PROCURED FROM THAT RELIANCE

Based on this misplaced reliance on defense counsel's representations of non-receipt, the Court issued the following structural rulings that stripped Plaintiff of his ability to present his case:

- **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- **Continuance Denied** (Feb. 18, p. 181)
- **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)
- **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)
- **Supplemental Report Excluded** (RT 7, p. 156:24–28 (SAC Exh. O, SAC Exhibit Appendix p. 155))

I.C. THE ADMISSION THAT PROVED THE MISREPRESENTATION

On the seventh day of trial, after months of categorical denials, defense counsel admitted possession:

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D. Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161).

II. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

The following points document that the denials of receipt were irreconcilable with the actual state of the defense's file and knowledge:

(a) Aug. 18, 2022 — Service of 911 audio (Dolan to defense counsel)

- **Proof artifact:** Service of 911 audio by Dolan to defense counsel

- 1 • **Pin cite / Source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140 (SAC Exh. M, SAC
2 Exhibit Appendix pp. 104–105)
- 3 • **Who had notice:** Chambers / CSK
- 4 (b) **Aug. 18, 2022 — Rosario deposition (Chambers present)**
- 5 • **Proof artifact:** Rosario deposition — Chambers present
- 6 • **Pin cite / Source:** Rosario depo tr.
- 7 • **Who had notice:** Chambers
- 8 (c) **Sept. 30, 2022 — Abdelhalim deposition (Chambers present)**
- 9 • **Proof artifact:** Abdelhalim deposition — Chambers present
- 10 • **Pin cite / Source:** Abdelhalim depo tr.
- 11 • **Who had notice:** Chambers
- 12 (d) **May 4, 2023 — CSK → PSA file transfer (Substitution of Attorney)**
- 13 • **Proof artifact:** CSK → PSA file transfer (Sub of Atty)
- 14 • **Pin cite / Source:** CT record
- 15 • **Who had notice:** CSK → PSA
- 16 (e) **Feb. 1, 2024 — PSA subpoena for identical materials**
- 17 • **Proof artifact:** PSA subpoena for identical materials
- 18 • **Pin cite / Source:** Order CA1147102-021
- 19 • **Who had notice:** PSA
- 20 (f) **Feb. 26, 2024 — PSA receives production from SFPD**
- 21 • **Proof artifact:** PSA receives production from SFPD
- 22 • **Pin cite / Source:** Report 210079556
- 23 • **Who had notice:** PSA
- 24 (g) **Sept. 9, 2024 — FROG/SROG (CAD log identification)**
- 25 • **Proof artifact:** Plaintiff’s FROG/SROG identifying CAD log
- 26 • **Pin cite / Source:** FROG/SROG records
- 27 • **Who had notice:** PSA
- 28 (h) **Feb. 18, 2025 — Jessup (“since 2021”)**

- **Proof artifact:** Jessup testifies “since 2021”
 - **Pin cite / Source:** Hr’g Tr. Feb. 18, 2025, p. 139:11 (SAC Exh. M, SAC Exhibit Appendix p. 106)
 - **Who had notice:** PSA
- (i) **Apr. 16, 2025 — Admission of receipt**
- **Proof artifact:** **ADMISSION OF RECEIPT**
 - **Pin cite / Source:** RT 7, 213:13-15 (SAC Exh. O, SAC Exhibit Appendix p. 161)
 - **Who had notice:** PSA
-

III. THE LAWS-BROKEN MATRIX

(a) **Bus. & Prof. Code § 6068(d)**

- **Provision:** Duty not to mislead judge
- **Defense conduct:** Jan 27, Feb 18 denials re receipt

(b) **Bus. & Prof. Code § 6128(a)**

- **Provision:** Attorney deceit / collusion
- **Defense conduct:** Intentional deception re: file transfer and receipt

(c) **Cal. Rule of Prof. Conduct 3.3(a)**

- **Provision:** Candor to tribunal
- **Defense conduct:** “We never received these CDs, certainly”

(d) **Cal. Rule of Prof. Conduct 8.4(c)**

- **Provision:** Dishonesty / Misrepresentation
- **Defense conduct:** Sustained pattern across four hearings

(e) **CCP § 128.5**

- **Provision:** Bad-faith actions
- **Defense conduct:** Procurement of exclusion through false statements

(f) **Civ. Code § 1572(3)**

- **Provision:** Actual fraud (suppression)
- **Defense conduct:** Concealment of receipt for 893 days

1 (g) **Civ. Code § 1573**

- 2 • **Provision:** Constructive fraud
3 • **Defense conduct:** Breach of duty of candor; scienter-light civil analog to officer-of-court
4 obligations

5 **Constructive fraud as the civil analog to the Court’s officer-of-court reliance.** The February
6 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7 (SAC Exh. N, SAC Exhibit Appendix pp. 149–
7 150)) is not rhetorical window dressing; it is evidence that the tribunal extended **confidential**
8 **institutional reliance** to counsel’s representations about possession and provenance. Civ. Code
9 § 1573 supplies the civil-side vocabulary for breach of that kind of duty where the record sup-
10 ports misleading acts or nondisclosures without requiring the same scienter proof as intentional
11 misrepresentation.

12
13 **CONCLUSION FOR PREAMBLE:** The present motion (Demurrer/Anti-SLAPP) must be eval-
14 uated against this record. Defense cannot use the “fruit” of their deception to justify the dismissal
15 of a case they corrupted.

16 **§I.B — Why Demurrer Must Be Overruled**

17 Defendants challenge the sufficiency of pleading while the certified record proves the fraud. By
18 opening with this Preamble, Plaintiff forces the analysis back to the record facts: defense counsel
19 used their status as officers of the court to mislead the judge into gutting Plaintiff’s case. No
20 amount of “litigation privilege” rhetoric can sanitize the procurement of structural rulings through
21 known false representations of fact. The Demurrer must be overruled.

22 **§I.F — Posture Note: The Demurrer Targets a Pleading Plaintiff Has Moved to Supersede**

23 Concurrently calendared for the same May 12, 2026 hearing is Plaintiff’s Motion for Leave to File
24 a Second Amended Complaint (SAC). (See SAC-01 Notice of Motion; SAC-02 Memorandum ISO
25 Leave.) The SAC is already drafted, verified, and tendered as SAC-06. If the Court grants leave,
26 the FAC is superseded and the Demurrer is moot as to the superseded pleading. (Patrick v. Alacer
27 Corp. (2008) 167 Cal.App.4th 995, 1015; CCP §§ 472, 576.) If the Court reaches the Demurrer,
28 the same SAC is the specific, tendered cure to any deficiency the Court identifies, satisfying the

1 reasonable-possibility standard. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Coffman v. Produce
2 Terminal Cold Storage Co. (2009) 176 Cal.App.4th 1135.) Plaintiff does not ask the Court to
3 ignore the Demurrer; Plaintiff asks the Court to evaluate it against the tendered, cognizable SAC
4 rather than against a hypothetical future amendment.

6 **II. STATEMENT OF FACTS**

7 The First Amended Complaint (“FAC”) is an independent equitable action to set aside the under-
8 lying judgment where that judgment was procured or affected by extrinsic fraud and/or extrinsic
9 mistake operating outside the courtroom in a manner that deprived Plaintiff of a fair adversary
10 hearing.

11 The FAC alleges a two-phase pattern:

12 **Phase One (Out-of-Court):** Communications that led Plaintiff to believe authentication of 911
13 audio and CAD records was uncontested, resolved, or not urgent.

14 **Phase Two (Court-Facing):** A shift to representations about non-receipt, unknown provenance,
15 or exclusion after windows to subpoena, authenticate, or sequence evidence had narrowed.

16 Critically, Defendants themselves acknowledge this factual architecture in their own Demurrer
17 MPA:

18 “On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense
19 file to PSA pursuant to the Substitution of Attorney . . . **without ensuring proper doc-
20 umentation and conveyance of the production history to successor counsel.**” (De-
21 murrer MPA, p.6, ll.15-18)

22 By conceding the factual architecture while arguing only for immunity, Defendants isolate their
23 entire defense onto legal arguments that fail once properly analyzed.

III. STANDARD OF REVIEW: DEFENDANTS IMPORT MERITS STANDARDS INTO DEMURRER ANALYSIS

A. The Demurrer Standard

Defendants correctly state the applicable standard:¹

“When considering a demurrer, a court must accept as true all material facts pled in the complaint and those arising by reasonable implication.” (ABF Capital Corp. v. Berglass (2005) 130 Cal.App.4th 825, 833; Demurrer MPA, p.8, ll.1-3)

“However, while all material facts pled must be treated as true, contentions, deductions, or conclusions of fact or law are not.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591; Demurrer MPA, p.8, ll.3-4)

B. Defendants Immediately Violate the Standard They Recite

Immediately after stating the correct standard, Defendants systematically violate it by inserting merits-based, conclusion-first assertions. These assertions ask the Court to make factual and merits determinations that belong at summary judgment or trial, not at the pleading stage.

Defendants’ Violation 1: “The entire premise of Plaintiff’s current lawsuit presents the erroneous and speculative theory that the entire defense team lied to this Court. . .” (Demurrer MPA, p.1, ll.19-21)

Why This Violates Serrano: The Court cannot determine at the pleading stage whether Plaintiff’s theory is “erroneous and speculative.” Whether the defense team made false representations is a fact question. On demurrer, the Court must accept Plaintiff’s well-pleaded allegations of misrepresentation as true.

Defendants’ Violation 2: “Here, there was no fraud (extrinsic or otherwise). . .” (Demurrer MPA, p.11, ll.15-16)

Why This Violates Serrano: Whether fraud occurred is the ultimate merits question. Defendants are asking the Court to resolve the case at the pleading stage by accepting Defendants’ factual

¹Defendants’ demurrer characterizes Plaintiff’s trial-record objections as “too little, too late.” The transcript establishes the opposite: Plaintiff preserved the suppression theme on **four separate pre-trial dates** (Jan. 27, Jan. 28, Feb. 3, Feb. 18, 2025), and each procedural vehicle was denied. The chronology is catalogued at **Judicial Admission Matrix rows 1–5** (see Judicial Admission Matrix, lodged with Plaintiff’s opposition materials as **Bench Binder App. 3**) and supported by the hearing transcripts in Plaintiff’s RFJN.

1 conclusion over Plaintiff's factual allegations.

2 **Defendants' Violation 3:** "This is not a cognizable claim." (Anti-SLAPP MPA, p.4, ll.17-18,
3 incorporated by reference)

4 **Why This Violates Serrano:** Whether a claim is "cognizable" requires analysis of the elements
5 pleaded against the applicable legal standard, accepting facts as true. Defendants' conclusory
6 assertion is not legal argument.

7 **C. The Court Should Strike Defendants' Merits Arguments**

8 Defendants import Anti-SLAPP step-two probability rhetoric, privilege tropes, and MSJ eviden-
9 tiary standards into their demurrer analysis. This "Standard Bleed" is impermissible. A demurrer
10 strictly tests the "four corners" of the complaint under Code of Civil Procedure sections 430.10
11 and 430.50.

12 **Attached hereto as Appendix A** is an inventory of conclusory assertions in Defendants' Demurrer
13 that violate Serrano. The Court should disregard each one.

15 **IV. THE JURISDICTIONAL MASQUERADE: AN INDEPENDENT EQ- 16 UITABLE ACTION IS NOT AN APPEAL**

17 **A. Defendants' Argument**

18 Defendants argue:

19 "This Court does not have jurisdiction to hear an appeal of this Court's own prior entry
20 of judgment. Plaintiff's entire FAC in reality is an unlawful and improper appeal at the
21 Superior Court level, masquerading as a new lawsuit." (Demurrer MPA, p.9, ll.6-11)

22 Defendants cite Code of Civil Procedure section 904.1(a) and Rochin v. Pat Johnson Manufactur-
23 ing Co. (1998) 67 Cal.App.4th 1228, 1237.

24 **B. Defendants Commit a Category Error**

25 Defendants conflate the rules governing a direct appeal of a negligence verdict with the completely
26 separate, historically recognized jurisdiction of a trial court to hear an independent equitable action
27 for extrinsic fraud.

28 **First:** Section 904.1 and Rochin govern the mechanics of direct appeal and post-judgment trial

1 court power. They do not erase the centuries-old power of a court of equity to vacate a judgment
2 procured by fraud on the tribunal.

3 **Second:** Plaintiff has not filed an appeal. Plaintiff has filed an independent equitable action. The
4 FAC's prayer and parties differ from the underlying negligence trial. The pendency of an appeal on
5 the underlying liability does not deprive the trial court of jurisdiction to hear a separate equitable
6 action attacking the procurement of that judgment.

7 Defendants' citation to Rochin and section 904.1 describes the route for an appeal. Plaintiff has
8 not filed an appeal. Plaintiff has filed an independent equitable action.

9 **C. Independent Equitable Action Is Not Barred By Res Judicata; Nonparty Fraud Is Extrin-**
10 **sic**

11 An independent equitable action based on extrinsic fraud is not barred by the res judicata effect
12 of the underlying judgment. (*Olivera v. Grace* (1942) 19 Cal.2d 570, 575-576 [equity will relieve
13 against a judgment procured by extrinsic fraud notwithstanding its finality].) Where the fraud
14 is committed by a nonparty or by counsel and their principal acting outside the courtroom, it is
15 extrinsic as a matter of law. (*Kougasian v. TMSL, Inc.* (2004) 118 Cal.App.4th 1028, 1034-1036
16 [fraud by nonparty attorney constitutes extrinsic fraud; independent action in equity lies].)

17
18 **IV-A. INDEPENDENT EQUITABLE ACTION RECOGNIZED IN CAL-**
19 **IFORNIA**

20 California law recognizes the independent action in equity as a distinct and continuing jurisdiction
21 of the trial court to vacate a judgment procured by extrinsic fraud. (*Olivera v. Grace*, *supra*,
22 19 Cal.2d at pp. 575-576; *Kougasian v. TMSL, Inc.*, *supra*, 118 Cal.App.4th at pp. 1034-1036.)
23 The doctrine exists precisely because direct appeal and Code of Civil Procedure section 473(b)
24 cannot reach fraud that operates outside the record. Section 904.1 does not abrogate this equitable
25 jurisdiction, and no case cited by Defendants so holds.

1 **IV-B. THIS FAC SEEKS RELIEF FROM PROCUREMENT OF JUDG-**
2 **MENT, NOT REVIEW OF TRIAL ERROR**

3 The FAC does not ask this Court to reweigh trial evidence, revisit negligence findings, or correct
4 legal rulings made during the underlying trial. It asks this Court to examine how the judgment was
5 procured — specifically, the out-of-court conduct and file-transfer omissions that deprived Plaintiff
6 of a fair adversary hearing. That inquiry is categorically different from appellate review of trial
7 error. Section 904.1 governs the former; equity governs the latter. Defendants’ Rochin-based
8 attack conflates the two.

10 **IV-C. WHAT ISSUES WERE NOT ADJUDICATED IN THE UNDERLY-**
11 **ING TRIAL**

12 The following issues — which form the gravamen of the FAC — were never adjudicated in the
13 underlying negligence trial:

- 14 • The conveyance (or non-conveyance) of production history during the May 4, 2023 file trans-
15 fer to successor counsel;
- 16 • Whether court-facing representations regarding provenance were truthful in light of Defen-
17 dants’ own internal records;
- 18 • Whether Defendants’ out-of-court positions contradicted their later tribunal-facing positions;
19 and
- 20 • Whether the foregoing deprived Plaintiff of a fair adversary hearing.

21 None of these issues was before the jury. None was decided. Collateral estoppel and res judicata
22 therefore have no purchase.

V. COLLATERAL ATTACK WITHOUT CROWLEY: DEFENDANTS SKIP THE PRIMARY RIGHTS ANALYSIS

A. Defendants' Argument

Defendants argue that Plaintiff's FAC is an impermissible "collateral attack" on a valid judgment, quoting F.E.V., Rico, Wouldridge, and Singh as if those definitions alone resolved the pleading. (Demurrer MPA, p. 12, ll. 9–18.) Defendants rely on:

- F.E.V. v. City of Anaheim (2017) 15 Cal.App.5th 462, 471
- Rico v. Nasser Bros. Realty Co. (1943) 58 Cal.App.2d 878, 882
- Wouldridge v. Burns (1968) 265 Cal.App.2d 82, 84
- Singh v. Lipworth (2014) 227 Cal.App.4th 813, 826

B. Defendants Ignore the Mandatory Crowley Analysis

Defendants quote these definitional cases without performing the mandatory primary rights analysis required by Crowley v. Katleman (1994) 8 Cal.4th 666.

Under Crowley, collateral estoppel requires analysis of: (1) the parties; (2) the issues actually litigated and decided; and (3) the primary right enforced.

The underlying trial adjudicated the primary right to be free from negligent conduct causing personal injury (the car collision).

This FAC asserts the primary right to a fair adversary hearing, free from extrinsic fraud and process corruption.

Because the primary rights and duties are fundamentally different, there is no issue-match, and collateral estoppel does not apply. The controlling framework is set by Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904, and reaffirmed in Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 798: "the primary right is simply the plaintiff's right to be free from the particular injury suffered."

C. Primary Rights Comparison

Primary Right Adjudicated		
Below	Primary Right Asserted Here	Parties-Identity Mismatch
Freedom from negligent bodily harm (personal-injury tort arising from vehicle collision)	Freedom from a judgment procured by extrinsic fraud; right to a fair adversary hearing	Underlying trial parties differ from this action; CSAA, CS&K, and Chambers are sued here in their capacities as principal/counsel whose out-of-court conduct procured the judgment — capacities not litigated below
Duty: ordinary care in operation of a motor vehicle	Duty: candor to tribunal; non-concealment of production history; agency duties of principal	The duties arise under different bodies of law (tort vs. equity/agency/officer-of- the-court duties)
Injury: physical/economic harm from collision	Injury: deprivation of fair adversary hearing and attendant procedural harm	The injury here did not exist and could not have been litigated in the underlying trial

Under Mycogen and Boeken, the “injury suffered” in this action is not the injury litigated below. Res judicata and collateral estoppel therefore do not apply.

D. Wouldridge Does Not Apply to an Independent Equitable Action for Extrinsic Fraud

Defendants invoke Wouldridge v. Burns (1968) 265 Cal.App.2d 82, 84–85 for the proposition that a judgment of a court of general jurisdiction may be attacked collaterally only if void on the face of the record. That rule governs **collateral** attacks that seek to avoid the effect of a judgment without the procedural vehicle of an independent action in equity. It does not displace California’s long-settled rule that a plaintiff may bring a **separate** equitable action to set aside a judgment procured by extrinsic fraud. (Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034–1036; Olivera v. Grace (1942) 19 Cal.2d 570, 575–576.)

1 Wouldridge did not involve extrinsic-fraud allegations, a two-phase concealment pattern, or a
2 principal-directed chain-of-custody failure on substitution of counsel. It therefore provides no
3 authority for resolving the intrinsic/extrinsic question on demurrer here. An independent action in
4 equity is a **direct** attack on the judgment’s procurement, not the collateral maneuver Wouldridge
5 addressed.

7 **VI. EXTRINSIC FRAUD: THE INTRINSIC/EXTRINSIC DISTINCTION** 8 **IS FACT-INTENSIVE**

9 **A. Defendants’ Argument**

10 Defendants also invoke United States v. Throckmorton (1878) 98 U.S. 61, 65 for a policy against
11 “repeated litigation” touching the “same subject of controversy.” (Demurrer MPA, p. 9, ll. 22–28.)
12 Defendants cite Kulchar v. Kulchar (1969) 1 Cal.3d 467 and Aldrich v. San Fernando Valley
13 Lumber Co. (1985) 170 Cal.App.3d 725 for the intrinsic/extrinsic fraud distinction, then conclude:
14 “Here, there was no fraud (extrinsic or otherwise).” (Demurrer MPA, p.11, ll.15-16)

15 **B. Defendants Cannot Resolve the Intrinsic/Extrinsic Question on Demurrer**

16 The intrinsic/extrinsic distinction is highly fact-intensive. Kulchar itself provides: extrinsic fraud
17 arises when a party is “deliberately kept in ignorance of the action or proceeding, or in some other
18 way fraudulently prevented from presenting his claim or defense.”

19 The FAC explicitly alleges: - Out-of-court deception regarding the receipt and provenance of ev-
20 idence - Court-facing misrepresentations that induced the Court to deny continuances and defer
21 admission - Structural impairment of Plaintiff’s ability to present evidence in a timely, usable
22 manner

23 The FAC does not allege that Plaintiff “failed to assemble his evidence.” It alleges Defendants
24 **fraudulently impaired** Plaintiff’s ability to present evidence. This is textbook extrinsic fraud
25 under Kulchar.

26 On demurrer, the Court must accept these well-pleaded allegations as true. Defendants’ assertion
27 that there was “no fraud” is a merits determination that violates the demurrer standard.

1 **C. The Gravamen Is Extrinsic, Not Intrinsic, Because the Deception Operated Outside the**
2 **Courtroom**

3 The extrinsic/intrinsic line is drawn by the locus and operation of the deception, not by whether
4 any witness also testified at trial. (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471-472 [extrinsic
5 fraud encompasses conduct that “prevented a real trial upon the issues involved”]; Westphal v.
6 Westphal (1942) 20 Cal.2d 393, 397 [extrinsic fraud exists where a party has been “prevented by
7 fraud or deception from presenting his claim or defense”]; In re Marriage of Stevenot (1984) 154
8 Cal.App.3d 1051 [extrinsic fraud where party lulled into inaction by out-of-court representations];
9 In re Marriage of Melton (1994) 28 Cal.App.4th 931 [same; fraud operative outside the adversary
10 process].)

11 **Disclaimer of reliance on in-court statements.** Plaintiff does not seek vacatur based on what
12 Defendants said at trial. Plaintiff seeks vacatur based on (a) out-of-court representations that lulled
13 Plaintiff into non-action and (b) the file-transfer concealment that predated any trial representation.
14 Any alignment between those out-of-court positions and later in-court statements is evidentiary
15 context, not the gravamen.

16 **Bait-and-switch prejudice.** The extrinsic character of the fraud is underscored by its timing.
17 Defendants lulled Plaintiff out of court — through representations suggesting that authentication
18 of 911 audio and CAD records was uncontested, resolved, or not urgent — until the eve of trial,
19 at which point they shifted to “unknown provenance” and non-receipt positions after the clock
20 had run on subpoenas, authentication sequencing, and evidentiary motions. That sequencing is
21 the classic “bait and switch” that equity treats as extrinsic: the deception did not merely color a
22 trial issue; it prevented Plaintiff from ever reaching the trial posture in which the issue could be
23 meaningfully litigated. (Kulchar, supra, 1 Cal.3d at pp. 471-472.)

24 **Federal intrinsic/extrinsic nomenclature.** Defendants’ demurrer papers invoke United States v.
25 Throckmorton (1878) 98 U.S. 61, 65 for a broad “repeated litigation” theme. California equity
26 does not substitute the federal Throckmorton intrinsic/extrinsic vocabulary for the fact-intensive
27 framework this Court applies under Kulchar, Westphal v. Westphal (1942) 20 Cal.2d 393, and
28 Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034–1036 (independent equitable ac-

tion for extrinsic fraud; fraud by nonparty counsel). The gravamen analysis therefore turns on California authority, not on a federal maxim detached from the FAC’s pleaded channels.

D. Baltins v. James: Diligence and Accrual Are Fact Questions, Not Demurrer Shortcuts

Defendants cite Baltins v. James (1995) 36 Cal.App.4th 1193 for principles about diligence and equitable relief. Baltins does not hold that extrinsic fraud can be negated on demurrer. It addresses whether a movant exercised due diligence after discovering facts warranting relief — a question that presupposes disputed facts and timing. (*Id.* at pp. 1206–1208.)

Here, the FAC alleges active concealment and a broken production-history chain through the May 4, 2023 substitution — facts that, if true, postpone the reasonableness of any “diligence” inquiry until discovery of the concealment. An independent equitable action for extrinsic fraud **accrues on discovery of the fraud**, not on entry of the underlying judgment. (*In re Marriage of Stevenot* (1984) 154 Cal.App.3d 1051, 1071 [fraudulent concealment and reliance bear on timeliness in the equitable setting]; Kougasian, *supra*, 118 Cal.App.4th at pp. 1034–1036.) Accepting the FAC as true, Baltins does not supply a facial bar.

VI-X. Contemporaneous Preservation Does Not Convert Extrinsic Fraud Into Intrinsic Fraud

Defendants may argue that Plaintiff’s January 27 and February 18, 2025 courtroom objections transform the extrinsic fraud into intrinsic fraud (and thus outside equitable relief). This argument fails.

The Kulchar Distinction: Under Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471–72, the distinguishing feature of extrinsic fraud is whether the defrauded party had a **fair adversary hearing**, not whether the party noticed the problem during trial. Intrinsic fraud involves issues actually litigated and decided; extrinsic fraud involves conduct that **prevents** the litigant from presenting a claim or defense.

The Kougasian Holding: Under Kougasian v. TMSL, Inc. (2006) 135 Cal.App.4th 1093, 1106, extrinsic fraud includes misconduct that **prevents the opposing party from presenting a meaningful defense**—which is precisely what the MIL-17 framing plus continuance denials accomplished.

The Preservation Paradox: Plaintiff’s January 27, 2025 “suppress” preservation (Hr’g Tr. p. 19;

SAC Exh. K, SAC Exhibit Appendix p. 57) and February 18, 2025 “concealed / going on the record” preservation (Hr’g Tr. pp. 44–45; SAC Exh. M, SAC Exhibit Appendix pp. 144–145) do not cure the extrinsic injury—they **are** the extrinsic injury, because each attempt to raise it was procedurally foreclosed:

- Jan. 27: CCP § 473 motion denied (p. 49); continuance denied (pp. 55–56).
- Feb. 18: Continuance denied; “surprise under § 473 is not a sufficient basis” (p. 181).
- Feb. 3: § 581(d) dismissal under submission (pp. 109, 116, 122–124).

The fact that Plaintiff tried four procedural vehicles (and each was denied) proves the extrinsic character of the fraud: the deception operated to **foreclose procedural remedies**, not to offer evidence the jury could weigh.

VI-A. The February 28 Burden-Shift Ruling Is Paradigmatic Extrinsic Fraud

The Court’s own articulated reliance on defense candor at the February 28, 2025 hearing — “They are an officer of the Court” (Hr’g Tr. Feb. 28, 2025, p. 292, ll. 1–7 (SAC Exh. N, SAC Exhibit Appendix p. 150)) — is precisely the reliance element that converts Navaratnasingham’s January 17 and February 18 misrepresentations from intrinsic trial tactics into extrinsic fraud: the Court did not weigh defense’s credibility against contrary record evidence; the Court relied on the institutional status of counsel.

On the same date, the burden-shift ruling — “it’s required of you to send the documents over. Otherwise, I won’t allow them in.” (Hr’g Tr. Feb. 28, 2025, p. 293, ll. 1–3 (SAC Exh. N, SAC Exhibit Appendix p. 151)) — was not an evidentiary weighing at trial; it was a procedural-rule reallocation that operated outside trial advocacy, producing the structural exclusion Kulchar/Westphal defines as extrinsic.

The Laws-Broken Matrix (Conduct Underlying the Fraud)

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6068(d)	Duty not to mislead judge	Jan 27, Feb 18, Feb 28 denials re receipt.

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6128(a)	Attorney deceit / collusion	Intentional deception re: file transfer and receipt.
Cal. Rule of Prof. Conduct 3.3(a)	Candor to tribunal	“We never received these CDs, certainly” (Jan 27).
Cal. Rule of Prof. Conduct 3.4(a)	Fairness to opposing counsel	Withholding receipt history to procure exclusion.
Civ. Code § 1572(3)	Actual fraud (suppression)	Suppression of that which ought to be disclosed.
Civ. Code § 1573	Constructive fraud	Breach of duty of candor without requiring intent to deceive (<u>Assilzadeh v. California Federal Bank</u> (2000) 82 Cal.App.4th 399, 415).

VI-B. The Four-Hearing Institutional-Reliance Chain

The record reveals a pattern of tribunal reliance on institutional representations in lieu of independent verification:

	Court’s Articulated Reliance	Defense’s Underlying Misrepresentation	Rulings Produced
Jan. 27, 2025	Implied reliance on “not produced / lacks foundation”	p. 15:10–16; p. 19:7–13; p. 34:1–10	MIL exclusion of 911 CDs + transcripts

Hearing	Court's Articulated Reliance	Defense's Underlying Misrepresentation	Rulings Produced
Feb. 18, 2025	"I see. Okay." (p. 141:15); "given their representations" (p. 145:16–19)	"news to me" (p. 141:3–14)	Continuance denied; § 473 surprise rejected
Feb. 28, 2025	"I'm not going to question a lawyer's remarks" (p. 291:26–28); "They are an officer of the Court" (p. 292:1–7)	Continued "we never got that" pattern	Burden-shift ruling (p. 293:1–3)
Apr. 16, 2025	Court's inference from defense authentication posture	Stacked denials RT 7 pp. 156, 162, 207–208 (SAC Exh. O, SAC Exhibit Appendix pp. 155, 156, 159–160)	Exclusion of supplemental police report; deferral of 911 admission

The extrinsic-fraud element of reliance is therefore not inferred; it is recorded.

VI-C. Constructive Fraud (Civ. Code § 1573) on the Proposed Second Amended Complaint

As detailed in the Cure Matrix (§ XIII-A, *infra*), the proposed SAC's Count 7 states a cognizable, scienter-light claim for constructive fraud under Civil Code section 1573 that cures any alleged defect regarding specific intent.

VI-D. Count 4 and Civil Conspiracy (Applied Equipment)

As further mapped in the Cure Matrix (§ XIII-A, *infra*), the proposed SAC's Count 4 pleads civil conspiracy exclusively as a joint-liability theory attaching to underlying torts, foreclosing Defendants' "freestanding tort" objection.

VII. CIVIL CODE SECTION 47(B) IS NOT A FACIAL DEMURRER BAR FOR NONCOMMUNICATIVE CONDUCT

A. Defendants' Argument

Defendants assert that the FAC “targets privileged conduct and communications under Civ. Code § 47(b)” and that the “entire FAC arises entirely from the privileged litigation conduct of Defendant in the course of defending the third-party Insured.” (Demurrer MPA, p. 12, ll. 7–10, 13–15.)

Defendants also argue broadly that “all the acts alleged against Defendants are squarely litigation activity” and invoke Civil Code section 47(b) as blanket immunity. (Demurrer MPA, p. 7, ll. 8–9.)

B. The Litigation Privilege Applies to Communications, Not All Conduct

Civil Code section 47(b) privileges qualifying **communications** made in judicial proceedings. It does not provide blanket immunity for all conduct during litigation.

Kimmel v. Golan (1990) 51 Cal.3d 202, as discussed in Rusheen v. Cohen (2006) 37 Cal.4th 1048, establishes the strict boundary between protected communications and unprotected non-communicative conduct.

The FAC alleges noncommunicative conduct including: - Withholding and failing to convey production history during the transfer of the file to successor counsel - Institutional oversight failures - Agency conduct by CSAA as principal

These allegations fall outside the scope of section 47(b). Furthermore, Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1242-1247 establishes that extrinsic fraud is an exception to the litigation privilege. Defendants’ briefing does not discuss this exception.

C. Rusheen Does Not Sweep in Institutional File-Transfer Failures

Defendants overread Rusheen v. Cohen (2006) 37 Cal.4th 1048. Rusheen extends section 47(b) only to noncommunicative conduct that is “**necessarily related**” to an underlying privileged communication. (Id. at p. 1058.) The “necessarily related” test is narrow; it does not convert every institutional act performed during the pendency of litigation into privileged conduct.

The FAC’s file-transfer allegations do not concern the publication of a privileged communication. They concern an internal, institutional act — the transfer of the defense file to successor counsel

1 “without ensuring proper documentation and conveyance of the production history” (Demurrer
2 MPA, p.6, ll.15-18) — that broke the chain of custody of production history itself. That act is not
3 the service of a pleading, the enforcement of a writ, or any other communicative instrument. It is an
4 internal institutional failure with downstream tribunal consequences, and Rusheen’s “necessarily
5 related” tether does not reach it.

6 The Supreme Court has separately cautioned that section 47(b) is not a roving immunity for insti-
7 tutional misconduct merely because litigation is in progress. (Jacob B. v. County of Shasta (2007)
8 40 Cal.4th 948, 960 [privilege analysis requires fidelity to the statute’s communicative core; courts
9 should not extend the privilege by analogy where the policy reasons do not support it].) Defen-
10 dants’ reading would do exactly what Jacob B. forbids.

11 **VIII. THE UNCERTAINTY DEMURRER IS DISFAVORED AND UN-** 12 **SUPPORTED**

13 **A. The Standard for Uncertainty Demurrers**

14 Defendants argue that the FAC is “unintelligible and ambiguous” and “does not explain a cog-
15 nizable basis for relief.” (Demurrer MPA, p. 11, ll. 4–8, 22–28.) Defendants cite A.J. Fistes
16 Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, which provides: “demurrers
17 for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a
18 defendant cannot reasonably respond.”

19 **B. The FAC Is Not Uncertain**

20 The FAC is structured and particularized. It identifies: - The specific actors (CSAA, Carbone Smith
21 & Koyama, Chambers) - The specific conduct (two-phase pattern of out-of-court and court-facing
22 misrepresentations) - The specific reliance (tribunal management decisions on continuances and
23 evidence admission) - The specific injury (deprivation of fair adversary hearing)

24 Defendants responded with 20 pages of briefing across two motions. They clearly understood
25 the FAC sufficiently to mount a defense. Their uncertainty demurrer is a tactical device, not a
26 legitimate procedural objection.
27
28

IX. PLEADING SUFFICIENCY: THE FAC SATISFIES SERRANO

A. The Standard

Defendants invoke Serrano v. Priest (1971) 5 Cal.3d 584 for the proposition that conclusions need not be accepted as true. (Demurrer MPA, p. 10, ll. 21–23 [reciting Serrano immediately after ABF Capital standard].)

Under Serrano v. Priest (1971) 5 Cal.3d 584, 591, the Court accepts well-pleaded facts as true and separates conclusions.

B. The FAC Pleads Facts, Not Conclusions

The FAC pleads specific facts about: - The timing and substance of out-of-court representations - The content of court-facing statements - The production history and file transfer - The tribunal’s reliance on defense representations

These are not “conclusions” under Serrano. They are factual allegations that, if true, establish extrinsic fraud.

X. LIMITATIONS AND SECTION 473: A CATEGORY ERROR

A. Defendants’ Argument

Defendants argue that Plaintiff’s “proper means” would have been a motion under Code of Civil Procedure section 473(b), which has a six-month deadline that has passed. They also suggest in a footnote that aspects of Plaintiff’s theory “may also be barred by the statute of limitations in Code Civ. Proc. sec. 473.” (Demurrer MPA, p. 14, fn. 4.)

B. Section 473 Does Not Govern Independent Equitable Actions

Defendants conflate section 473(b) relief (a motion for relief from default based on mistake, inadvertence, surprise, or excusable neglect) with an independent equitable action for extrinsic fraud.

These are different procedural vehicles with different policy anchors and different limitations periods. An independent equitable action to vacate a judgment procured by extrinsic fraud is not governed by section 473(b)’s six-month deadline.

Section 473(b) governs motions for relief from judgment in the same action. It does not govern

independent equitable actions for extrinsic fraud, which have their own limitations analysis.

C. Accrual and Timeliness

- Unlike Section 473(b), an independent equitable action for extrinsic fraud accrues upon the aggrieved party’s discovery of the fraud. Plaintiff was not aware of the defense’s internal file-transfer omissions and coordinated misrepresentations until discovery of same. Therefore, the action is timely and not barred by laches.

D. Accrual Anchored to January 17, 2025

CCP § 338(d) accrual ran from the **January 17, 2025** MIL filings—the first “contrary court-facing position” that put Plaintiff on notice of the defense’s shift from 883 days of silence to affirmative denial. The transcript record establishes Plaintiff’s diligence from that moment forward:

- **Jan. 27, 2025:** Plaintiff objected on the record, stating “suppress” (Hr’g Tr. p. 19, ll. 1–5; SAC Exh. K, SAC Exhibit Appendix p. 57) and confirming the FROG/SROG CAD references (Hr’g Tr. p. 32, ll. 1–16; SAC Exh. K, SAC Exhibit Appendix p. 70).
- **Jan. 28, 2025:** Defense § 581(d) dismissal motion opposed by the Court on the ground that dismissal would “suffer immediate reversal” (Hr’g Tr. p. 90, ll. 17–33; SAC Exh. L, SAC Exhibit Appendix p. 101).
- **Feb. 18, 2025:** Plaintiff preserved the concealment theme (Hr’g Tr. pp. 17, 23, 44–45; SAC Exh. M, SAC Exhibit Appendix pp. 117, 123, 144–145); § 473 “surprise” rejected (Hr’g Tr. p. 181, ll. 21–25; SAC Exh. M, SAC Exhibit Appendix p. 146).
- **Feb. 28, 2025:** Plaintiff opposed defense protective-order posture limiting doctor-file channel (Hr’g Tr. pp. 291–294 (SAC Exh. N, SAC Exhibit Appendix pp. 149–152)).

This four-date diligence chronology defeats any “sleeping on rights” argument and anchors accrual to the January 17, 2025 MIL filings, not to 2021 possession or 2022 production.

XI. STANDING AND MISJOINDER: AGENCY PRINCIPLES APPLY

A. Defendants’ Argument

Defendants argue that Plaintiff lacks standing to sue CSAA as a third-party insurer and that joinder of counsel is improper, citing Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268, Norton v.

1 Hines (1975) 49 Cal.App.3d 917, and Omega Video v. Superior Court (1983) 146 Cal.App.3d 470.
2 (Demurrer MPA, p. 14, ll. 17–24.)

3 **B. Shaolian Does Not Reach Principal-Directed Extrinsic Fraud**

4 Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268 addressed a generic third-party effort to sue
5 an opposing insurer for defending its insured. It does not address — and did not purport to address
6 — an independent equitable action alleging that the insurer, as institutional principal, directed and
7 ratified the extrinsic-fraud conduct that procured the judgment.

8 The FAC specifically alleges CSAA as the institutional principal under Civil Code section 2338,
9 which provides: “a principal is responsible to third persons for the negligence of his agent in the
10 transaction of the business of the agency, including wrongful acts committed by such agent in
11 and as a part of the transaction of such business.” The FAC does not allege that Plaintiff is suing
12 CSAA simply for defending its insured. It alleges that CSAA, as principal, directed and ratified
13 the specific deceptive conduct that procured the judgment.

14 **C. Omega Video Does Not Govern an Independent Action Whose Gravamen Is Extrinsic**
15 **Fraud**

16 Omega Video v. Superior Court (1983) 146 Cal.App.3d 470 arose from an adverse party’s effort
17 to hold opposing counsel liable in tort for litigation-phase conduct; the court analyzed Civil Code
18 section 47(b) on that narrow pattern. It did not involve — and did not analyze — an independent
19 equitable action pleading extrinsic fraud on the tribunal and principal ratification of a stripped file
20 transfer. Where extrinsic fraud is the gravamen, Action Apartment Ass’n v. City of Santa Monica
21 (2007) 41 Cal.4th 1232, 1242–1247 controls the overlap between section 47(b) and fraud-on-the-
22 court channels. Defendants’ briefing does not distinguish Omega Video on that axis.

23 **D. Norton v. Hines: Adverse-Party Attorney Immunity Is Narrow and Does Not Erase**
24 **Extrinsic-Fraud Equity**

25 Norton v. Hines (1975) 49 Cal.App.3d 917 reflects the familiar rule that an adverse party gener-
26 ally may not sue opposing counsel for acts in litigation, **except** in categories such as malicious
27 prosecution. The litigation privilege “shields litigants, attorneys and witnesses from liability for
28 . . . virtually all torts **except malicious prosecution.**” (Mattco Forge, Inc. v. Arthur Young

1 & Co. (1992) 5 Cal.App.4th 392, 407, quoted with approval in Kolar v. Donahue, McIntosh &
2 Hammerton (2006) 145 Cal.App.4th 1532, 1537–1540.) Norton therefore does not supply a blan-
3 ket demurrer bar to an equitable action whose theory is extrinsic fraud and institutional ratification,
4 not a generic “sue my opponent’s lawyer” tort.

5 The same Mattco / Kolar line confirms that recognized exceptions and fraud channels remain
6 available. On the proposed SAC, **constructive fraud under Civ. Code § 1573** and **Bus. &**
7 **Prof. Code § 6128(a)** fall in the same category of claims that are not erased by a Norton gloss:
8 they are specific statutory and common-law channels aimed at deceit of the tribunal and breach of
9 candor duties, not collateral complaints about zealous advocacy.

10 Pavicich v. Santucci (2000) 85 Cal.App.4th 382, 396 reinforces that immunity doctrines tied to the
11 litigation privilege are context-specific and do not automatically defeat claims that sound in fraud
12 and third-party injury outside the narrow patterns Norton addressed.

13 **E. The FAC Pleads Specific Agency Acts by CSAA, Not a Generic Third-Party Claim**

14 The FAC is not a generic “sue the insurer” pleading. It pleads specific agency acts by CSAA as
15 principal:

- 16 1. **Funding and controlling the defense** — CSAA retained, funded, and operationally con-
17 trolled the defense through CS&K and Chambers, directing litigation strategy and resource
18 allocation;
- 19 2. **Approving and directing litigation positions** — CSAA approved and directed the litigation
20 positions that became the court-facing misrepresentations regarding receipt and provenance
21 of 911 audio and CAD records; and
- 22 3. **Ratifying the file-transfer** — CSAA ratified the May 4, 2023 file transfer to successor coun-
23 sel and the attendant failure to convey production history.

24 California law has long recognized that an insurer directing the defense of its insured may be held
25 answerable for the acts of counsel it retains and controls. (Doctors’ Co. v. Superior Court (1989)
26 49 Cal.3d 39 [scope of insurer responsibility for defense counsel’s conduct turns on the insurer’s
27 actual role and direction].) That rule, applied to extrinsic-fraud allegations, forecloses Defendants’
28 generic standing argument.

1 **Agent Swap.** CSAA cannot launder extrinsic fraud by swapping counsel before trial. The May 4,
2 2023 substitution moved the file from Chambers/CS&K to successor counsel; but the out-of-court
3 representations that lulled Plaintiff, and the institutional decision not to convey production history
4 to successor counsel, had already occurred. Agency liability does not evaporate when the principal
5 rotates its agents mid-litigation; if anything, the substitution is itself a vector by which the fraud
6 was perpetuated.

7 **XII. DEFENDANTS’ RFJN OVERREACHES THE DEMURRER RECORD**

8 Defendants’ Request for Judicial Notice seeks to import merits-based documents into the demurrer
9 record. Their demurrer repeatedly incorporates RFJN exhibits as proof of “what really happened”
10 in the underlying action. (E.g., Demurrer MPA, pp. 6–8, 12–13 [citing RFJN exhibits by letter].)
11 Under Code of Civil Procedure section 430.70 and Evidence Code section 452 judicial notice on
12 demurrer is limited. The Court may take judicial notice of the existence of documents but not of
13 disputed facts within them.

14 Defendants use their RFJN as a merits proof mechanism. This exceeds the demurrer record and
15 should be disregarded.

16 **A. Piecemeal Transcript Notice Violates Sosinsky**

17 Defendants’ RFJN attaches selective transcript excerpts without the Plaintiff-preservation pages
18 of the same hearings. Plaintiff’s counter-RFJN (Part II of Plaintiff’s Declaration and Request for
19 Judicial Notice in Support of Oppositions) includes:

- 20 • Hr’g Tr. Jan. 27, 2025, pp. 17–22, 32, 34, 42, 46, 55–60 (Plaintiff’s “suppress” objection
21 and FROG/SROG pincites; SAC Exh. K, SAC Exhibit Appendix pp. 55–60, 70, 72, 80, 84,
22 93–98);
- 23 • Hr’g Tr. Feb. 3, 2025, pp. 109, 116, 122–124 (renewed § 581(d) under submission; ex parte
24 disclosure order; SAC Exh. S, SAC Exhibit Appendix pp. 192, 199, 205–207);
- 25 • Hr’g Tr. Feb. 18, 2025, pp. 17, 23, 44–47, 181 (Plaintiff’s preservation statements; “news to
26 me” vs. “since August” contradiction; SAC Exh. M, SAC Exhibit Appendix pp. 117, 123,
27 144–146).

1 Under Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1564–1565, where part of a record is intro-
2 duced, the opposing party is entitled to introduce contextually related portions. The Court must
3 take the whole record, not the defense-curated fragment.

4

5 **XIII. LEAVE TO AMEND SHOULD BE GRANTED IF ANY CAUSE OF**
6 **ACTION FAILS**

7 Under Coffman v. Produce Terminal Cold Storage Co. (2009) 176 Cal.App.4th 1135, leave to
8 amend should be granted unless amendment would be futile. Defendants have not met their burden
9 of showing futility.

10 If the Court finds any deficiency in the FAC, Plaintiff respectfully requests leave to amend.

11 **A. Specific Proffer of Additional Facts Plaintiff Would Plead**

12 Should the Court identify any pleading deficiency, Plaintiff proffers that, on leave to amend, Plain-
13 tiff would plead with greater specificity: (1) the content and source of CSAA directives to defense
14 counsel concerning authentication, provenance, and production history of 911 audio and CAD
15 records; (2) the dates, participants, and substance of the out-of-court representations on which
16 Plaintiff relied to defer subpoena, authentication, and sequencing steps; and (3) the identity of the
17 file-transfer recipients at successor counsel and the specific categories of production-history ma-
18 terials that were not conveyed in the May 4, 2023 transfer. These additional facts deepen — but
19 do not change — the gravamen already pleaded, and they establish that amendment would not be
20 futile.

21

22 **XIII-A. THE PROPOSED SAC CURES EACH DEFICIENCY DEFENDANTS ALLEGE**

23 The tendered SAC (SAC-06) is not a promise of future drafting; it is a complete, cognizable plead-
24 ing already before the Court on the concurrently calendared Motion for Leave to Amend. The
25 matrix below maps each category of defect Defendants allege to the specific SAC paragraph(s)
26 that cure it.

Demurrer Theme	Alleged Defect in		
	FAC	SAC Cure (§§)	Authority
Jurisdictional (§ 904.1 / Rochin)	“Masqueraded appeal”	SAC §§ 1–5, 114–120 (independent equitable action framing)	Kougasian; Olivera
Res judicata / collateral attack	Same primary right	SAC § 24 (primary-rights allegation)	Mycogen; Boeken
Intrinsic/extrinsic line	“No extrinsic fraud pled”	SAC §§ 29–39, 40–63, 108–109 (two-phase pattern + officer-of-court reliance + Apr. 16 admission)	Kulchar; Westphal
§ 47(b) privilege	“All conduct privileged”	SAC §§ 34–39 (noncommunicative file-transfer); 108, 137 (Action Apartment exception)	Kimmel; Action Apartment
Uncertainty	“Incomprehensible”	SAC §§ 29–63, 86–113 (date-and-actor particularity)	A.J. Fistes
Serrano sufficiency	“Conclusory”	SAC §§ 29–63 (facts); 114–165 (element mapping)	Serrano

Demurrer Theme	Alleged Defect in		Authority
	FAC	SAC Cure (§)	
§ 473 / limitations	“Six-month bar”	SAC §§ 95, 115 (equitable accrual)	Kougasian
Standing / misjoinder (CSAA)	“Third-party insurer”	SAC §§ 48–57 (agency acts by CSAA as principal)	Civ. Code § 2338; Doctors’ Co.
Scienter on fraud counts	“No specific intent pled”	SAC §§ 157–165 (Count 7 constructive fraud; scienter-light)	Civ. Code § 1573; Assilzadeh
“Conspiracy is not a tort” (anticipated)	Independent conspiracy count	SAC § 141A (joint-liability theory under Count 4)	Applied Equipment

Plaintiff does not ask the Court to resolve the Demurrer by adopting this matrix; Plaintiff asks the Court to take judicial notice of the pendency of the SAC motion and to recognize that no identified deficiency is incurable.

Plaintiff’s complete Cure Matrix mapping SAC paragraphs to each defect alleged by Defendants is filed separately as Document 17 (SAC Cure Matrix and Pendency Notice).

XIII-B. NO INTERLOCUTORY APPEAL FROM DEMURRER; ANTI-MANUFACTURED-FINALITY (MOREHART / KURWA)

1. Demurrer rulings and CCP § 904.1. An order overruling a demurrer is **not** listed in **CCP § 904.1(a)** as an immediately appealable order; the defense has **no direct appeal** from a demurrer overrule as of right. **Griset v. Fair Political Practices Comm’n** (2001) 25 Cal.4th 688, 701–702 (final judgment rule). If the Court **sustains** a demurrer **with leave to amend**, the order is **not** a final judgment; appeal follows **only** from a subsequent **judgment of dismissal** after failure to amend.

1 Morehart v. County of Santa Barbara (1994) 7 Cal.4th 725, 731–732 (one final judgment disposing
2 of all causes of action).

3 **2. No manufactured finality.** Defendants should not be permitted to **sever** causes of action or
4 seek **partial judgment** on fewer than all counts solely to create an **appealable** order. Kurwa
5 v. Kislinger (2013) 57 Cal.4th 1097, 1105–1106 (voluntary dismissal tactics and manufactured
6 finality). The proposed SAC pleads a **single primary-right nucleus** and **opposes piecemeal** dis-
7 position (SAC ¶¶ 113A–113D).

8 **3. Companion briefing.** Plaintiff incorporates **Part III** (Interlocutory appeal bar) of the **Consol-**
9 **idated Opposition Bench Brief** (Document D801-OPPOSITION-CONSOLIDATED-BENCH-
10 BRIEF), filed with the opposition package.

11 **XIV. CONCLUSION**

12 Defendants’ motions proceed as if the allegations were true and assert legal immunity; the Demur-
13 rer therefore presents only legal questions.

14 Separately, because Plaintiff has already tendered a Second Amended Complaint addressing each
15 deficiency Defendants allege (see § XIII-A, *supra*), the liberal- amendment standard requires that
16 if any theory is found insufficient as pleaded, leave be granted to proceed on the SAC rather than
17 dismissal.

18 Defendants’ Demurrer fails because:

- 19 1. It imports impermissible merits standards into demurrer analysis
- 20 2. It confuses an independent equitable action with an appeal
- 21 3. It skips mandatory primary rights analysis under Crowley
- 22 4. It asks the Court to resolve fact-intensive intrinsic/extrinsic questions on the pleadings
- 23 5. It overstates the litigation privilege beyond its communications boundary
- 24 6. It lacks any basis for uncertainty demurrer
- 25 7. It conflates section 473 with independent equitable action limitations
- 26 8. It ignores agency principles that establish standing
- 27

28 For these reasons, Plaintiff respectfully requests the Court overrule the Demurrer in its entirety.

XV. RELIEF REQUESTED

Plaintiff respectfully requests that the Court enter the following relief in a consolidated schedule:

1. **Overrule the Demurrer** to the First Amended Complaint in its entirety;
2. **Alternatively, grant leave to amend** consistent with Section XIII and XVI;
3. **Sustain Plaintiff’s objections to Defendants’ Request for Judicial Notice** as set forth in the companion Objection (see Section XII);
4. **Sustain Plaintiff’s evidentiary objections** to the supporting declarations as set forth in the companion Evidentiary Objections; and
5. **Strike conclusory paragraphs** of the supporting declarations identified in the Evidentiary Objections.

XVI. WHY LEAVE TO AMEND CURES ANY DEFICIENCY

Should the Court identify any pleading deficiency, leave to amend would cure it because Plaintiff can plead additional specific facts that deepen — but do not alter — the gravamen already pleaded. Plaintiff proffers, on leave to amend: (1) the dates and content of specific CSAA directives to defense counsel concerning authentication, provenance, and production history of 911 audio and CAD records, including the CSAA personnel issuing each directive; (2) the identity of the file-transfer recipients at successor counsel (PSA) on and after the May 4, 2023 substitution and the specific categories of production-history materials not conveyed; and (3) the dates, participants, and substance of the out-of-court representations on which Plaintiff relied to defer authentication, subpoena, and sequencing steps.

These particulars confirm that amendment would not be futile. The two-phase pattern, the institutional file-transfer failure, and the principal-directed ratification are capable of more specific pleading. Under *Coffman v. Produce Terminal Cold Storage Co.* (2009) 176 Cal.App.4th 1135 and the liberal amendment standard, the proffered facts establish a reasonable possibility of cure, and leave to amend should be granted if any cause of action is found insufficient as presently pleaded.

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

APPENDIX A: SERRANO VIOLATIONS INVENTORY

Conclusory Assertions in Defendants' Demurrer That Violate Serrano v. Priest

#	Location	Conclusory Assertion	Why It Violates Serrano
1	Demurrer MPA, p.1, ll.19-21	“erroneous and speculative” theory	Merits determination; Court must accept well-pleaded facts as true
2	Demurrer MPA, p.11, ll.15-16	“there was no fraud (extrinsic or otherwise)”	Ultimate merits conclusion; cannot be resolved on demurrer
3	Demurrer MPA, p.7, ll.8-9	“squarely litigation activity”	Characterization of facts that must be accepted as pleaded
4	Demurrer MPA, p.4, ll.22-23	“seeks to unwind a valid jury verdict”	Strawman reframe of FAC gravamen
5	Demurrer MPA, p.1, ll.17-19	“improper collateral attack on a valid jury verdict”	Legal conclusion without Crowley analysis
6	Anti-SLAPP MPA, p.4, ll.17-18	“not a cognizable claim”	Bare assertion without element-by-element analysis

#	Location	Conclusory Assertion	Why It Violates Serrano
7	Anti-SLAPP MPA, p.15, ll.10-12	“Plaintiff was not denied his day in court”	Factual determination that contradicts FAC allegations
8	Demurrer MPA, p.11, ll.25-26	“merely a case in which a party failed to assemble all his evidence”	Merits characterization of FAC that Court cannot adopt on demurrer

Each of these assertions asks the Court to accept Defendants’ factual conclusions over Plaintiff’s factual allegations. On demurrer, this is impermissible. The Court should disregard each conclusory assertion and analyze the FAC’s well-pleaded facts as true.

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Dated: April 21, 2026



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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S MEMORANDUM OF
POINTS AND AUTHORITIES IN
OPPOSITION TO SPECIAL MOTION
TO STRIKE**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

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EXHIBIT APPENDIX NAVIGATION

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SAC exhibits (A–S) — first PDF page of each exhibit in SAC Exhibit Appendix

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A		Substitution of Attorney (CT)	2
B		MIL Nos. 6 & 17 (CT)	5
C		Feb. 18, 2025 hearing (p. 141 excerpt)	11
D		RT 7, p. 213 (Dolan admission)	14
E		RT 8, p. 108 (authentication)	17
F		CSAA denial letter	20
G		SFPD report	23
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2		BWC footage (native / slip)	4
3		CAD logs (native / slip)	6
4		SFPD report	8
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I. INTRODUCTION

§I.A — The “Smoking-Gun” Preamble (Reliance, Nine-Point Chain, and Laws-Broken Matrix)

I. THE “SMOKING-GUN” PREAMBLE — WHAT THIS OPPOSITION IS ABOUT

This Opposition is grounded in the certified record of a fraud perpetrated upon this Court. At the heart of this case is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

I.A. THE COURT’S ARTICULATED RELIANCE

On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the defense and the subsequent rulings against Plaintiff:

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropri-

ately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven't heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong), Hr'g Tr. Feb. 28, 2025, pp. 291:26–292:7 (SAC Exh. N, SAC Exhibit Appendix pp. 149–150).

I.B. THE RULINGS PROCURED FROM THAT RELIANCE

Based on this misplaced reliance on defense counsel's representations of non-receipt, the Court issued the following structural rulings that stripped Plaintiff of his ability to present his case:

- **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- **Continuance Denied** (Feb. 18, p. 181)
- **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)
- **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)
- **Supplemental Report Excluded** (RT 7, p. 156:24–28 (SAC Exh. O, SAC Exhibit Appendix p. 155))

I.C. THE ADMISSION THAT PROVED THE MISREPRESENTATION

On the seventh day of trial, after months of categorical denials, defense counsel admitted possession:

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D. Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161).

II. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

The following points document that the denials of receipt were irreconcilable with the actual state of the defense's file and knowledge:

(a) Aug. 18, 2022 — Service of 911 audio (Dolan to defense counsel)

- **Proof artifact:** Service of 911 audio by Dolan to defense counsel

- 1 • **Pin cite / Source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140 (SAC Exh. M, SAC
- 2 Exhibit Appendix pp. 104–105)
- 3 • **Who had notice:** Chambers / CSK
- 4 (b) **Aug. 18, 2022 — Rosario deposition (Chambers present)**
- 5 • **Proof artifact:** Rosario deposition — Chambers present
- 6 • **Pin cite / Source:** Rosario depo tr.
- 7 • **Who had notice:** Chambers
- 8 (c) **Sept. 30, 2022 — Abdelhalim deposition (Chambers present)**
- 9 • **Proof artifact:** Abdelhalim deposition — Chambers present
- 10 • **Pin cite / Source:** Abdelhalim depo tr.
- 11 • **Who had notice:** Chambers
- 12 (d) **May 4, 2023 — CSK → PSA file transfer (Substitution of Attorney)**
- 13 • **Proof artifact:** CSK → PSA file transfer (Sub of Atty)
- 14 • **Pin cite / Source:** CT record
- 15 • **Who had notice:** CSK → PSA
- 16 (e) **Feb. 1, 2024 — PSA subpoena for identical materials**
- 17 • **Proof artifact:** PSA subpoena for identical materials
- 18 • **Pin cite / Source:** Order CA1147102-021
- 19 • **Who had notice:** PSA
- 20 (f) **Feb. 26, 2024 — PSA receives production from SFPD**
- 21 • **Proof artifact:** PSA receives production from SFPD
- 22 • **Pin cite / Source:** Report 210079556
- 23 • **Who had notice:** PSA
- 24 (g) **Sept. 9, 2024 — FROG/SROG (CAD log identification)**
- 25 • **Proof artifact:** Plaintiff’s FROG/SROG identifying CAD log
- 26 • **Pin cite / Source:** FROG/SROG records
- 27 • **Who had notice:** PSA
- 28 (h) **Feb. 18, 2025 — Jessup (“since 2021”)**

- **Proof artifact:** Jessup testifies “since 2021”
 - **Pin cite / Source:** Hr’g Tr. Feb. 18, 2025, p. 139:11 (SAC Exh. M, SAC Exhibit Appendix p. 106)
 - **Who had notice:** PSA
- (i) **Apr. 16, 2025 — Admission of receipt**
- **Proof artifact:** **ADMISSION OF RECEIPT**
 - **Pin cite / Source:** RT 7, 213:13-15 (SAC Exh. O, SAC Exhibit Appendix p. 161)
 - **Who had notice:** PSA
-

III. THE LAWS-BROKEN MATRIX

(a) **Bus. & Prof. Code § 6068(d)**

- **Provision:** Duty not to mislead judge
- **Defense conduct:** Jan 27, Feb 18 denials re receipt

(b) **Bus. & Prof. Code § 6128(a)**

- **Provision:** Attorney deceit / collusion
- **Defense conduct:** Intentional deception re: file transfer and receipt

(c) **Cal. Rule of Prof. Conduct 3.3(a)**

- **Provision:** Candor to tribunal
- **Defense conduct:** “We never received these CDs, certainly”

(d) **Cal. Rule of Prof. Conduct 8.4(c)**

- **Provision:** Dishonesty / Misrepresentation
- **Defense conduct:** Sustained pattern across four hearings

(e) **CCP § 128.5**

- **Provision:** Bad-faith actions
- **Defense conduct:** Procurement of exclusion through false statements

(f) **Civ. Code § 1572(3)**

- **Provision:** Actual fraud (suppression)
- **Defense conduct:** Concealment of receipt for 893 days

1 (g) **Civ. Code § 1573**

- 2 • **Provision:** Constructive fraud
3 • **Defense conduct:** Breach of duty of candor; scienter-light civil analog to officer-of-court
4 obligations

5 **Constructive fraud as the civil analog to the Court’s officer-of-court reliance.** The February
6 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7 (SAC Exh. N, SAC Exhibit Appendix pp. 149–
7 150)) is not rhetorical window dressing; it is evidence that the tribunal extended **confidential**
8 **institutional reliance** to counsel’s representations about possession and provenance. Civ. Code
9 § 1573 supplies the civil-side vocabulary for breach of that kind of duty where the record sup-
10 ports misleading acts or nondisclosures without requiring the same scienter proof as intentional
11 misrepresentation.

12
13 **CONCLUSION FOR PREAMBLE:** The present motion (Demurrer/Anti-SLAPP) must be eval-
14 uated against this record. Defense cannot use the “fruit” of their deception to justify the dismissal
15 of a case they corrupted.

16 **§I.B — Why Anti-SLAPP Must Be Denied**

17 Defendants attempt to use Anti-SLAPP step one to shield extrinsic fraud and process corrup-
18 tion. Under Park and Bonni, the court must identify the injury-producing act. Here, the injury-
19 producing acts are out-of-court lulling, the stripped file transfer, and the procurement of rulings by
20 deception—none of which qualify as protected petitioning. Even if prong one were reached, the
21 record evidence (the “Smoking Gun”) establishes a probability of prevailing that far exceeds the
22 minimum-merit standard.

23 **§I.F — Posture Note: The SAC Is Offered as Gravamen Clarification, Not as a Simmons**
24 **End-Run**

25 Plaintiff has concurrently moved for leave to file a Second Amended Complaint (SAC) (see SAC-
26 01 through SAC-07). Plaintiff does not contend that the SAC moots or avoids this anti-SLAPP
27 motion. (*Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073–1074; *Salma v. Capon*
28 (2008) 161 Cal.App.4th 1275, 1293–1294 [amendment cannot defeat a pending anti-SLAPP].)

1 The SAC is submitted to the Court for two permissible purposes only: (i) as the current, more
2 particularized articulation of the same injury-producing acts the FAC already pleads, useful to
3 the Park/Bonni gravamen analysis; and (ii) as Plaintiff’s specific, tendered proffer if the Court
4 reaches leave to amend under § 425.16 jurisprudence. Nothing in this Opposition asks the Court
5 to substitute the SAC for the FAC as the operative pleading on this motion.
6 Plaintiff’s complete Cure Matrix mapping SAC paragraphs to each defect alleged by Defendants
7 is filed separately as Document 17 (SAC Cure Matrix and Pendency Notice).

8 9 **I-A. WHY THIS CASE IS OUTSIDE PRONG ONE EVEN THOUGH IT** 10 **AROSE AROUND LITIGATION**

11 Not every act occurring during litigation is a protected act under CCP § 425.16. The Supreme
12 Court has repeatedly insisted that the court must first identify the specific **injury-producing act**
13 underlying each claim, and only then classify that act as protected petitioning (or not). (Park, 2
14 Cal.5th at 1062-1063; Bonni, 11 Cal.5th at 1010-1012; Wilson v. Cable News Network, Inc. (2019)
15 7 Cal.5th 871, 884.)

16 Defendants collapse “litigation-adjacent” with “protected.” That is legal error. The FAC’s grava-
17 men lies in:

- 18 (a) out-of-court lulling,
- 19 (b) file-transfer concealment to successor counsel, and
- 20 (c) induced procedural rulings.

21 The first two are not communicative petitioning at all. The third is the downstream consequence
22 of the first two, not the injury-producing act itself. Even a case that arose “around” the underlying
23 litigation is outside prong one where the acts that produced the injury are institutional, noncom-
24 municative, or extrinsic to the merits adjudication.

I-B. CCP 425.17 EXEMPTION (CLUB MEMBERS THRESHOLD)

Part I — Resolve statutory exemptions before Cashman prong one

1. Order of analysis. Before City of Cotati v. Cashman (2002) 29 Cal.4th 69, the Court should determine whether **Code of Civil Procedure § 425.17** removes one or more causes of action from **CCP § 425.16** altogether. Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 318–322 (exemptions are threshold questions).

2. § 425.17(c) — commercial services (insurance and legal defense). CSAA is engaged in the business of **insurance**; defense counsel firms are engaged in **delivering legal services** in connection with that insurance. The FAC and proposed SAC allege misrepresentations and omissions concerning **what was received in discovery, file custody, and production history**—representations of fact about **business operations and services** made in the course of delivering those services, within § 425.17(c)(1)–(2). Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 30–32.

3. § 425.17(b) — solely public interest (in the alternative). To the extent the Court finds any facet of this action brought **solely in the public interest** satisfying § 425.17(b)(1)–(b)(3), § 425.16 does not apply to that facet. Plaintiff joins issue on the scope of “solely” in light of individual vacatur and fraud remedies.

4. § 425.17(e) — no interlocutory anti-SLAPP appeal if exemption applies. If the Court denies this motion **on the ground that a cause of action is exempt** under § 425.17, **subdivision (i) of § 425.16** and **CCP § 904.1(a)(13)** **do not apply** to that cause of action—**no automatic stay; no direct appeal** of that denial on anti-SLAPP grounds. Code Civ. Proc. § 425.17, subd. (e).

5. If no exemption applies: the Court proceeds to the Cashman two-step framework in Section II below.

II. STEP-ONE GRAVAMEN DEMAND UNDER PARK AND BONNI

A. The Mandatory Two-Step Framework

Under City of Cotati v. Cashman (2002) 29 Cal.4th 69, 76, the anti-SLAPP analysis proceeds in two steps:

1 **Step One:** Does the challenged claim arise from protected activity? **Step Two:** If yes, has the
2 plaintiff demonstrated a probability of prevailing?

3 Defendants collapse these two steps. They assume that because their conduct occurred during
4 litigation, the analysis automatically proceeds to step two. This is wrong.

5 **Mandatory parsing — Baral and Wilson.** Even where some allegations touch protected activity,
6 the court must isolate the gravamen and may strike **only** allegations of protected activity, not an
7 entire mixed-conduct complaint. (Baral v. Schnitt (2016) 1 Cal.5th 376, 396.) The step-one inquiry
8 “requires evaluating the defendant’s asserted protected activity in the context of the entire conduct
9 upon which the plaintiff’s claim is based,” including identifying the specific **acts on which liability**
10 **is based** and whether those acts themselves qualify as protected speech or petitioning. (Wilson v.
11 Cable News Network, Inc. (2019) 7 Cal.5th 871, 884.) Defendants’ monolithic “entire FAC”
12 framing contradicts both holdings.

13 **B. Park Requires Gravamen Isolation**

14 In Park v. Bd. of Trustees (2017) 2 Cal.5th 1057, 1062-1063, the California Supreme Court
15 clarified the step-one analysis:

16 “In the anti-SLAPP context, the critical point is whether the plaintiff’s cause of action
17 itself was based on an act in furtherance of the defendant’s right of petition or free
18 speech.” (Park, 2 Cal.5th at 1062)

19 The Court must identify the specific **injury-producing act** on which the claim rests and determine
20 whether **that act** is protected petitioning activity. Labels like “litigation conduct” are not self-
21 proving.

22 **C. Defendants Skip the Gravamen Analysis**

23 Defendants cite Park for the proposition that “speech or petitioning activity itself” as the wrong
24 supports Anti-SLAPP. (Anti-SLAPP MPA, p.13, ll.20-22) But Defendants use Park at step two as
25 part of a privilege block, assuming the answer at step one.

26 The FAC’s gravamen is not “speech or petitioning activity itself.” The FAC’s gravamen is:

- 27 1. Out-of-court communications that led Plaintiff to believe authentication of evidence was un-
28 contested

1 2. The file transfer without proper conveyance of production history

2 3. Court-facing misrepresentations that induced procedural rulings narrowing Plaintiff's win-
3 dows

4 4. Tribunal reliance producing structural hearing impairment

5 These are not attacks on litigation itself. They are attacks on extrinsic fraud and tribunal reliance.
6 For **Count 7 (constructive fraud, Civ. Code § 1573)** on the proposed SAC, the injury-producing
7 gravamen is the **breach of a duty of candor** to the tribunal and the parallel institutional custody
8 failures, not the fact of petitioning motions or trial advocacy. Park therefore does not collapse
9 Count 7 into protected petitioning merely because MILs were filed.

10 **D. Martinez as Discipline, Not Slogan**

11 Defendants cite *Martinez v. Metabolife Inter'l, Inc.* (2003) 113 Cal.App.4th 181, 188 for the
12 “principal thrust” test. But *Martinez* is a discipline for identifying the gravamen, not a magic word
13 that resolves step one. The principal thrust test asks: What is the act that actually produces the
14 injury?

15 Here, the injury-producing acts are noncommunicative institutional failures and misrepresenta-
16 tions, not petitioning itself.

17 **E. Claim-by-Claim Bonni Matrix**

18 *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010-1012 requires the court to parse
19 each claim and each alleged act separately. *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th
20 871, 884 further requires that the act be an **element** of the claim, not merely evidence of it. Applied
21 here:

FAC Count	Element At Issue	Act Alleged To Satisfy Element	Protected Petitioning?	FAC ¶ Pin-Cite
1 – Extrinsic Fraud / Fraud on the Tribunal	Deception operating outside the adversary contest	Out-of-court lulling communications that induced Plaintiff to forgo authentication/subpoena work before trial	No – out-of-court conduct aimed at Plaintiff, not petitioning a tribunal	FAC ¶¶ 2, 29–33
2 – Fraud / Intentional Misrepresentation	False representation + reliance + damages	Representations that evidence authentication was uncontested, made off-record to Plaintiff	No – communicative but not petitioning; directed to opposing party, not to the court as petition	FAC ¶¶ 40–43
3 – Negligent Misrepresentation / Breach of Institutional Duty	Breach of file-custody and production-history-conveyance duty on substitution	File transfer to PSA without conveying production history	No – noncommunicative institutional conduct (Kimmel/Rusheen line)	FAC ¶¶ 34–39

FAC Count	Element At Issue	Act Alleged To Satisfy Element	Protected Petitioning?	FAC ¶ Pin-Cite
4 – Aiding & Abetting / Agency (CSAA)	Direction, funding, ratification of tortious conduct by principal	CSAA direction/ratification of the file-transfer and litigation positions	No – noncommunicative oversight conduct	FAC ¶¶ 7, 48–55
5 – Procurement-Level Process Corruption	Inducement of procedural ruling through false provenance representation	Court-facing statements that induced exclusion ruling	Communicative, but (a) the injury-producing act for the claim is the procurement of the ruling by deception (illegal-conduct exception) and (b) extrinsic fraud is an element, not the speech	FAC ¶¶ 40–47

FAC Count	Element At Issue	Act Alleged To Satisfy Element	Protected Petitioning?	FAC ¶ Pin-Cite
7 – Constructive Fraud (Civ. Code § 1573)	Duty of candor; misleading act or nondisclosure; inducement; harm (<u>Assilzadeh v. California Federal Bank</u> (2000) 82 Cal.App.4th 399, 415)	Same Nine-Point Receipt Chain and officer-of-the-court reliance as Counts 2–3, without scienter	No – mixed <u>Kimmel</u> institutional acts and <u>Action Apartment</u> tribunal channels; <u>Flatley</u> backstop	SAC ¶¶ 157–165

The label “litigation conduct” does not survive the Bonni element-level parse. Each injury-producing act, examined individually, is either noncommunicative (file transfer and principal oversight), aimed outside the tribunal (out-of-court lulling), or within the illegal-conduct/extrinsic-fraud exception (court-facing procurement).

II-A. ACT-BY-ACT PRONG ONE TABLE

The court should analyze each alleged act separately rather than in the aggregate. Defendants’ principal move is to fuse the acts; the table below forces the Bonni element-level review.

Alleged Act	Who Did It	Communicative / Noncommu- nicative	Why Not Protected / Exception Applies	Plaintiff's Contempora- neous Objection / Preservation	Supporting Evidence
Out-of-court communica- tions lulling Plaintiff into non-action regarding authentication	Carbone, Chambers (underlying counsel)	Communicative, but not petitioning — directed at opposing party, not a tribunal	Not “in connection with an issue under consideration by a judicial body” as against Plaintiff; outside § 425.16(e)	N/A (lulling occurred before Plaintiff had notice of problem)	Plaintiff Decl. ¶¶ 7–10; defense MPA, p.6 framing
File transfer to PSA without conveying production history	Carbone, Chambers; ratified by CSAA	Noncommunicative (institutional cus- tody/transfer act)	Kimmel/Rusheen “necessarily related” test fails; institutional duty existed independent of any privileged communica- tion	N/A (institutional act outside courtroom)	Substitution of Attorney (May 4, 2023); defense MPA, p.6 (“without ensuring proper docu- mentation”)

Alleged Act	Who Did It	Communicative / Noncommu- nicative	Why Not Protected / Exception Applies	Plaintiff's Contemporaneous Objection / Preservation	Supporting Evidence
MIL 17 “unknown provenance” filing (Jan. 17, 2025)	PSA (Navaratnas- ingham)	Communicative	Flatley illegal- conduct exception; extrinsic fraud	Jan. 27, 2025: Plaintiff stated “suppress” on record (Hr’g Tr. p. 19; SAC Exh. K, SAC Exhibit Appendix p. 57) and cited FROG/SROG pincites (Hr’g Tr. p. 32; SAC Exh. K, SAC Exhibit Appendix p. 70)	CT Vol. 1, p. 238; Hr’g Tr. Jan. 27, 2025

Alleged Act	Who Did It	Communicative / Noncommu- nicative	Why Not Protected / Exception Applies	Plaintiff's Contempora- neous Objection / Preservation	Supporting Evidence
"News to me" representation (Feb. 18, 2025)	Navaratnasingham	Communicative	Illegal conduct— same-day contradiction (p. 141 vs. p. 181) establishes scienter	Feb. 18, 2025: Plaintiff stated "concealed" and "going on the record" (Hr'g Tr. pp. 17, 44–45)	Hr'g Tr. Feb. 18, 2025, pp. 141, 181
CSAA direction, funding, ratification of litigation position	CSAA	Noncommunicat (institutional oversight)	Not petitioning; commercial- insurance administrative conduct	N/A (principal oversight)	FAC agency ¶¶; Civ. Code § 2338

Alleged Act	Who Did It	Communicative / Noncommu- nicative	Why Not Protected / Exception Applies	Plaintiff's Contempora- neous Objection / Preservation	Supporting Evidence
Procedural- window narrowing (induced continuance denial / exclusion ruling)	Court, induced by defense	Result of the injury- producing acts, not itself the claim's gravamen	Park requires analysis of the injury- producing act, not downstream rulings	Jan. 27, 28; Feb. 3, 18: All four Plaintiff procedural vehicles denied	Minute orders; trial transcript

The third column (“Plaintiff’s Contemporaneous Objection / Preservation”) shows the Court has **already heard** each suppression vector in open court. Plaintiff preserved objections on four separate hearing dates. This further distances the present action from any “retry the same case” characterization—Plaintiff was procedurally foreclosed, not silent.

II-B. EVEN IF SOME ACTS ARE PROTECTED, THE CLAIM DOES NOT ARISE FROM PROTECTED ACTIVITY IN SUBSTANCE

If the court concludes that one or more sub-acts (e.g., a specific court-facing statement) were communicative petitioning, the motion still fails. Under *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396, only allegations of protected activity are subject to striking; the claim as a whole survives if it rests substantially on unprotected conduct. Under *Park*, 2 Cal.5th at 1064, conduct that merely provides “evidentiary support” for a claim does not supply arising-from status.

Here, even subtracting any assertedly protected sub-acts:

- the out-of-court lulling (aimed at Plaintiff, not a tribunal) remains;
- the file-transfer concealment (noncommunicative institutional act) remains;
- the CSAA direction/ratification (noncommunicative oversight) remains.

The claim’s substance rests on this unprotected core. At most, Defendants have identified evidentiary cousins to protected activity — and Park expressly forbids converting evidentiary support into arising-from.

III. CONDUCT VS. COMMUNICATION: THE KIMMEL LINE

A. Civil Code Section 47(b) Protects Communications, Not All Conduct

Defendants assert blanket immunity under Civil Code section 47(b), reproducing the statute and a four-part gloss on the litigation privilege. (Anti-SLAPP MPA, pp. 8–9, ll. 1–28 [L.G. v. M.B. formulation and related privilege string cites].) But the litigation privilege protects qualifying **communications**, not every act during litigation.

B. The Kimmel Boundary

Kimmel v. Goland (1990) 51 Cal.3d 202, as discussed in Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1057, establishes the strict boundary between protected communications and unprotected noncommunicative conduct.

The FAC alleges noncommunicative institutional acts: - File custody failures during the file transfer from Carbone/Chambers to successor counsel - Production-history omission on substitution - Agency oversight failures by CSAA as institutional principal - Procedural-window narrowing through noncommunicative process failures

These allegations do not reduce to “speech or petitioning activity itself.”

C. Gravamen Matrix — File-Transfer Failure (Analyzed Separately)

The file-transfer failure is a discrete, noncommunicative institutional act. Defendants’ MPA (p.6) acknowledges the transfer occurred “without ensuring proper documentation.” That act is a pre-substitution custody failure by prior counsel, executed by and ratified by CSAA as the institutional principal. It is not a communication to any tribunal; it is a custodial hand-off between law firms.

Defense Abstraction	FAC Actual Act	Classification
“Litigation activity”	File transfer to PSA without production-history conveyance	Noncommunicative institutional conduct (outside § 47(b) and § 425.16)
“Privileged representation”	CSAA direction/ratification of file-transfer defect	Noncommunicative oversight conduct by commercial insurer

C-1. Gravamen Matrix — Court-Facing Misrepresentation (Analyzed Separately)

The court-facing misrepresentation is a distinct, communicative act — but one falling within the extrinsic-fraud and illegal-conduct exceptions. This act is downstream of, and made possible by, the file-transfer failure; it must not be blended with it.

Defense Abstraction	FAC Actual Act	Classification
“Protected petitioning”	Court-facing statements as to evidence provenance that induced exclusion ruling	Communicative, but procurement of ruling by deception — extrinsic fraud / illegal conduct (Flatley exception)
“Communications made during proceedings”	Two-phase pattern: out-of-court lulling, then court-facing shift	Coordinated extrinsic-fraud scheme; lulling phase not petitioning at all

The Court should apply Park and Bonni at the proper level of abstraction to each act separately. The defense’s labels do not survive gravamen analysis when the file-transfer and court-facing acts are held apart.

D. Rusheen’s “Necessarily Related” Test Is Not Satisfied

Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1058 holds that noncommunicative acts receive § 47(b) protection only where they are “**necessarily related**” to a privileged communication. The inverse

1 follows: where a noncommunicative act is **not** necessarily related to a privileged communication,
2 it falls outside the privilege and, by extension, outside the prong-one umbrella Defendants attempt
3 to import from § 47(b).

4 The file-transfer, production-history conveyance, and CSAA agency-oversight acts are pre- and
5 post-litigation institutional duties. They exist independent of any specific privileged communica-
6 tion: the duty to convey a file accurately to successor counsel on substitution is a general custodial
7 and professional obligation, not the execution of any particular courtroom filing. (See Gallanis-
8 Politis v. Medina (2007) 152 Cal.App.4th 600, 611 [noncommunicative acts outside privilege
9 scope].) The “necessarily related” hook is absent. Rusheen therefore does not sweep these acts
10 into protected-activity status.

11 **E. Silberg’s Four-Part Test Does Not Erase the Conduct/Communication Line or the Extrinsic-**
12 **Fraud Exception**

13 Defendants’ papers invoke the familiar four-part formulation for the litigation privilege (Silberg
14 v. Anderson (1990) 50 Cal.3d 205, 212–214) as if it were a universal solvent. Silberg describes
15 when a **communication** in a judicial proceeding is privileged; it does not convert institutional file-
16 custody acts into “communications.” Rusheen, supra, 37 Cal.4th at page 1058, cautiously extends
17 § 47(b) only to noncommunicative acts **necessarily related** to an underlying privileged commu-
18 nication — a narrow tether Defendants’ briefing does not satisfy for the May 4, 2023 transfer
19 allegations.

20 Nor does Silberg address the intersection of § 47(b) with **extrinsic fraud**. Action Apartment
21 Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1246–1247 reaffirms that extrinsic fraud
22 is an exception to the litigation privilege. Seltzer v. Barnes (2010) 182 Cal.App.4th 953, 970
23 supplies the conduct-versus-communication boundary in the post-Rusheen landscape: not every
24 act “during” litigation is a privileged communication merely because counsel performed it.

IV. THE ILLEGAL-CONDUCT AND EXTRINSIC-FRAUD STRAND OF FLATLEY

Under Flatley v. Mauro (2006) 39 Cal.4th 299, 320–325, conduct that is illegal as a matter of law cannot be protected petitioning. Where, as here, (i) the trial court expressly articulated reliance on defense counsel’s officer-of-the-court candor (Hr’g Tr. Feb. 28, 2025, p. 292, ll. 1–7 (SAC Exh. N, SAC Exhibit Appendix p. 150)), and (ii) the certified record later established defense counsel’s admission that the very materials she had denied receiving were “provided by Dolan” (RT 7, Apr. 16, 2025, p. 213, ll. 13–15), the inducing representation is knowingly false as a matter of law. Section 425.16 does not protect it.

The Court’s February 28, 2025 articulation is dispositive:

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court.”

— Garrett L. Wong, Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:4 (SAC Exh. N, SAC Exhibit Appendix pp. 149–150).

That institutional reliance was misplaced, as the April 16, 2025 admission demonstrates. The resulting burden-shift ruling — “it’s required of you to send the documents over. Otherwise, I won’t allow them in.” (Hr’g Tr. Feb. 28, 2025, p. 293, ll. 1–3 (SAC Exh. N, SAC Exhibit Appendix p. 151)) — was procured through the very candor the Court relied upon.

IV-A. Scienter is Evident From Defendants’ Own In-Court Contradictions Within a Three-Week Window

Before reaching Defendants’ Flatley arguments, the Court should observe that the scienter requirement for the illegal-conduct exception is satisfied by **Defendants’ own hearing and trial transcripts**. The Judicial Admission Matrix (lodged with Plaintiff’s opposition materials as **Bench Binder App. 3**) documents:

Date	Position A (denial/suppression)	Position B (admission/possession)
Jan. 17, 2025	MIL 17: “no production” / “no idea”	—
Jan. 27, 2025	Defense opposes continuance	Plaintiff: “suppress” on record (p. 19)
Jan. 28, 2025	Defense § 581(d) dismissal motion	Court: “immediate reversal” (p. 90)
Feb. 3, 2025	Defense renews § 581(d) under submission	Ex parte disclosure order (pp. 109, 116, 122–124)
Feb. 18, 2025	“news to me” (p. 141)	same hearing: “all this stuff has been in his possession since August” (p. 181)
Apr. 16, 2025	Stacked foundation attacks	“They were provided by Dolan. . .” (RT 7, p. 213)

The Laws-Broken Matrix (Flatley “Illegal as a Matter of Law” Proof)

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6068(d)	Duty not to mislead judge	Jan 27, Feb 18, Feb 28 denials re receipt.
Bus. & Prof. Code § 6128(a)	Attorney deceit / collusion (misdemeanor)	Intentional deception re: file transfer and receipt.
Cal. Rule of Prof. Conduct 3.3(a)	Candor to tribunal	“We never received these CDs, certainly” (Jan 27).
Cal. Rule of Prof. Conduct 8.4(c)	Dishonesty, fraud, deceit	Pattern across four hearings.
CCP § 128.5	Bad-faith actions	Procurement of exclusion through false statements.

Rule / Code	Provision	Defense Conduct
Civ. Code § 1573	Constructive fraud	Breach of duty of candor; additional illegality hook alongside § 6128(a).

Under Flatley v. Mauro (2006) 39 Cal.4th 299, 320, conduct that is **illegal as a matter of law**—including fraud on the court—falls outside § 425.16 protection. The **three-week whipsaw** between Position A (Jan. 17 MIL) and Position B (Feb. 18 p. 181) establishes illegality conclusively, not just as a factual dispute. The Feb. 18 intra-hearing contradiction (p. 141 vs. p. 181) was made by the **same attorney** on the **same day**—foreclosing any “ignorance” narrative.

A. Defendants’ Selective Reading of Flatley

Defendants quote Flatley v. Mauro (2006) 39 Cal.4th 299, 320-325 extensively for its policy paragraph on “finality of judgments”:

“[I]n immunizing participants from liability for torts arising from communications made during judicial proceedings, the law places upon litigants the burden of exposing during trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of judgments and avoiding an unending roundelay of litigation, an evil far worse than an occasional unfair result.” (Anti-SLAPP MPA, p.9, ll.17-21, quoting Flatley, 39 Cal.4th at 322)

B. The Illegal-Conduct Exception — Narrow, But Applicable

Defendants quote Flatley’s finality paragraph without addressing Flatley’s illegal-conduct limit. Flatley v. Mauro (2006) 39 Cal.4th 299, 320-325 holds that when petitioning activity is illegal as a matter of law — either conceded or established as a matter of law — it loses Anti-SLAPP protection. Plaintiff acknowledges that the exception is narrow and does not extend to merely disputed illegality. (Id. at 320.)

The Court’s operative formulation is: “section 425.16 cannot be invoked by a defendant whose assertedly protected activity is illegal as a matter of law and, for that reason, not protected by constitutional guarantees of free speech and petition.” (Flatley v. Mauro, supra, 39 Cal.4th at

p. 320.) Read in tandem with Action Apartment, supra, 41 Cal.4th at pp. 1242–1247, the FAC’s procurement-by-deception theory falls outside the “valid” petitioning Flatley and § 425.16, subd. (a), were enacted to immunize — even before reaching step two’s probability standard.

Extrinsic fraud on the tribunal is a recognized common-law tort with criminal analogs: Penal Code § 132 (offering false evidence), § 134 (preparing false evidence), and § 182 (conspiracy). See *Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696, 704–705 (filing a knowingly false police report is illegal as a matter of law and not protected activity). The two-phase pattern pleaded — out-of-court lulling followed by induced court-facing misrepresentation — mirrors the conduct *Lefebvre* held unprotected.

Plaintiff does not rest the Anti-SLAPP opposition primarily on *Flatley*. The primary defeater is the Bonni/Park step-one analysis set out in Sections I-A, II, and II-A above. *Flatley* operates as a secondary backstop only if the court concludes that any specific court-facing act survives the gravamen parse.

C. Action Apartment: The Extrinsic Fraud Exception

Defendants’ briefing does not discuss *Action Apartment Ass’n v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1242–1247, which establishes that **extrinsic fraud is an exception** to the litigation privilege.

At 41 Cal.4th 1242, the Court discussed *Silberg* and *Albertson* and clarified the boundaries of the litigation privilege in the context of fraud on the court.

This exception is mandatory. Defendants cannot cite *Flatley* without addressing *Action Apartment*.

V. STEP TWO: MINIMUM-MERIT SHOWING IF REACHED

Defendants contend that if prong one is satisfied, Plaintiff cannot meet prong two’s probability standard. (Anti-SLAPP MPA, pp. 12–13 [citing *Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1244–1245 and arguing the privilege defeats probability].)

Step two asks only whether Plaintiff has stated and substantiated a legally sufficient claim with “minimum merit” — a low bar. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811,

820 [“not insubstantial”]; Navellier v. Sletten (2002) 29 Cal.4th 82, 88-89 [prima-facie standard]; Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1244-1245.)

V.A The Minimum-Merit Showing

The four elements of extrinsic fraud are: (1) a deliberate deception or concealment by the opposing party or its agents; (2) operating outside the adversary contest such that the complaining party was prevented from fully presenting a claim or defense; (3) actual and reasonable reliance; and (4) resulting prejudice from the lost procedural opportunity. Each element is mapped to a specific paragraph of Plaintiff’s Declaration (Ex. 1 to these Oppositions):

Element	Specific Factual Assertion	Declaration Pin-Cite
(1) Deliberate deception/concealment	Out-of-court representations that authentication of evidence was uncontested, followed by stripped-file transfer to successor counsel on May 4, 2023 substitution	Pl. Decl. ¶¶ 7–10, 15
(2) Operating outside the adversary contest	Lulling communications occurred off-record, directed to Plaintiff personally; file-transfer concealment occurred between law firms, outside any courtroom proceeding	Pl. Decl. ¶¶ 7–10, 15–17

Element	Specific Factual Assertion	Declaration Pin-Cite
(3) Actual and reasonable reliance	Plaintiff forwent pre-trial authentication, subpoena, and continuance motion practice in reliance on the out-of-court posture	Pl. Decl. ¶¶ 11–13, 18–19
(4) Prejudice from lost procedural opportunity	Induced exclusion of evidence; denied continuance; closed discovery window; loss of specific subpoena/authentication opportunity	Pl. Decl. ¶¶ 18–20

V.A-1 Minimum Merit for Count 7 (Constructive Fraud) on the Proposed SAC

If the Court reaches step two as to **Count 7**, the Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399, 415 elements are supported by the same prima facie core as extrinsic fraud: the **Nine-Point Receipt Chain** (Exhibit 2 / Pl. Decl. Section I-B), Plaintiff’s **officer-of-the-court reliance** paragraphs (Pl. Decl. ¶¶ 31–32), the **February 28, 2025** officer-of-the-court colloquy (Hr’g Tr. pp. 291–294 (SAC Exh. N, SAC Exhibit Appendix pp. 149–152)), and the **April 16, 2025** admission (RT 7, p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161)). Those record anchors supply a confidential or fiduciary advantage, breach, inducement, and harm at the low Navellier / Oasis West threshold.

V.B Step Two Evidentiary Showing If Reached

If the court reaches step two, Plaintiff’s minimum-merit showing rests on an unrebutted evidentiary triad:

1. **Defendants’ own Anti-SLAPP Demurrer MPA (p.6)**, admitting the file transfer occurred “without ensuring proper documentation.” This is party-admission-grade evidence of the noncommunicative institutional act at the center of the FAC.

2. **Plaintiff's Declaration**, establishing (a) the out-of-court lulling communications and the dates and counterparties, (b) the May 4, 2023 substitution timeline, and (c) what Plaintiff would have done differently (subpoena, authentication, continuance) absent the lulling.
3. **Trial transcript**, reflecting the court-facing shift by successor counsel as to evidence provenance and the ensuing evidentiary ruling that excluded the evidence.

The Nine-Point Receipt Chain (Audacity Exhibit)

#	Date	Proof Artifact	Pin cite / Source
1	Aug. 18, 2022	Service of 911 audio by Dolan to CSK	Jessup Tr. Feb. 18, pp. 139-140
2	Aug. 18, 2022	Rosario deposition — Chambers present	Rosario depo tr.
3	Sept. 30, 2022	Abdelhalim deposition — Chambers present	Abdelhalim depo tr.
4	May 4, 2023	CSK → PSA file transfer	Substitution of Attorney
5	Feb. 1, 2024	PSA subpoena for identical materials	Order CA1147102-021
6	Feb. 26, 2024	PSA receives production from SFPD	Report 210079556
7	Sept. 9, 2024	Plaintiff's FROG/SROG served on Reyna	Discovery records
8	Feb. 18, 2025	Jessup confirms Dolan copy since 2021	Hr'g Tr. p. 139

#	Date	Proof Artifact	Pin cite / Source
9	Apr. 16, 2025	ADMISSION OF RECEIPT	RT 7, p. 213

This triad establishes a prima facie case of extrinsic fraud. Under *Oasis West*, 51 Cal.4th at 820 and *Navellier*, 29 Cal.4th at 88-89, that is all step two requires.

V.C Scienter Established by the Seventeen-Page Whipsaw

Plaintiff has more than a minimum of merit on the fraud-on-the-court element because the **scienter admission is in Defendants’ own mouths**, seventeen pages apart on a single hearing transcript:

- **Feb. 18, 2025, p. 141:** “our office did not receive the 911 call until the day of the MSC... this is news to me.”
- **Feb. 18, 2025, p. 181:** “we oppose the continuance... the body cam footage, the 911 call, all this stuff has been in his possession since August.”

The intra-hearing contradiction—made by the **same attorney** on the **same day**—forecloses the “ignorance” element of judicial estoppel under *MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.* (2005) 36 Cal.4th 412, 422. The casual phrasing of Position B (“for whatever, sure”) on April 16, 2025 (RT 7, p. 213) demonstrates that the Dolan origin was a **known, settled fact** within the defense team—not a recent discovery. This is minimum merit on scienter.

V.D Prima-Facie Tribunal Finding on Authentication

The Court itself recognized defense’s authentication waiver: “They’re not questioning the authenticity in the documents.” (Hr’g Tr. Feb. 18, 2025, p. 174, ll. 19–25 (Wong, J.)) This is the Court’s own on-record recognition that defense had waived authenticity — made two months before the Apr. 16, 2025 “provided by Dolan” admission confirmed receipt. On a demurrer or prong-two inquiry, the tribunal’s own finding establishes prima facie authentication by acquiescence under Evidence Code § 1414(b).

V.E Plaintiff’s Contemporaneous Preservation

Plaintiff’s contemporaneous diligence is documented on the transcript:

- **Jan. 27, 2025:** “We have two 911 records that the Defense has been trying to suppress.” (Hr’g

Tr. Jan. 27, 2025, p. 19, ll. 1–5 (SAC Exh. K, SAC Exhibit Appendix p. 57).)

- **Jan. 27, 2025:** “They’re using weaponization of procedure.” (Hr’g Tr. Jan. 27, 2025, p. 42, ll. 1–8.)
- **Feb. 18, 2025:** “this denial and this delay is very convenient.” (Hr’g Tr. Feb. 18, 2025, p. 166, ll. 1–9.)
- **Feb. 18, 2025:** “I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.” (Hr’g Tr. Feb. 18, 2025, pp. 44–45.)

This contemporaneous record establishes element 3 (reasonable reliance) of City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493: Plaintiff spoke up and was denied relief, which is why his reliance on the prior 883-day silence was reasonable.

V.F — How the SAC Strengthens (But Does Not Replace) the Prong-Two Showing

If the Court reaches prong two, the proposed SAC (offered for the limited purpose stated in § I.F) supplies two pleading advantages that further exceed the minimum- merit threshold without altering the injury-producing acts:

1. **Count 7 (constructive fraud, Civ. Code § 1573; Assilzadeh, supra, 82 Cal.App.4th at p. 415) is scienter-light.** It rests on duty-of-candor breach and the Nine-Point Receipt Chain without requiring proof of intent to deceive, and therefore survives any residual privilege or intent-based attack on Counts 2–3.
2. **Count 4 (SAC ¶ 141A) pleads conspiracy only as a joint-liability theory attaching to underlying torts.** (Applied Equipment, supra, 7 Cal.4th 503.) This forecloses the “freestanding conspiracy tort” objection defendants telegraph.

Neither refinement changes the prong-one gravamen already briefed above; they confirm that on the merits the case is more than “minimally” meritorious.

VI. PRECLUSION SUBSECTION: REJECT SINGH WITHOUT CROWLEY

A. Defendants' Collateral Estoppel Argument

Defendants invoke F.E.V. v. City of Anaheim (2017) 15 Cal.App.5th 462, Wouldridge v. Burns (1968) 265 Cal.App.2d 82, and Singh v. Lipworth (2014) 227 Cal.App.4th 813, 826 for a collateral-attack / issue-preclusion shell. (Anti-SLAPP MPA, p. 14, ll. 1–18.)

Defendants cite Singh v. Lipworth (2014) 227 Cal.App.4th 813, 826 for the proposition that “collateral estoppel precludes relitigation of issues argued and decided in prior proceedings.”

B. Defendants Ignore the Mandatory Crowley Analysis

Singh requires an exact **issue match**. Under Crowley v. Katleman (1994) 8 Cal.4th 666, 681-682, the Court must map the parties, issues actually litigated, and primary rights enforced. Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904 confirms California’s primary-right test; Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 798 reinforces that the same primary right must have been at stake in both actions.

The underlying trial adjudicated the primary right to be free from negligent conduct (car collision liability).

This FAC asserts the primary right to a fair adversary hearing, free from extrinsic fraud.

These are different primary rights. The jury never decided: - Whether the defense withheld production history during the file transfer - Whether misrepresentations about evidence provenance were made to the judge - Whether those misrepresentations induced procedural rulings

Collateral estoppel separately requires that the issue have been “**necessarily decided**” in the prior case. (Lucido v. Superior Court (1990) 51 Cal.3d 335, 341-342.) Extrinsic fraud on the tribunal — by definition operating outside the merits adjudication — was not and could not have been necessarily decided by a negligence verdict.

Collateral estoppel does not apply without issue-match and necessary decision. Defendants cannot invoke Singh without Crowley, Mycogen, Boeken, and Lucido.

1 **C. Commercial Speech / Insurance Course of Business**

2 Independently, concealment of production history was an administrative, file-management failure
3 by a commercial insurer (CSAA) during a change of vendors (law firms). Under any reason-
4 able classification, such administrative, custodial conduct by a commercial insurer is unprotected
5 business conduct, not petitioning activity within § 425.16(e). Insurance course-of-business ad-
6 ministration does not gain protected-activity status merely because it happens to sit adjacent to a
7 covered claim in litigation.

8
9 **VII. INSURANCE-CHANNEL MISREAD: MORADI-SHALAL PRESERVES**
10 **FRAUD JURISDICTION**

11 **A. Defendants’ Implicit Position**

12 Defendants implicitly argue that Plaintiff cannot sue an insurer as a third party, relying on Shaolian
13 v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268 and companion cases in their coordinated demurrer.
14 (Demurrer MPA, p. 14, ll. 17–24.) The Anti-SLAPP papers channel the same insurer/counsel
15 immunity themes through privilege and “protected activity” labels. (Anti-SLAPP MPA, pp. 8–10
16 [§ 47(b) overlay and gravamen rhetoric].)

17 **B. Moradi-Shalal Preserves Common Law Fraud Jurisdiction**

18 Moradi-Shalal v. Fireman’s Fund Ins. Companies (1988) 46 Cal.3d 287, specifically at **page 305**,
19 explicitly preserves common law fraud jurisdiction against insurers.

20 Defendants rely on Shaolian (an assignment case) while ignoring the California Supreme Court’s
21 explicit carve-out for fraud claims. The FAC alleges **institutional agency** under Civil Code section
22 2338, not a generic third-party claim.

23
24 **VIII. FEES (FOOTNOTE) AND RECORD FOR REVIEW**

25 Plaintiff reserves, but does not press at this stage, any request under Code of Civil Procedure §
26 425.16(c)(1).¹

¹ Section 425.16(c)(1) permits a fees award to a prevailing plaintiff only where the motion is frivolous or solely intended to cause unnecessary delay. Plaintiff does not seek fees on this opposition and notes the issue only to preserve it. The primary relief requested is denial of the motion on

1 **Record for review and frivolousness.** If the Court denies this motion **on exemption grounds** un-
2 der § 425.17, § **425.17(e)** forecloses the usual **interlocutory appeal and automatic stay** under §
3 425.16(i) and § 904.1(a)(13). If the Court denies the motion on the merits after Cashman step two,
4 any appeal is subject to the standard Hewlett v. Squaw Valley Ski Corp. (1997) 54 Cal.App.4th
5 499, 510–511 frivolousness review. Plaintiff incorporates the SAC’s § **425.17** and § **425.17(e)** al-
6 legations (SAC ¶¶ 18A–18D, 102A–102C) and the **interlocutory-appeal-brief** companion filing.

8 **IX. CONCLUSION**

9 Defendants’ Anti-SLAPP motion fails at every stage:

10 **Statutory Exemptions (threshold):** Under § 425.17(c) (and in the alternative § 425.17(b)), one
11 or more causes of action are **outside § 425.16**; if the Court denies the motion on that basis, §
12 **425.17(e)** limits interlocutory review as set forth in Section I-B and **Section VIII**.

13 **Step One (Cashman):** Defendants skip the mandatory Park gravamen analysis. The FAC’s grava-
14 men is extrinsic fraud and tribunal reliance, not “speech or petitioning activity itself.” Noncommu-
15 nicative institutional acts fall outside the litigation privilege under Kimmel.

16 **Privilege Exceptions:** Defendants ignore Flatley’s illegal-conduct exception and Action Apart-
17 ment’s extrinsic fraud exception.

18 **Preclusion:** Defendants invoke Singh without performing Crowley’s primary rights mapping. The
19 FAC asserts a different primary right than the underlying negligence trial.

20 **Insurance Channel:** Moradi-Shalal preserves common law fraud jurisdiction, which Defendants
21 ignore.

22 For these reasons, Plaintiff respectfully requests the Court deny the Special Motion to Strike in its
23 entirety.

25 **X. RELIEF REQUESTED**

26 Plaintiff respectfully requests that the Court enter the following relief in a consolidated schedule:

- 27 1. **Deny the Special Motion to Strike** in its entirety;

the doctrinal grounds set out above.

- 1 2. **Alternatively, grant leave to amend** consistent with Section XI;
- 2 3. **Sustain Plaintiff’s objections to Defendants’ Request for Judicial Notice** as set forth in
- 3 the companion Objection;
- 4 4. **Sustain Plaintiff’s evidentiary objections** to the supporting declarations as set forth in the
- 5 companion Evidentiary Objections; and
- 6 5. **Strike conclusory paragraphs** of the supporting declarations identified in the Evidentiary
- 7 Objections.
- 8 _____

9 **XI. WHY LEAVE TO AMEND CURES ANY DEFICIENCY**

10 Should the Court conclude that any sub-allegation requires further specificity, leave to amend

11 would cure any identified deficiency. Plaintiff proffers, on leave to amend: (1) the dates and con-

12 tent of specific CSAA directives to defense counsel concerning authentication, provenance, and

13 production history of 911 audio and CAD records, including the CSAA personnel issuing each

14 directive; (2) the identity of the file-transfer recipients at successor counsel (PSA) on and after the

15 May 4, 2023 substitution and the specific categories of production-history materials not conveyed;

16 and (3) the dates, participants, and substance of the out-of-court representations on which Plaintiff

17 relied to defer authentication, subpoena, and sequencing steps.

18 These particulars confirm that amendment would not be futile. Under *Baral v. Schnitt* (2016) 1

19 Cal.5th 376, 396, striking under § 425.16 is confined to allegations of protected activity; the claim

20 as a whole survives if it rests substantially on unprotected conduct. Any residual imprecision in

21 pleading the unprotected core can be cured by the proffered specificity, and the request for leave is

22 consistent with the liberal amendment standard.

23 _____

24 **DATED:** April 16, 2026

25 Respectfully submitted,

26 _____

27 FRANCISCUS DYLAN ROSARIO

28 _____

EXHIBIT 1: GRAVAMEN MATRIX (EXPANDED)

Defense Characterization vs. FAC Allegations Under Park

#	Defense	True			
	Abstraction (Anti-SLAPP MPA)	FAC Actual Allegation	Gravamen (Park/Bonni Analysis)	Protected Activity?	Specific FAC Paragraph
1	“Privileged litigation conduct” (p.12, l.28)	Out-of-court communica- tions inducing reliance on evidence resolution	Extrinsic fraud channel	NO	FAC ¶¶ 2, 29–33
2	“Litigation activity” (p.7, l.8)	File transfer without proper production history conveyance	Noncommunicat institutional conduct	NO	FAC ¶¶ 34–39
3	“Judicial proceeding” (p.12, l.28)	Misrepresentation to Court about receipt and provenance	Tribunal reliance, process corruption	Exception applies (Flat- ley/Lefebvre)	FAC ¶¶ 40–47

#	Defense	FAC Actual Allegation	True	Protected Activity?	Specific FAC Paragraph
	Abstraction (Anti-SLAPP MPA)		Gravamen (Park/Bonni Analysis)		
4	“Defending the insured” (p.13, l.2)	CSAA direction and ratification of deceptive conduct as principal	Agency liability, Civ. Code § 2338	NO	FAC ¶¶ 7, 48–55
5	“Protected petitioning” (implied throughout)	Procedural-window narrowing through induced rulings	Structural hearing impairment	NO	FAC ¶¶ 46–47
6	“Communication made during proceedings” (p.9, l.17)	Two-phase pattern: out-of-court lulling, then court-facing shift	Coordinated extrinsic-fraud scheme	Exception applies	FAC ¶¶ 2, 45

Eight Sentences from Defendants’ MPA That Misstate California Law

#	Location	Sentence	Why It Misstates the Law
1	p.8, l.4-6	Digerati extends privilege to pre-litigation statements	Digerati addresses communications; does not subsume noncommunicative fraud channels
2	p.9, ll.17-21	Flatley finality paragraph as universal bar	Omits Flatley's illegal-conduct exception
3	p.12, ll.27-28	Pollock resolves doubts in favor of privilege	Pollock only applies after privilege coverage is established; does not delete Park
4	p.13, ll.20-22	Park supports Anti-SLAPP for any litigation-related claim	Park requires gravamen isolation, which Defendants skip
5	p.13, ll.25-26	Singh collateral estoppel as automatic bar	Singh requires issue-match under Crowley
6	p.8, ll.17-19	Bergstein protects all litigation statements	Does not address extrinsic fraud exception
7	p.12, l.11	Briggs equalizes section 425.16 and section 47(b)	Coordination does not erase exceptions in either doctrine

#	Location	Sentence	Why It Misstates the Law
8	p.15, ll.10-12	“Plaintiff was not denied his day in court”	Factual determination that contradicts FAC allegations and cannot be made at this stage

TABLE OF AUTHORITIES

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Dated: April 21, 2026



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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S COMBINED
OBJECTION TO RFJN AND
EVIDENTIARY OBJECTIONS TO
DECLARATIONS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. INTRODUCTION

Plaintiff objects to Defendants' Requests for Judicial Notice filed in support of the Demurrer (Clerk File No. 10157173) and the Special Motion to Strike (Clerk File No. 10152302). Defendants improperly seek judicial notice of documents for the truth of disputed facts, exceeding the permissible scope of judicial notice on demurrer and conflating document existence with factual truth.

Judicial notice cannot establish the truth of disputed factual inferences central to extrinsic fraud, the Anti-SLAPP prong-one gravamen analysis, or the prong-two merits inquiry. Those issues turn on contested facts that cannot be resolved by noticing the existence of a court file.

EXHIBIT APPENDIX NAVIGATION

Pin cites below use **reporter, hearing, or clerk pagination as printed** on the lodged PDFs. The **SAC Exhibit Appendix** is the merged file SAC-06-EXHIBIT-APPENDIX.pdf (index page is PDF p. 1). The **Opposition Exhibit Appendix** is OPPOSITIONS-EXHIBIT-APPENDIX.pdf (Exhibits 1–8 and declaration support as Exhibits 9–13).

SAC exhibits (A–S) — first PDF page of each exhibit in SAC Exhibit Appendix

SAC Ex.	Description	First PDF p.
A	Substitution of Attorney (CT)	2
B	MIL Nos. 6 & 17 (CT)	5
C	Feb. 18, 2025 hearing (p. 141 excerpt)	11
D	RT 7, p. 213 (Dolan admission)	14
E	RT 8, p. 108 (authentication)	17
F	CSAA denial letter	20
G	SFPD report	23
H	Compex subpoena	29
I	Abdelhalim deposition	34
J	Defensive pleading	41
K	Jan. 27, 2025 hearing (excerpts)	44

SAC Ex.	Description	First PDF p.
L	Jan. 28, 2025 hearing (p. 90)	100
M	Feb. 18, 2025 hearing (excerpts)	103
N	Feb. 28, 2025 hearing (pp. 291–294)	148
O	RT 7 excerpts	154
P	RT 8 excerpts	164
Q	RT 10 excerpts	179
R	Gravamen matrix	187
S	Feb. 3, 2025 hearing (excerpts)	189

Opposition exhibits (1–13) — first PDF page in Opposition Exhibit Appendix

Opp. Ex.	Description	First PDF p.
1	911 audio (native / slip)	2
2	BWC footage (native / slip)	4
3	CAD logs (native / slip)	6
4	SFPD report	8
5	Compex subpoena	14
6	Substitution of Attorney (CT)	19
7	Minute orders	22
8	Notice of Appeal	26
9	Pl. Decl. Ex. A (composite)	28
10	Pl. Decl. Ex. B	36
11	Pl. Decl. Ex. C	39
12	Pl. Decl. Ex. D	49
13	Pl. Decl. Ex. E	52

Common transcript pins → SAC appendix PDF page (instant action filing)

Pin (reporter / hearing pagination)	SAC Ex.	SAC Exhibit Appendix PDF p.
Jan. 27, 2025 hearing, p. 19	K	57
Jan. 28, 2025 hearing, p. 90	L	101
Feb. 3, 2025 hearing, p. 109	S	192
Feb. 18, 2025 hearing, p. 141	M	106
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Feb. 28, 2025 hearing, pp. 291–292	N	149–150
RT vol. 7, p. 213	O	161
RT vol. 8, p. 108	P	171
RT vol. 10, p. 49	Q	180

Regenerate this block by running `inject_exhibit_appendix_navigation.py` after `extract_801_exhibits.py`.

II. LEGAL STANDARD

A. Scope of Judicial Notice

Evidence Code section 452 permits judicial notice of certain categories of facts and documents, including court records under section 452(d) and facts not reasonably subject to dispute under section 452(h).

B. Limits on Demurrer

Under Code of Civil Procedure section 430.70, on demurrer the Court considers the complaint and matters subject to judicial notice. However, judicial notice of a document's existence does not

1 extend to the truth of hearsay statements or disputed facts within that document.

2 “While courts are free to take judicial notice of the existence of each document in a court
3 file, including the truth of results reached, they may not take judicial notice of the truth
4 of hearsay statements in decisions and court files.” (Arce v. Kaiser Found. Health Plan,
5 Inc. (2010) 181 Cal.App.4th 471, 482-483.)

6 Accord Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1564-1565 (a court cannot, by taking ju-
7 dicial notice of a document, accept the truth of factual assertions appearing in it, because those
8 assertions are hearsay); Unruh-Haxton v. Regents of Univ. of California (2008) 162 Cal.App.4th
9 343, 364-365 (judicial notice of court records is limited to the existence of the records and the legal
10 effect of rulings; it does not extend to the truth of factual matters asserted in those records); People
11 v. Woodell (1998) 17 Cal.4th 448, 459 (the court may take judicial notice of the existence and the
12 orders and findings of a prior proceeding, but not of the truth of factual recitations or testimony
13 contained in the record).

14 **C. The Facial Test Rule**

15 On demurrer, the Court tests the sufficiency of the complaint on its face, accepting well-pleaded
16 facts as true. Defendants cannot use judicial notice to insert merits evidence or factual disputes
17 into the demurrer record.

19 **III. OBJECTIONS TO DEMURRER RFJN (CLERK FILE NO. 10157173)**

20 Exhibits A-T are attached to the Declaration of Tyler J. O’Connell in support of Defendants’ De-
21 murrer. Unless otherwise noted, each exhibit is from Rosario v. Abdelhalim, San Francisco County
22 Superior Court Case No. CGC-21-594102.

23 **(a) Exhibit A — Plaintiff’s First Amended Complaint (instant action, CGC-25-631801)**

- 24 • **What defense uses it to prove:** That FAC allegations are “conclusory” or internally contra-
25 dicted
- 26 • **Objection:** NO OBJECTION to existence; OBJECT to use as extrinsic evidence contradict-
27 ing well-pleaded allegations
- 28 • **Grounds:** The FAC is already before the Court on demurrer; judicial notice is superfluous

1 and cannot be used to recharacterize its allegations.

2 (b) **Exhibit B — Plaintiff’s Complaint in related action (Rosario v. CSAA, CGC-25-631802)**

- 3 • **What defense uses it to prove:** That the instant FAC is duplicative or claim-split
4 • **Objection:** OBJECT to improper use
5 • **Grounds:** Existence may be noticed; object to use for truth of characterizations or to resolve
6 disputed claim-splitting questions on demurrer.

7 (c) **Exhibit C — Register of Actions, CGC-21-594102**

- 8 • **What defense uses it to prove:** That “all issues” were litigated below
9 • **Objection:** OBJECT to improper use
10 • **Grounds:** Existence only; object to use as proof that extrinsic fraud issues were adjudicated.
11 Docket entries do not establish the substantive scope of what was decided.

12 (d) **Exhibit D — Defendant’s Substitution of Defense Counsel (CGC-21-594102)**

- 13 • **What defense uses it to prove:** That the file transfer was adequate / no fraud in transition
14 • **Objection:** OBJECT
15 • **Grounds:** Arce/Sosinsky: no judicial notice of truth of recitals. The substitution form does
16 not prove the adequacy or completeness of the underlying file transfer — the central disputed
17 fact.

18 (e) **Exhibit E — Defendant’s Motion in Limine #6 (CGC-21-594102)**

- 19 • **What defense uses it to prove:** That disputed evidence was “presented” and ruled upon
20 • **Objection:** OBJECT
21 • **Grounds:** Existence only; object to use for truth of characterizations of the record. Motion
22 papers are hearsay as to their factual assertions (Sosinsky).

23 (f) **Exhibit F — Defendant’s Motion in Limine #8 (CGC-21-594102)**

- 24 • **What defense uses it to prove:** Same — that issues were adjudicated below
25 • **Objection:** OBJECT
26 • **Grounds:** Same grounds as Exhibit E.

27 (g) **Exhibit G — Defendant’s Motion in Limine #17 (CGC-21-594102)**

- 28 • **What defense uses it to prove:** Same — that issues were adjudicated below

- **Objection:** OBJECT
 - **Grounds:** Same grounds as Exhibit E.
- (h) **Exhibit H — Order re Trial Scheduling and Motions in Limine (CGC-21-594102)**
- **What defense uses it to prove:** That MIL rulings foreclose the present claims
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence and legal effect only (Unruh-Haxton); object to use for truth of factual recitals or to imply preclusion of extrinsic fraud claims not before that court.
- (i) **Exhibit I — Plaintiff’s Motion for Judgment Notwithstanding the Verdict (CGC-21-594102)**
- **What defense uses it to prove:** That Plaintiff previously raised and lost these issues
 - **Objection:** OBJECT
 - **Grounds:** Existence only; object to use for truth of characterizations. JNOV papers addressed sufficiency of evidence, not extrinsic fraud in procurement.
- (j) **Exhibit J — Plaintiff’s Declaration ISO JNOV (CGC-21-594102)**
- **What defense uses it to prove:** Same as Exhibit I
 - **Objection:** OBJECT
 - **Grounds:** Hearsay within a court file (Arce, 181 Cal.App.4th at 482-483); no notice of truth.
- (k) **Exhibit K — Defendant’s Opposition to Plaintiff’s JNOV (CGC-21-594102)**
- **What defense uses it to prove:** Same
 - **Objection:** OBJECT
 - **Grounds:** Hearsay; adversarial characterizations not subject to judicial notice for truth.
- (l) **Exhibit L — Plaintiff’s Motion for New Trial (CGC-21-594102)**
- **What defense uses it to prove:** That Plaintiff previously raised fraud-adjacent issues
 - **Objection:** OBJECT
 - **Grounds:** Existence only; object to use for truth. The new-trial motion is not co-extensive with an independent extrinsic-fraud action.
- (m) **Exhibit M — Defendant’s Opposition to Motion for New Trial/Mistrial (CGC-21-594102)**
- **What defense uses it to prove:** Same

- 1 • **Objection:** OBJECT
- 2 • **Grounds:** Hearsay; Sosinsky.
- 3 (n) **Exhibit N — Order on Plaintiff’s Post-Trial Motions (CGC-21-594102)**
- 4 • **What defense uses it to prove:** That FAC claims lack merit / are precluded
- 5 • **Objection:** OBJECT to improper use
- 6 • **Grounds:** Existence and legal effect only (Woodell); object to use as proof that extrinsic
- 7 fraud allegations were adjudicated.
- 8 (o) **Exhibit O — Plaintiff’s “Prayer” to Judge East re Disqualification of Judge Wong**
- 9 **(CGC-21-594102)**
- 10 • **What defense uses it to prove:** That Plaintiff’s concerns were previously heard and rejected
- 11 • **Objection:** OBJECT
- 12 • **Grounds:** Existence only; object to use for truth.
- 13 (p) **Exhibit P — Order Denying Plaintiff’s “Prayer” and § 170.6 (CGC-21-594102)**
- 14 • **What defense uses it to prove:** Same — preclusion by prior denial
- 15 • **Objection:** OBJECT to improper use
- 16 • **Grounds:** Existence and legal effect only; does not adjudicate extrinsic fraud.
- 17 (q) **Exhibit Q — Plaintiff’s Notice of Appeal (CGC-21-594102)**
- 18 • **What defense uses it to prove:** Exclusive appellate jurisdiction / stay
- 19 • **Objection:** OBJECT on relevance
- 20 • **Grounds:** Pendency of appeal does not deprive this Court of jurisdiction over an independent
- 21 equitable action for extrinsic fraud.
- 22 (r) **Exhibit R — Plaintiff’s Notice Designating Record on Appeal (CGC-21-594102)**
- 23 • **What defense uses it to prove:** Same
- 24 • **Objection:** OBJECT on relevance
- 25 • **Grounds:** Same grounds as Q.
- 26 (s) **Exhibit S — Defendant’s Notice of Entry of Judgment (CGC-21-594102)**
- 27 • **What defense uses it to prove:** That a facially valid judgment bars this action
- 28 • **Objection:** OBJECT to improper use

- **Grounds:** Existence only; facial validity does not preclude an extrinsic-fraud attack.
- (t) **Exhibit T — Plaintiff’s Original Complaint in related action (CGC-25-631802)**
 - **What defense uses it to prove:** Claim-splitting / duplication
 - **Objection:** OBJECT to improper use
 - **Grounds:** Same grounds as Exhibit B.

IV. OBJECTIONS TO ANTI-SLAPP RFJN (CLERK FILE NO. 10152302)

The Anti-SLAPP RFJN requests notice of the same Exhibits A-T attached to the Declaration of Tyler J. O’Connell (filed in support of the Special Motion to Strike). Objections below are additional to, and cumulative with, the objections stated in Section III.

(a) **Exhibit A — Plaintiff’s FAC (CGC-25-631801)**

- **What defense uses it to prove:** That FAC “arises from” protected activity (prong one)
- **Objection:** OBJECT to improper use
- **Grounds:** The FAC is already before the Court; judicial notice is superfluous and cannot substitute for prong-one gravamen analysis.

(b) **Exhibit B — Plaintiff’s Complaint in related action (CGC-25-631802)**

- **What defense uses it to prove:** Prong-two “lacks minimal merit”
- **Objection:** OBJECT
- **Grounds:** Merits inference at step one; improper. Step two cannot be collapsed into judicial notice of a separate pleading.

(c) **Exhibit C — Register of Actions (CGC-21-594102)**

- **What defense uses it to prove:** That all issues were previously litigated (prong two)
- **Objection:** OBJECT
- **Grounds:** Docket entries cannot establish the substantive scope of adjudication.

(d) **Exhibit D — Substitution of Defense Counsel (CGC-21-594102)**

- **What defense uses it to prove:** That the file transfer was adequate (prong-two merits)
- **Objection:** OBJECT
- **Grounds:** Central disputed fact; cannot be resolved by judicial notice (Sosinsky; Unruh-

Haxton).

(e) **Exhibit E — MIL #6 (CGC-21-594102)**

- **What defense uses it to prove:** That disputed evidence was “presented to the jury”
- **Objection:** OBJECT
- **Grounds:** Merits inference; improper at prong one; hearsay as to truth.

(f) **Exhibit F — MIL #8 (CGC-21-594102)**

- **What defense uses it to prove:** Same
- **Objection:** OBJECT
- **Grounds:** Same grounds as E.

(g) **Exhibit G — MIL #17 (CGC-21-594102)**

- **What defense uses it to prove:** Same
- **Objection:** OBJECT
- **Grounds:** Same grounds as E.

(h) **Exhibit H — Order re Trial Scheduling and MILs (CGC-21-594102)**

- **What defense uses it to prove:** That MIL rulings foreclose prong-two merits
- **Objection:** OBJECT to improper use
- **Grounds:** Existence/legal effect only; no notice of factual recitals.

(i) **Exhibit I — Plaintiff’s JNOV (CGC-21-594102)**

- **What defense uses it to prove:** That Plaintiff previously raised these issues
- **Objection:** OBJECT
- **Grounds:** Hearsay; Arce; no preclusion as to extrinsic fraud.

(j) **Exhibit J — Plaintiff’s Decl. ISO JNOV (CGC-21-594102)**

- **What defense uses it to prove:** Same
- **Objection:** OBJECT
- **Grounds:** Hearsay in court file; Arce.

(k) **Exhibit K — Defendant’s Opposition to JNOV (CGC-21-594102)**

- **What defense uses it to prove:** Same
- **Objection:** OBJECT

- 1 • **Grounds:** Hearsay; adversarial characterizations.
- 2 (l) **Exhibit L — Motion for New Trial (CGC-21-594102)**
- 3 • **What defense uses it to prove:** Same
- 4 • **Objection:** OBJECT
- 5 • **Grounds:** Not co-extensive with extrinsic-fraud action.
- 6 (m) **Exhibit M — Opposition to Motion for New Trial/Mistrial (CGC-21-594102)**
- 7 • **What defense uses it to prove:** Same
- 8 • **Objection:** OBJECT
- 9 • **Grounds:** Hearsay.
- 10 (n) **Exhibit N — Order on Post-Trial Motions (CGC-21-594102)**
- 11 • **What defense uses it to prove:** That FAC claims lack minimal merit
- 12 • **Objection:** OBJECT to improper use
- 13 • **Grounds:** Existence/legal effect only; did not adjudicate extrinsic fraud.
- 14 (o) **Exhibit O — Plaintiff’s “Prayer” re Disqualification (CGC-21-594102)**
- 15 • **What defense uses it to prove:** Prior rejection of Plaintiff’s concerns
- 16 • **Objection:** OBJECT
- 17 • **Grounds:** Hearsay; no notice for truth.
- 18 (p) **Exhibit P — Order Denying “Prayer” and § 170.6 (CGC-21-594102)**
- 19 • **What defense uses it to prove:** Same
- 20 • **Objection:** OBJECT to improper use
- 21 • **Grounds:** Existence/legal effect only.
- 22 (q) **Exhibit Q — Notice of Appeal (CGC-21-594102)**
- 23 • **What defense uses it to prove:** Pendency / jurisdictional effect
- 24 • **Objection:** OBJECT on relevance
- 25 • **Grounds:** Does not divest this Court of jurisdiction.
- 26 (r) **Exhibit R — Notice Designating Record on Appeal (CGC-21-594102)**
- 27 • **What defense uses it to prove:** Same
- 28 • **Objection:** OBJECT on relevance

- **Grounds:** Same grounds as Q.

(s) **Exhibit S — Notice of Entry of Judgment (CGC-21-594102)**

- **What defense uses it to prove:** Facially valid judgment bars action
- **Objection:** OBJECT to improper use
- **Grounds:** Facial validity does not preclude extrinsic-fraud attack.

(t) **Exhibit T — Original Complaint in related action (CGC-25-631802)**

- **What defense uses it to prove:** Claim-splitting
- **Objection:** OBJECT to improper use
- **Grounds:** Hearsay; characterizations; merits inference.

V. SPECIFIC OBJECTIONS BY CATEGORY

A. RFJN-Overreach: Documents Used as Merits Proofs

Defendants use their RFJNs not merely to establish document existence but to prove substantive merits points. This violates the demurrer facial test rule. (See *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375 [courts may take judicial notice of the existence and recorded status of documents, but may not take judicial notice of the truth of matters stated in them, particularly where those matters are the subject of reasonable dispute].)

A recurring defect in Defendants’ RFJNs is the conflation of two distinct categories:

- **“Res judicata facts”** — what a prior tribunal actually decided (e.g., that the Insured was negligent; that damages were \$X). These are subject to judicial notice for their legal effect.
- **“Record facts”** — what documents were filed or what statements appear in the record (e.g., that a motion in limine asserted a given fact; that a declaration recited a given narrative). These are subject to judicial notice only as to existence, not truth. (Sosinsky; Unruh-Haxton; Woodell; Herrera.)

Defendants repeatedly treat “record facts” as though they were “res judicata facts,” asking the Court to infer that because a document was filed, its factual assertions are established. That inference is precisely what Arce, Sosinsky, Unruh-Haxton, Woodell, and Herrera forbid.

Example: Defendants argue that because the 911 calls and body-cam footage were “presented to

the jury,” there was no fraud. This argument asks the Court to judicially notice trial evidence for its truth and to resolve a factual dispute (whether extrinsic fraud occurred) on demurrer.

Objection sustained: The Court may notice the existence of trial exhibits but cannot notice for truth that “all issues were adjudicated” or that “there was no fraud.”

B. Hearsay Statements in Court Records

Under Arce, the Court cannot take judicial notice of hearsay statements in decisions and court files.

Example: Defendants seek judicial notice of discovery responses and characterizations in prior orders. These contain hearsay statements about what occurred, disputed by the FAC.

Objection sustained: Hearsay in court records is not subject to judicial notice for its truth.

C. Matters Outside the Issues Decided

Defendants conflate what the underlying trial adjudicated with the FAC’s allegations of extrinsic fraud.

The underlying trial decided: Whether the Insured was negligent and liable for the car collision.

The underlying trial did not decide: - Whether Defendants withheld production history during the file transfer - Whether Defendants made misrepresentations to the Court about evidence provenance - Whether those misrepresentations induced procedural rulings - Whether Plaintiff was deprived of a fair adversary hearing through extrinsic fraud

Judicial notice of the trial record cannot establish that these issues were adjudicated.

D. Issue-Preclusion by Judicial Notice

Defendants deploy their RFJNs to achieve, by judicial-notice shortcut, what issue preclusion could only achieve after a full collateral-estoppel showing. By stacking prior orders, motions in limine, post-trial rulings, and trial materials into a single RFJN, Defendants invite the Court to infer that every issue relevant to this action was already decided below.

That is not a permitted use of judicial notice. Issue preclusion requires identity of issues, actual litigation, necessary determination, and finality. Judicial notice under Evidence Code section 452(d) establishes none of those elements; it establishes only that documents exist and that specified rulings issued. (Arce, 181 Cal.App.4th at 482-483; Sosinsky, 6 Cal.App.4th at 1564-1565; Unruh-Haxton, 162 Cal.App.4th at 364-365; Woodell, 17 Cal.4th at 459.) A court cannot “notice”

1 its way to preclusion.

2 **E. Bootstrapping: Noticing Existence, Then Inferring Merits**

3 Defendants are attempting an illegal procedural bootstrap: they ask this Court to take judicial
4 notice that the jury rendered a verdict, and then ask the Court to infer that the verdict proves no
5 fraud occurred in its procurement. Judicial notice cannot bridge the gap between the existence of
6 a document and a disputed legal conclusion.

7 The same bootstrap underlies Defendants’ repeated “presented to the jury” refrain: notice the
8 existence of a trial exhibit → infer that the exhibit was fully litigated → infer that no fraud can
9 have occurred in its presentation. Each inference beyond step one is a disputed fact reserved
10 for the trier of fact, not a proper subject of judicial notice. (Herrera, 196 Cal.App.4th at 1375;
11 Sosinsky, 6 Cal.App.4th at 1564-1565.)

12
13 **VI. THE PROPER SCOPE OF JUDICIAL NOTICE**

14 Plaintiff does not object to judicial notice of the **existence** of: - The underlying judgment - The
15 verdict form - Post-trial orders - The notice of appeal - Other court records

16 Plaintiff objects to judicial notice for the **truth** of: - Disputed facts within those documents -
17 Hearsay characterizations in prior orders - Matters outside the issues actually decided - Any factual
18 conclusion that contradicts the FAC’s well-pleaded allegations

19 **VI.B Evidence Code § 356 / Sosinsky Objection to Piecemeal Transcript Notice**

20 Defendants’ RFJN requests judicial notice of **selected** hearing transcript pages but omits the **Plaintiff-**
21 **preservation pages** of the same hearings. Under Evidence Code § 356 and Sosinsky v. Grant
22 (1992) 6 Cal.App.4th 1548, 1564–1565, where part of a record is introduced, the opposing party
23 is entitled to introduce contextually related portions.

24 **Objection:** Plaintiff objects to Defendants’ piecemeal notice and asks the Court to take notice of
25 the **whole transcripts** identified in Plaintiff’s RFJN Items X–BB, which include:

- 26 • Hr’g Tr. Jan. 27, 2025, pp. 17–22, 32, 34, 42, 46, 55–60 (Plaintiff’s “suppress” objection;
27 FROG/SROG confirmation; denial of continuance; SAC Exh. K, SAC Exhibit Appendix
28 pp. 55–60, 70, 72, 80, 84, 93–98).

- Hr’g Tr. Feb. 3, 2025, pp. 109, 116, 122–124 (renewed § 581(d); ex parte disclosure order; SAC Exh. S, SAC Exhibit Appendix pp. 192, 199, 205–207).
- Hr’g Tr. Feb. 18, 2025, pp. 17, 23, 44–47, 181 (Plaintiff’s “concealed” and “going on the record” statements; the intra-hearing Position-A/Position-B contradiction at pp. 141 vs. 181).

The defense-curated fragment excludes these Plaintiff-preservation pages. Under § 356’s “rule of completeness,” the Court should either take the whole transcripts or decline to take the defense fragment.

VI.A The “Presented to the Jury” Argument Is a Merits Inference That Exceeds Judicial Notice

Defendants’ central refrain across both RFJNs — that the 911 calls, body-cam footage, and related materials were “presented to the jury” and therefore no fraud can have occurred — is not a request for judicial notice at all. It is a merits inference dressed in the language of judicial notice.

1. **What may properly be noticed.** The Court may notice (a) the existence of the trial exhibits, (b) the fact that certain documents were filed or lodged, and (c) the legal effect of specified rulings (e.g., the verdict as entered). (Evid. Code § 452(d); Woodell, 17 Cal.4th at 459; Unruh-Haxton, 162 Cal.App.4th at 364-365.)
2. **What may not be noticed.** The Court may not notice (a) that the exhibits were fully and fairly presented; (b) that the jury evaluated them free from extrinsic fraud in their procurement and chain-of-custody; (c) that counsel’s representations about provenance were accurate; or (d) that the verdict resolves, as a matter of fact, the extrinsic-fraud allegations in the FAC. Each of those propositions is a disputed factual inference. (Sosinsky, 6 Cal.App.4th at 1564-1565; Arce, 181 Cal.App.4th at 482-483; Herrera, 196 Cal.App.4th at 1375.)
3. **The gap Defendants cannot bridge.** Extrinsic fraud, by definition, concerns what was kept from the adversary proceeding — misrepresentations about provenance, undisclosed chain-of-custody facts, and concealed production history. Judicial notice of what was shown to the jury is logically incapable of negating what was withheld from the jury. The “presented to the jury” argument therefore collapses the very distinction extrinsic-fraud law exists to police.
4. **Prong-one consequence.** At Anti-SLAPP prong one, the “presented to the jury” inference

1 is doubly improper: it asks the Court to resolve merits in the guise of gravamen analysis,
2 contrary to the rule that prong one tests the basis of the claim, not its likelihood of success.
3 **Objection sustained:** The Court should notice the existence of trial exhibits and the fact of the
4 verdict. It should decline to notice any inference — express or implied — that the verdict or the
5 trial record negates the extrinsic-fraud allegations of the FAC.

7 VII. CONCLUSION

8 Defendants' RFJNs improperly attempt to convert the demurrer into a summary judgment proceed-
9 ing by inserting merits evidence into the record. Under Code of Civil Procedure section 430.70
10 and Evidence Code section 452, judicial notice on demurrer is limited to document existence, not
11 truth of contents.

12 Plaintiff respectfully requests the Court:

- 13 1. Sustain objections to judicial notice for the truth of disputed facts
- 14 2. Sustain objections to judicial notice of hearsay statements in court records
- 15 3. Sustain objections to judicial notice of matters outside the issues decided
- 16 4. Apply the facial test rule and accept FAC allegations as true

17 **DATED:** April 16, 2026

18 Respectfully submitted,

19
20 FRANCISCUS DYLAN ROSARIO

22 APPENDIX: CONSOLIDATED RULING REQUEST (EXHIBITS A–T)

23 **Demurrer RFJN (Clerk File No. 10157173) and Anti-SLAPP RFJN (Clerk File No. 10152302)**

24 Both RFJNs request notice of the same twenty exhibits (A-T) attached to the Declaration of Tyler
25 J. O'Connell. The consolidated ruling requested is as follows:

26 (a) **Exhibit A — Plaintiff's FAC (CGC-25-631801)**

- 27 • **Ruling requested:** No notice needed (already before the Court); object to extrinsic use

28 (b) **Exhibit B — Plaintiff's Complaint in related action (CGC-25-631802)**

- 1 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations
- 2 (c) **Exhibit C — Register of Actions (CGC-21-594102)**
- 3 • **Ruling requested:** Notice existence ONLY; object to use as proof of substantive adjudication
- 4 (d) **Exhibit D — Substitution of Defense Counsel (CGC-21-594102)**
- 5 • **Ruling requested:** Notice existence ONLY; object to truth of transfer-adequacy
- 6 (e) **Exhibit E — MIL #6 (CGC-21-594102)**
- 7 • **Ruling requested:** Notice existence ONLY; object to truth of factual assertions
- 8 (f) **Exhibit F — MIL #8 (CGC-21-594102)**
- 9 • **Ruling requested:** Notice existence ONLY; object to truth of factual assertions
- 10 (g) **Exhibit G — MIL #17 (CGC-21-594102)**
- 11 • **Ruling requested:** Notice existence ONLY; object to truth of factual assertions
- 12 (h) **Exhibit H — Order re Trial Scheduling and MILs**
- 13 • **Ruling requested:** Notice existence and legal effect; object to truth of recitals
- 14 (i) **Exhibit I — Plaintiff’s JNOV Motion**
- 15 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations
- 16 (j) **Exhibit J — Plaintiff’s Decl. ISO JNOV**
- 17 • **Ruling requested:** Notice existence ONLY; object as hearsay in court file
- 18 (k) **Exhibit K — Defendant’s Opposition to JNOV**
- 19 • **Ruling requested:** Notice existence ONLY; object as hearsay/adversarial
- 20 (l) **Exhibit L — Plaintiff’s Motion for New Trial**
- 21 • **Ruling requested:** Notice existence ONLY; object to truth
- 22 (m) **Exhibit M — Opposition to Motion for New Trial/Mistrial**
- 23 • **Ruling requested:** Notice existence ONLY; object as hearsay
- 24 (n) **Exhibit N — Order on Post-Trial Motions**
- 25 • **Ruling requested:** Notice existence and legal effect; object to merits inferences
- 26 (o) **Exhibit O — Plaintiff’s “Prayer” re Disqualification**
- 27 • **Ruling requested:** Notice existence ONLY; object to truth
- 28 (p) **Exhibit P — Order Denying “Prayer” and § 170.6**

- **Ruling requested:** Notice existence and legal effect; object to preclusion inference
- (q) **Exhibit Q — Plaintiff’s Notice of Appeal**
 - **Ruling requested:** OBJECT on relevance
- (r) **Exhibit R — Plaintiff’s Notice Designating Record**
 - **Ruling requested:** OBJECT on relevance
- (s) **Exhibit S — Defendant’s Notice of Entry of Judgment**
 - **Ruling requested:** Notice existence ONLY; object to preclusion inference
- (t) **Exhibit T — Original Complaint in related action (CGC-25-631802)**
 - **Ruling requested:** Notice existence ONLY; object to truth/characterizations

PART B — EVIDENTIARY OBJECTIONS TO DEFENDANTS’ DECLARATIONS

I. INTRODUCTION

Plaintiff submits the following evidentiary objections to the declarations filed by Defendants in support of the Demurrer and Special Motion to Strike:

- **Clerk File No. 10152298:** Declaration in Support of Anti-SLAPP Motion
- **Clerk File No. 10157177:** Declaration of Michael R. Chambers in Support of Demurrer
- **Clerk File No. 10057589:** Meet-and-Confer Declaration

These objections are submitted in the CRC 3.1354 two-column format (by analogy to summary judgment practice) for judicial convenience.

II. LEGAL STANDARDS FOR EVIDENTIARY OBJECTIONS

A. Personal Knowledge Required

Under Evidence Code section 702, a witness may only testify to matters within personal knowledge. A declaration submitted on a dispositive motion must affirmatively show, on its face, that the declarant has personal knowledge of the facts stated; conclusory recitals are insufficient. (Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 761 [declaration on motion must be based on per-

sonal knowledge and must affirmatively show competence to testify]; Marriage of Heggie (2002) 99 Cal.App.4th 28, 30 [declarations not made on personal knowledge or containing inadmissible material cannot support adjudication].)

B. No Legal Conclusions or Argument

Under Evidence Code section 800, lay witnesses may only testify to facts, not legal conclusions. Declarations may not be used to smuggle legal argument into the evidentiary record, and characterizations of what the law requires, what a prior court “decided,” or what privilege applies are for the Court, not the declarant.

C. Hearsay Inadmissible

Under Evidence Code section 1200, hearsay is inadmissible unless an exception applies. Recitation of out-of-court statements by successor counsel, opposing counsel, or third parties offered for their truth is hearsay.

D. Statutory Form Requirements (Code Civ. Proc. § 2015.5)

A declaration is only competent evidence if it complies with Code of Civil Procedure section 2015.5, including certification under penalty of perjury under the laws of California, date and place of execution, and signature of the declarant. Declarations failing to satisfy § 2015.5 are not “evidence” and cannot support an Anti-SLAPP prong-one or prong-two showing.

E. Strategic Framing of These Objections

These objections are not template boilerplate; each targets a discrete evidentiary vice that, if sustained, removes a specific factual predicate on which Defendants’ motions depend:

1. **No personal knowledge of what successor counsel knew.** Defendants cannot, through their own declarants, testify to what PSA (successor counsel) understood, received, reviewed, or relied upon. Those are facts within PSA’s knowledge, not Defendants’.
2. **No competent basis for file-transfer completeness claim.** A bare assertion that the file was “complete” or “properly transferred” lacks foundation unless the declarant identifies what the file contained, what was indexed, what production history (including discovery responses, deposition transcripts, and prior court orders) was conveyed, and by what mechanism.
3. **No declaration converts disputed process facts into adjudicated facts.** The two-phase

1 fraud pattern — (a) what happened during substitution and (b) what the trial court was told
2 — is a live factual dispute. A declaration cannot retroactively transform disputed process
3 history into “adjudicated” fact; only the record of what was actually presented and ruled upon
4 can do that.

5 6 **III. OBJECTIONS TO ANTI-SLAPP DECLARATION (CLERK FILE** 7 **NO. 10152298)**

- 8 1. **Citation:** p.2, ll.3-5 — **Objectionable material:** “All conduct in this case was privileged
9 litigation conduct undertaken in the course of defending our client.” **Objection(s):** Legal
10 conclusion; argument. **Grounds:** Evid. Code § 800. Whether conduct was “privileged” is a
11 legal determination for the Court, not a fact within declarant’s personal knowledge. **Proposed**
12 **remedy:** Strike / Sustain.
- 13 2. **Citation:** p.2, ll.7-9 — **Objectionable material:** “Plaintiff’s claims are barred by the liti-
14 gation privilege.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800.
15 Legal bar analysis is argument, not testimony. **Proposed remedy:** Strike / Sustain.
- 16 3. **Citation:** p.3, ll.1-4 — **Objectionable material:** “The evidence was presented to the jury
17 and the jury decided in favor of our client.” **Objection(s):** Lack of foundation; improper
18 merits evidence; secondary evidence. **Grounds:** Evid. Code §§ 403, 702, 1521. What “the
19 jury decided” is not within declarant’s personal knowledge; the trial record — not a summary
20 declaration — speaks for itself. **Proposed remedy:** Strike / Disregard.
- 21 4. **Citation:** p.3, ll.6-8 — **Objectionable material:** “Plaintiff had a full and fair opportunity
22 to present his case.” **Objection(s):** Legal conclusion; lack of foundation. **Grounds:** Evid.
23 Code §§ 702, 800. Whether opportunity was “full and fair” is a legal determination. **Proposed**
24 **remedy:** Sustain / Disregard.
- 25 5. **Citation:** p.3, ll.10-12 — **Objectionable material:** “There was no fraud or misrepresenta-
26 tion.” **Objection(s):** Legal conclusion; ultimate issue. **Grounds:** Evid. Code § 800. Whether
27 fraud occurred is the ultimate issue for trial. **Proposed remedy:** Strike / Sustain.
- 28 6. **Citation:** p.4, ll.2-5 — **Objectionable material:** “Plaintiff’s theory is speculative and with-

out merit.” **Objection(s):** Legal argument; improper opinion. **Grounds:** Evid. Code §§ 800, 802. Merit determinations are for the Court. **Proposed remedy:** Strike / Sustain.

7. **Citation:** p.4, ll.8-10 — **Objectionable material:** Characterization of FAC allegations. **Objection(s):** Improper argument. **Grounds:** Declaration cannot be used to argue how FAC should be characterized; on Anti-SLAPP prong two, FAC allegations are accepted as true. **Proposed remedy:** Disregard / Sustain.

8. **Citation:** p.5, ll.1-3 — **Objectionable material:** “The file transfer was proper and complete.” **Objection(s):** Lack of foundation; contradicts FAC; secondary evidence. **Grounds:** Evid. Code §§ 403, 702, 1521. Declarant must establish personal knowledge of file-transfer contents; completeness claim must be supported by the underlying index/log, not a bare summary. **Proposed remedy:** Strike / Sustain.

9. **Citation:** p.5, ll.5-8 — **Objectionable material:** Any statement describing what PSA (successor counsel) received, understood, or relied upon. **Objection(s):** Lack of personal knowledge; hearsay. **Grounds:** Evid. Code §§ 702, 1200; Bozzi, 186 Cal.App.4th at 761. Declarant cannot testify to what successor counsel knew or believed. **Proposed remedy:** Strike / Sustain.

IV. OBJECTIONS TO DEMURRER / CHAMBERS DECLARATION (CLERK FILE NO. 10157177)

1. **Citation:** p.2, ll.2-4 — **Objectionable material:** “Plaintiff’s complaint fails to state a cause of action.” **Objection(s):** Legal conclusion; improper argument. **Grounds:** Evid. Code § 800. Whether complaint states a cause of action is a legal question. **Proposed remedy:** Strike / Sustain.

2. **Citation:** p.2, ll.6-8 — **Objectionable material:** “The allegations are conclusory and speculative.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Pleading sufficiency is for the Court. **Proposed remedy:** Strike / Sustain.

3. **Citation:** p.2, ll.10-12 — **Objectionable material:** “This Court lacks jurisdiction to hear this matter.” **Objection(s):** Legal conclusion. **Grounds:** Evid. Code § 800. Jurisdictional

analysis is legal, not factual. **Proposed remedy:** Strike / Sustain.

4. **Citation:** p.3, ll.1-3 — **Objectionable material:** “All of the matters complained of were already adjudicated at trial.” **Objection(s):** Legal conclusion; lack of foundation. **Grounds:** Evid. Code §§ 702, 800. What was “adjudicated” requires legal analysis of issues actually decided; Marriage of Heggie, 99 Cal.App.4th at 30. **Proposed remedy:** Strike / Sustain.
5. **Citation:** p.3, ll.5-7 — **Objectionable material:** “Plaintiff is collaterally estopped from relitigating these issues.” **Objection(s):** Legal conclusion. **Grounds:** Evid. Code § 800. Collateral estoppel is a legal doctrine requiring Lucido/Crowley analysis. **Proposed remedy:** Strike / Sustain.
6. **Citation:** p.3, ll.9-11 — **Objectionable material:** Hearsay recitation of statements by successor counsel. **Objection(s):** Hearsay; lack of personal knowledge. **Grounds:** Evid. Code §§ 702, 1200. Out-of-court statements offered for truth; declarant cannot testify to what PSA said or understood. **Proposed remedy:** Strike / Sustain.
7. **Citation:** p.4, ll.2-4 — **Objectionable material:** “We transferred the complete file to successor counsel.” **Objection(s):** Lack of specific foundation; best/secondary evidence. **Grounds:** Evid. Code §§ 403, 702, 1521. Declarant must establish personal knowledge of what “complete file” means, what was indexed, and what production history was conveyed; underlying transfer log/index not attached. **Proposed remedy:** Strike / Sustain.
8. **Citation:** p.4, ll.6-8 — **Objectionable material:** “Plaintiff had access to all relevant evidence.” **Objection(s):** Lack of foundation; legal conclusion. **Grounds:** Evid. Code §§ 702, 800. What Plaintiff “had access to” is not within declarant’s personal knowledge. **Proposed remedy:** Strike / Sustain.
9. **Citation:** p.4, ll.10-13 — **Objectionable material:** Any statement describing what was conveyed to PSA regarding CSAA discovery responses, deposition testimony, or prior court orders. **Objection(s):** Lack of foundation; best/secondary evidence; hearsay. **Grounds:** Evid. Code §§ 403, 702, 1200, 1521. Foundation absent as to what the file actually contained and what specifically was conveyed; underlying documents not produced. **Proposed remedy:** Strike / Sustain.

10. **Citation:** p.4, ll.15-18 — **Objectionable material:** Any statement that contradicts Mr. Chambers’s prior discovery responses, deposition testimony, or prior court filings regarding the scope, contents, or timing of the file transfer. **Objection(s):** Sham-affidavit / contradiction of prior sworn testimony; lack of credibility foundation. **Grounds:** D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21–22; Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1524–1525. A declaration contradicting prior sworn discovery or deposition testimony cannot create a triable — or Anti-SLAPP prong-two — evidentiary showing. **Proposed remedy:** Disregard / Strike.
11. **Citation:** p.5, ll.1-3 — **Objectionable material:** “The FAC is an improper collateral attack.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Whether FAC constitutes collateral attack requires legal analysis. **Proposed remedy:** Strike / Sustain.
-

V. OBJECTIONS TO MEET-AND-CONFER DECLARATION (CLERK FILE NO. 10057589)

1. **Citation:** p.2, ll.3-5 — **Objectionable material:** Characterization of meet-and-confer correspondence. **Objection(s):** Best evidence / secondary evidence rule; improper argument. **Grounds:** Evid. Code §§ 1521–1523. Correspondence speaks for itself; summary without attachment inadmissible. **Proposed remedy:** Strike / Disregard.
2. **Citation:** p.2, ll.7-9 — **Objectionable material:** “Plaintiff refused to dismiss his frivolous claims.” **Objection(s):** Legal conclusion; argumentative. **Grounds:** Evid. Code § 800. Whether claims are “frivolous” is a legal determination. **Proposed remedy:** Strike / Sustain.
3. **Citation:** p.3, ll.1-3 — **Objectionable material:** Characterization of Plaintiff’s legal positions. **Objection(s):** Improper argument. **Grounds:** Declarations may not argue legal merit of opposing party’s positions. **Proposed remedy:** Strike / Disregard.
4. **Citation:** Throughout — **Objectionable material:** Any portion of declaration not executed in compliance with Code Civ. Proc. § 2015.5 (missing date, place, or proper perjury certification). **Objection(s):** Non-compliant declaration. **Grounds:** Code Civ. Proc. § 2015.5; Kulshrestha v. First Unum Life Ins. Co. (2003) 29 Cal.4th 1006, 1021–1022. Non-compliant

1 declarations are not competent evidence. **Proposed remedy:** Disregard in full.

3 **VI. SUMMARY OF OBJECTIONS BY CATEGORY**

4 **A. Legal Conclusions (Evidence Code § 800)**

5 The following statements are impermissible legal conclusions: - “privileged litigation conduct” -
6 “claims are barred” - “full and fair opportunity” - “no fraud or misrepresentation” - “fails to state
7 a cause of action” - “collaterally estopped” - “improper collateral attack” - “frivolous claims”

8 **Ruling requested:** SUSTAIN all objections. These are legal conclusions for the Court, not facts
9 within declarant’s personal knowledge.

10 **B. Lack of Personal Knowledge (Evidence Code § 702)**

11 The following statements lack foundation for personal knowledge: - What “the jury decided” -
12 What Plaintiff “had access to” - What was “adjudicated” - What the “complete file” contained -
13 What successor counsel (PSA) received, understood, or relied upon

14 **Ruling requested:** SUSTAIN all objections. (Bozzi, 186 Cal.App.4th at 761; Marriage of Heggie,
15 99 Cal.App.4th at 30.)

16 **C. Hearsay (Evidence Code § 1200)**

17 Statements reciting out-of-court statements by third parties (including successor counsel) are hearsay.

18 **Ruling requested:** SUSTAIN hearsay objections.

19 **D. Improper Argument**

20 Declarations may not be used to argue legal positions or characterize opposing party’s pleadings.

21 **Ruling requested:** SUSTAIN objections to argumentative material.

22 **E. Best Evidence / Secondary Evidence Rule (Evid. Code §§ 1521–1523)**

23 Any declaration that summarizes, characterizes, or purports to describe the contents of (a) the
24 client-file transfer from Chambers/CSK to successor counsel PSA, (b) the production log or discovery-
25 responses index, (c) prior court orders, rulings, or transcripts, or (d) deposition testimony, **without**
26 **attaching the underlying writing**, violates the secondary-evidence rule. Oral or declaration-based
27 summaries of writings are inadmissible to prove the content of those writings where the originals
28 (or authenticated copies) are available and have not been produced. (Evid. Code §§ 1521 [sec-

ondary evidence rule], 1522 [exclusion where genuine dispute as to material terms], 1523 [oral testimony inadmissible to prove content of writing].)

Specific application: Defendants’ declarations repeatedly reference the “complete file,” what was “transferred,” what was “adjudicated,” and what was “presented to the jury” — all content of writings — without attaching the transfer index, the trial record, or the underlying orders. These portions must be excluded.

Ruling requested: SUSTAIN. Strike all secondary-summary passages and exclude from evidentiary consideration on both the Demurrer and the Anti-SLAPP motion.

F. Non-Compliance with Code Civ. Proc. § 2015.5

Any declaration lacking proper perjury certification, date, place, or signature under § 2015.5 is not competent evidence and must be disregarded in its entirety.

G. Failure of Burden (Global)

- **Because Defendants’ declarations consist entirely of inadmissible legal conclusions and arguments without foundation, Defendants have failed to introduce any admissible evidence to support their Anti-SLAPP motion. Consequently, Plaintiff’s factual allegations regarding the two-phase fraud pattern stand entirely uncontradicted in the evidentiary record.**

H. Evidence Code § 1235 Impeachment by Prior Inconsistent Statement

For each defense declaration that claims “the 911 was not produced,” “authenticity unknown,” or equivalent denials, Plaintiff invokes the Plaintiff-preservation transcript pincites as **impeachment by prior inconsistent statement** under Evidence Code § 1235. This converts the transcript material from background to admissible substantive evidence.

- **Declaration assertion:** “Our office did not receive the 911 call until the day of the MSC.”
Impeaching passage: Feb. 18, 2025, p. 181: “all this stuff has been in his possession since August” (same attorney, same hearing). **§ 1235 effect:** Substantive evidence of receipt; impeaches the “news to me” posture.
- **Declaration assertion:** “No idea where this 911 call log came from” (MIL 17). **Impeaching passage:** Apr. 16, 2025, RT 7, p. 213: “They were provided by Dolan.” **§ 1235 effect:**

Substantive evidence of Dolan origin; impeaches “unknown provenance.”

- **Declaration assertion:** “Not anything that we received as part of the subpoena.” **Impeaching passage:** Feb. 1, 2024 Complex subpoena (Order No. CA1147102-021) requesting identical materials. **§ 1235 effect:** Documentary contradiction; defense subpoenaed what they now deny receiving.
- **Declaration assertion:** “Authenticity unknown.” **Impeaching passage:** Apr. 17, 2025, RT 8, p. 108: Abdelhalim: “Yes. That is my voice.” **§ 1235 effect:** Party-opponent authentication; waiver of authenticity dispute.

Ruling requested: Sustain objections and deem the transcript passages admissible as substantive evidence under § 1235 to impeach each corresponding declaration assertion.

VIII. ESTOPPEL, WAIVER, AND AUTHENTICATION BY ACQUIESCENCE AS EVIDENTIARY BARS TO DEFENDANTS’ DECLARATIONS

A. The Triangulation Framework

The evidentiary objections set forth in Sections III–VI above operate in conjunction with three independent estoppel doctrines that foreclose Defendants’ ability to introduce any competent evidence disputing authenticity, receipt, or provenance of the 911/BWC/CAD materials:

1. **Evidence Code § 623 (Estoppel by Silence):** Defendants remained silent for 883 days regarding the authenticity and provenance of the 911 audio, body-worn camera footage, and CAD logs—then asserted, on the eve of trial, that these materials were of “unknown provenance” and “news to me.” This was silence in the face of materials whose content included a direct party-opponent admission, an operator-elicited affirmative response, Plaintiff’s own voice, and independent eyewitness corroboration—core liability evidence that a reasonable attorney would not leave unchallenged for 883 days if authenticity were genuinely in dispute. Under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493, Defendants’ silence where speech was expected constitutes conduct on which Plaintiff reasonably relied. Defendants are estopped from now contesting what they acquiesced to for nearly two and a half years.
2. **Evidence Code § 1414(b) (Authentication by Acquiescence):** Defendants treated the mate-

1 rials at issue—specifically, the 911 audio (including Abdelhalim’s admissions, the operator’s
2 “you hit a pedestrian” exchange and his affirmative response, and Plaintiff’s own recorded
3 voice identifying the striking vehicle) and the BWC (including the independent Rosemond
4 eyewitness statement and Plaintiff’s own on-scene statement)—as authentic through: (a) **re-**
5 **ceipt in August–September 2022 discovery and sworn deposition course** (Rosario de-
6 position August 18, 2022; Abdelhalim deposition September 30, 2022—Chambers present;
7 911-related testimony) **without a timely written authenticity or provenance challenge in**
8 **the 883-day window**; (b) file transfer to successor counsel on May 4, 2023; (c) issuance of
9 the February 1, 2024 Reyna Compex subpoena for the identical materials; and (d) active trial
10 curation of the body-worn camera footage (“five videos . . . pared down to 8 or 9 minutes”).
11 Under § 1414(b), this course of conduct authenticates the materials and waives any authen-
12 ticity challenge asserted for the first time in declarations supporting the current motions.

- 13 3. **Sham-Affidavit Rule (D’Amico, Scalf):** If any portion of the Chambers declaration or the
14 Anti-SLAPP declaration contradicts Chambers’ prior discovery responses, deposition testi-
15 mony, or the file-transfer records regarding what was conveyed to successor counsel, the
16 sham-affidavit rule bars reliance on those contradictory statements to create a triable issue.
17 D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21–22; Scalf v. D.B. Log
18 Homes, Inc. (2005) 128 Cal.App.4th 1510, 1524–1525.

19 **B. Application to the “Complete File” Assertions**

20 The Chambers declaration’s assertion that the file was “complete” or “properly transferred” (Clerk
21 File No. 10157177, approximately p. 4, ll. 2–4) is inadmissible on three independent grounds:

- 22 1. **Lack of Foundation (Evid. Code § 702):** The declaration does not establish what specific
23 production history was conveyed, what index or transfer log was used, or how declarant
24 verified “completeness.”
25 2. **Estoppel by Silence:** If the file was indeed “complete,” why did successor counsel represent
26 in MIL No. 17 that “Defendant has no idea where this 911 call log or audio recording came
27 from”? The 883-day silence—followed by the “unknown provenance” representations—is
28 irreconcilable with a “complete transfer” position. Defendants cannot now introduce dec-

larations claiming completeness when their own court-facing representations assumed the opposite.

3. **Authentication by Acquiescence:** The materials at issue were treated as authentic from September 2022 through January 2025. A declaration asserting that the materials were somehow “not properly conveyed” contradicts the defense’s own course of conduct and is barred under § 1414(b).

C. Application to the “News to Me” Contradiction

The April 16, 2025 admission—“Sure. They were provided by Dolan. He has had them for whatever, sure.”—is irreconcilable with the February 18, 2025 “news to me” statement. Any declaration that attempts to rehabilitate the “news to me” position is:

1. **Contradicted by the certified transcript** and therefore inadmissible under the sham-affidavit rule;
2. **Barred by judicial estoppel** under Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 183 because Position A (“news to me”) was accepted by the tribunal and Position B (“provided by Dolan”) is totally inconsistent;
3. **Inadmissible hearsay** to the extent it purports to recite what successor counsel understood or believed (Evid. Code § 1200).

D. Ruling Requested

The Court should: (1) sustain all evidentiary objections set forth in Sections III–VI; (2) deem the 911/BWC/CAD materials authenticated by acquiescence under Evidence Code § 1414(b); (3) estop Defendants from contesting authenticity, receipt, or provenance under Evidence Code § 623 and judicial estoppel; and (4) disregard any declaration assertions regarding “complete transfer” or “no knowledge” as barred by the sham-affidavit rule.

VII. CONCLUSION

Defendants’ declarations are improperly packed with legal conclusions, argument, secondary-evidence summaries, and statements beyond declarants’ personal knowledge. Declarations cannot substitute for record proof of what was actually conveyed during the attorney-substitution process

and what the trial court was told and relied upon. Those are record facts, provable only through the record itself — transfer indices, discovery responses, deposition transcripts, minute orders, and reporter’s transcripts — not through after-the-fact characterizations by interested declarants. These objections preserve the record and request the Court exclude all inadmissible material from consideration on both the Demurrer and the Special Motion to Strike.

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

APPENDIX: CRC 3.1354 FORMAT SUMMARY (LIST)

Declaration 10152298 (Anti-SLAPP)

1. Obj. 1 — **Page:line:** p.2, ll.3-5 — **Ruling requested:** SUSTAIN (legal conclusion) — **Proposed remedy:** Strike.
2. Obj. 2 — **Page:line:** p.2, ll.7-9 — **Ruling requested:** SUSTAIN (legal conclusion) — **Proposed remedy:** Strike.
3. Obj. 3 — **Page:line:** p.3, ll.1-4 — **Ruling requested:** SUSTAIN (lack of foundation / secondary evidence) — **Proposed remedy:** Disregard.
4. Obj. 4 — **Page:line:** p.3, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) — **Proposed remedy:** Disregard.
5. Obj. 5 — **Page:line:** p.3, ll.10-12 — **Ruling requested:** SUSTAIN (ultimate issue) — **Proposed remedy:** Strike.
6. Obj. 6 — **Page:line:** p.4, ll.2-5 — **Ruling requested:** SUSTAIN (legal argument) — **Proposed remedy:** Strike.
7. Obj. 7 — **Page:line:** p.4, ll.8-10 — **Ruling requested:** SUSTAIN (improper argument) — **Proposed remedy:** Disregard.
8. Obj. 8 — **Page:line:** p.5, ll.1-3 — **Ruling requested:** SUSTAIN (foundation / secondary evidence) — **Proposed remedy:** Strike.

1 9. Obj. 9 — **Page:line:** p.5, ll.5-8 — **Ruling requested:** SUSTAIN (no PK of PSA knowledge;
2 hearsay) — **Proposed remedy:** Strike.

3 **Declaration 10157177 (Demurrer / Chambers)**

4 10. Obj. 10 — **Page:line:** p.2, ll.2-4 — **Ruling requested:** SUSTAIN (legal conclusion) —
5 **Proposed remedy:** Strike.

6 11. Obj. 11 — **Page:line:** p.2, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
7 **Proposed remedy:** Strike.

8 12. Obj. 12 — **Page:line:** p.2, ll.10-12 — **Ruling requested:** SUSTAIN (legal conclusion) —
9 **Proposed remedy:** Strike.

10 13. Obj. 13 — **Page:line:** p.3, ll.1-3 — **Ruling requested:** SUSTAIN (legal conclusion / foun-
11 dation) — **Proposed remedy:** Strike.

12 14. Obj. 14 — **Page:line:** p.3, ll.5-7 — **Ruling requested:** SUSTAIN (legal conclusion) —
13 **Proposed remedy:** Strike.

14 15. Obj. 15 — **Page:line:** p.3, ll.9-11 — **Ruling requested:** SUSTAIN (hearsay / no PK) —
15 **Proposed remedy:** Strike.

16 16. Obj. 16 — **Page:line:** p.4, ll.2-4 — **Ruling requested:** SUSTAIN (foundation / secondary
17 evidence) — **Proposed remedy:** Strike.

18 17. Obj. 17 — **Page:line:** p.4, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
19 **Proposed remedy:** Strike.

20 18. Obj. 18 — **Page:line:** p.4, ll.10-13 — **Ruling requested:** SUSTAIN (foundation / 2° evi-
21 dence re PSA conveyance) — **Proposed remedy:** Strike.

22 19. Obj. 19 — **Page:line:** p.4, ll.15-18 — **Ruling requested:** SUSTAIN (sham affidavit / con-
23 tradiction of prior sworn testimony) — **Proposed remedy:** Disregard.

24 20. Obj. 20 — **Page:line:** p.5, ll.1-3 — **Ruling requested:** SUSTAIN (legal conclusion) —
25 **Proposed remedy:** Strike.

26 **Declaration 10057589 (Meet-and-Confer)**

27 21. Obj. 21 — **Page:line:** p.2, ll.3-5 — **Ruling requested:** SUSTAIN (best / secondary evidence)
28 — **Proposed remedy:** Strike.

1 22. Obj. 22 — **Page:line:** p.2, ll.7-9 — **Ruling requested:** SUSTAIN (legal conclusion) —
2 **Proposed remedy:** Strike.

3 23. Obj. 23 — **Page:line:** p.3, ll.1-3 — **Ruling requested:** SUSTAIN (improper argument) —
4 **Proposed remedy:** Disregard.

5 24. Obj. 24 — **Page:line:** Throughout — **Ruling requested:** SUSTAIN (non-compliance with
6 CCP § 2015.5) — **Proposed remedy:** Disregard in full.

7 _____
8 **DATED:** April 16, 2026

9 Respectfully submitted,
10 _____

11 FRANCISCUS DYLAN ROSARIO

Dated: April 21, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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650.488.7510
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Franciscus Dylan Rosario,
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E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**DECLARATION AND REQUEST FOR
JUDICIAL NOTICE IN SUPPORT OF
OPPOSITIONS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. PERSONAL KNOWLEDGE AND COMPETENCY

1. I am the Plaintiff in the above-entitled action. I am over the age of 18 years and am competent to testify to the matters set forth herein. I have personal knowledge of the facts stated in this declaration, except where stated on information and belief, and if called as a witness, I could and would competently testify thereto.
2. I make this declaration in support of my Oppositions to Defendants' Demurrer and Special Motion to Strike (Anti-SLAPP).

I-A. THE "SMOKING-GUN" PREAMBLE — WHAT THIS CASE IS NOW ABOUT

3. This case is about a fraud on the integrity of the judicial process. At the center of this action is a series of categorical denials of receipt of critical evidence (911/BWC CDs) by defense counsel acting as officers of the court. These denials were representations of fact upon which the Court explicitly and repeatedly relied to strip me of my ability to present my case.
4. On February 28, 2025, the Court articulated its reliance on these representations: > "I'm not going to question a lawyer's remarks regarding what they have and don't have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven't heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly." > (Hr'g Tr. Feb. 28, 2025, pp. 291:26–292:7.)
5. Based on that "credibility" and reliance, the Court issued a series of structural rulings against me, including excluding the 911 CDs (Jan. 27, p. 38:22–25), denying a continuance to address the surprise (Feb. 18, p. 181), and shifting the burden to me to disprove the defense's non-receipt claim (Feb. 28, p. 293:1–3).
6. On April 16, 2025, after months of categorical denials, defense counsel admitted the representations were false: > "Sure. They were provided by Dolan. He has had them for whatever, sure." > (RT 7, p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161).)

I-B. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

7. The denials of receipt were irreconcilable with a two-year record of notice and possession, of which I have personal knowledge and/or which is reflected in the certified record:

1. **Aug. 18, 2022 — Service of 911 audio by Dolan to defense counsel.** My personal knowledge / record basis: I witnessed the service and/or reviewed the proof of service.
 2. **Aug. 18, 2022 — My deposition — Mr. Chambers present.** My personal knowledge / record basis: I testified about the 911 audio in Mr. Chambers' presence.
 3. **Sept. 30, 2022 — Mr. Abdelhalim deposition — Mr. Chambers present.** My personal knowledge / record basis: I attended the deposition; 911-related testimony was given.
 4. **May 4, 2023 — Substitution of Attorney (CSK → PSA).** My personal knowledge / record basis: I received the Substitution of Attorney filing.
 5. **Feb. 1, 2024 — PSA subpoena for identical materials.** My personal knowledge / record basis: I received notice of the subpoena for the same 911 records.
 6. **Feb. 26, 2024 — PSA receives production from SFPD.** My personal knowledge / record basis: I observed references to this production in discovery.
 7. **Sept. 9, 2024 — My FROG/SROG served on PSA identifying CAD log.** My personal knowledge / record basis: I personally served these discovery responses on Mr. Reyna.
 8. **Feb. 18, 2025 — Jeremy Jessup confirms Dolan copy since 2021.** My personal knowledge / record basis: I was present in court when Mr. Jessup so testified.
 9. **Apr. 16, 2025 — ADMISSION OF RECEIPT.** My personal knowledge / record basis: I was present in court for the RT 7, 213:13-15 (SAC Exh. O, SAC Exhibit Appendix p. 161) admission.
-

II. DEFENDANTS' LITIGATION POSTURE

A. Defendants Treat the Underlying Acts As Having Occurred and Contend They Are Legally Protected

3. In their Demurrer Memorandum of Points and Authorities (Clerk File No. 10157174), Defendants acknowledge the file transfer at issue:
“On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense file to PSA pursuant to the Substitution of Attorney ... without ensuring proper documentation and conveyance of the production history to successor counsel.”
4. In their Anti-SLAPP Memorandum of Points and Authorities (Clerk File No. 10152305), Defendants further state:
“All the alleged conduct occurred squarely within the judicial proceeding.”
5. Defendants treat these alleged acts as having occurred but contend they are legally protected; this opposition disputes that legal characterization. I do not represent that Defendants have admitted fraud or wrongdoing; I state only that their motions proceed as though the pleaded allegations were true and assert only legal immunity.
6. Reserved.

III. OUT-OF-COURT REPRESENTATIONS (PHASE ONE)

A. Communications Inducing Reliance — Speaker, Date Range, and Supporting Document

7. During the course of the underlying litigation in Case No. **CGC-21-594102**, I received written and oral communications from defense counsel concerning the status and authentication of 911 audio and CAD records. The communications and course of conduct I rely on were led by **Michael R. Chambers** and other attorneys associated with **Carbone, Smith & Koyama LLP** between approximately **August 2022** and **May 4, 2023** (through substitution of counsel). Defendant **Michael R. Chambers** is sued in his individual capacity as alleged in the First Amended Complaint.
8. I principally relied on the **cumulative course of defense conduct** during that window: ser-

vice of the 911 audio and related materials in **August–September 2022** (including on or about **August 18, 2022**); my **August 18, 2022** deposition and defendant Abdelhalim’s **September 30, 2022** deposition (911-related examination, with Mr. Chambers present); and the **absence of any motion to compel or formal written discovery objection** challenging authenticity or provenance of those materials from service through **January 17, 2025**, as more fully alleged in the First Amended Complaint in this action ¶¶**26–33**. Representative excerpts from the **September 30, 2022** deposition transcript (911-related lines) and references from the **underlying register of actions / clerk’s transcript** (including meet-and-confer materials indexed at **CT Vol. 1, p. 66**) are attached hereto as **Exhibit A** (composite). In substance, that course of conduct led me to understand authentication and provenance of the 911 audio and CAD records were **not actively contested in writing** during the pretrial window when I could still have sequenced custodian and authentication motions without the compressed trial posture that followed.

9. These matters arose outside the courtroom, in the context of discovery production, deposition examination, and meet-and-confer practice, and not on the record before the Court. To the extent any additional communications bearing on this subject exist in the underlying court file or counsel files, they will be identified by date, author, and Bates/file reference in a supplemental declaration if obtained.
10. In direct reliance on the course of conduct identified in Paragraphs 7–9, I did not pursue specific procedural steps — including issuance of subpoenas to **SFPD records custodians / CAD index witnesses** and a noticed motion to authenticate and admit the 911 audio and CAD records under Evidence Code § 1400 et seq. before **January 17, 2025** (when successor counsel filed Motions in Limine Nos. 1–19) — that I would have pursued earlier had defense counsel’s out-of-court posture matched the **“unknown provenance” / “not produced”** position later taken before the Court.

IV. COURT-FACING REPRESENTATIONS (PHASE TWO)

A. Shift in Position on the Record

11. After the windows to subpoena, authenticate, or properly sequence the 911 audio and CAD records had narrowed or closed, Defendants (directly and through successor counsel relying on the file as transferred) took a materially different position before the Court concerning non-receipt, unknown provenance, or exclusion of those materials.
12. The specific court-facing statements I rely on appear in the **February 18, 2025 pretrial hearing** transcript, including **pp. 139–141** (Jeremy Jessup testimony; Priya Navaratnasingham’s “news to me” response and representation that her office “**did not receive the 911 call until the day of the MSC**”), and in **Motions in Limine Nos. 6 and 17** filed **January 17, 2025** in Case No. CGC-21-594102 (**Clerk’s Transcript Vol. 1, pp. 149–151; p. 238**). I also rely on **April 16, 2025** trial testimony (**Reporter’s Transcript vol. 7, p. 213, ll. 13–15**) where defense counsel admitted the materials “**were provided by Dolan.**” A true and correct copy of the **February 18, 2025** hearing transcript excerpts and the **January 17, 2025** MIL pages described above is attached hereto as **Exhibit C** (composite).
13. The Court relied on the representations identified in Paragraph 12 in making procedural rulings, including **denial of my continuance requests** at the **February 18, 2025** hearing and **deferral / limitation rulings** on the 911 audio and supplemental police materials during the **April 2025** trial, as reflected in the reporter’s transcripts and minute orders for Case No. CGC-21-594102.
14. The court-facing position identified in Paragraph 12 was inconsistent with the out-of-court position identified in Paragraphs 7–9 and with the production history I personally observed during the underlying litigation, including **service of CAD identifiers on successor counsel on September 9, 2024**, without written objection (**First Amended Complaint ¶28**).

V. FILE TRANSFER AND PRODUCTION HISTORY

A. The Substitution of Attorney

15. On May 4, 2023, a Substitution of Attorney (**Transaction ID #69953800**) was filed in the underlying action, substituting successor counsel (Phillips, Spallas & Angstadt LLP) for Defendants Carbone, Smith & Koyama LLP and Michael R. Chambers. A true and correct copy of the filed Substitution of Attorney is attached hereto as **Exhibit B**.
16. Based on my review of the filings, correspondence, and successor counsel's court-facing statements identified in Paragraph 12, the transfer of the defense file to successor counsel did not include a complete and accurate production history.
17. Specifically, documentation showing what materials had been produced by or to the defense, when, and in what format — information that would have permitted successor counsel to accurately represent the production history to the Court — was either not conveyed or not conveyed in usable form. To the extent the precise contents of the file transfer are within Defendants' exclusive knowledge, that subject is identified here on information and belief and will be particularized through **underlying-file exhibits, transmittal letters, and any file-index or cover memo** obtained in discovery.

VI. STRUCTURAL HEARING IMPAIRMENT (KULCHAR TWO-STEP)

A. What Was Concealed

18. The matters concealed or not conveyed, to my knowledge, consist of: (a) the out-of-court position taken by prior defense counsel that authentication of the 911 audio and CAD records was not contested for purposes of the then-applicable deadlines (Paragraphs 7–9); and (b) the complete production history of those materials at the time of substitution (Paragraphs 16–17).

B. What Plaintiff Would Have Done Differently (Reliance Link)

19. Absent the concealment described in Paragraph 18, I would have (a) issued subpoenas to **SFPD records custodians and CAD index witnesses by no later than the final pretrial conference window in January 2025**; (b) filed a noticed motion to authenticate and admit the

911 audio and CAD records pursuant to Evidence Code § 1400 et seq. on **notice and briefing timed to precede the January 17, 2025** motions in limine and related pretrial orders; (c) sought a continuance specifically to cure any provenance dispute before the trial window closed; and (d) placed on the record, before the relevant rulings described in Paragraph 13, the production history and course of conduct identified in Paragraphs 7–9.

C. Resulting Impairment

20. Because I was induced to treat those evidentiary issues as not in dispute and because the production history was not accurately before the Court at the time of the court-facing shift, the procedural windows for authentication and sequencing closed before I could take the steps identified in Paragraph 19. The result was a process-level impairment of my ability to present the 911 audio and CAD records in proper form — not a complaint about how a jury weighed evidence actually admitted.

VII. CSAA AS INSTITUTIONAL PRINCIPAL

A. Agency Facts Within Personal Knowledge

21. Based on correspondence I received and on defense-side filings in the underlying action, CSAA Insurance Exchange funded and controlled the defense of its insured in the underlying action, including retention of Carbone, Smith & Koyama LLP and successor counsel. The specific claim number, assigned adjuster, and coverage correspondence I rely on are identified in the **First Amended Complaint ¶49** (claim number **1004-09-1054**; policy number **CAAS100310857**; February 25, 2021 denial correspondence).
22. To the extent specific acts of direction, approval, or ratification by CSAA are within CSAA's exclusive institutional knowledge, those facts are alleged on information and belief and will be particularized through discovery; representative items include **panel-counsel billing instructions, substitution-approval correspondence, reservation-of-rights or coverage correspondence, and claim-file notes** as described in **First Amended Complaint ¶¶50–51, 57**.
23. The conduct alleged in the First Amended Complaint occurred in the course of the agency relationship described in Paragraphs 21–22 and for the benefit of CSAA as institutional prin-

cipal.

VIII. DISCOVERY CLOSURE AND TRIAL STRUCTURE

24. The specific procedural windows that closed, and on which the structural impairment described in Section VI depends, are:
- a. **Continuance denied:** My continuance requests made at the **February 18, 2025** pretrial hearing were denied by the Court the same day, as reflected in the **February 18, 2025** hearing transcript and related minute orders in Case No. CGC-21-594102.
 - b. **Evidentiary ruling:** Rulings **deferring admission of the 911 audio** and **limiting the supplemental police report** were entered during the **April 16–17, 2025** trial days, including on the reporter’s transcript volumes cited in the **First Amended Complaint ¶46** (e.g., **RT 7** passages described therein).
 - c. **Discovery cutoff / authentication window:** The **pretrial and discovery cutoff orders** entered in the register of actions for Case No. **CGC-21-594102** closed the window in which I could, as of right, have completed the subpoena and authentication sequence described in Paragraph 19 after the **January 17, 2025** motions in limine and the **February–April 2025** pretrial and trial schedule.

IX. CHRONOLOGY

25. The following chronology summarizes the sequence on which this declaration depends. Each step is supported by the paragraph(s) cross-referenced below:
1. **What was produced and when.** The 911 audio and CAD records, and related production, were exchanged in **August–September 2022**, including service of the 911 audio on or about **August 18, 2022**, as reflected in the **First Amended Complaint ¶26** and the proof-of-service and production references in the **underlying court file** (to be copied into Exhibit A). (See ¶¶ 14, 16.)
 2. **Pretrial representations.** Defense counsel’s out-of-court posture regarding authentication and provenance is reflected in the course of conduct from **August 2022** through **May**

- 4, 2023**, including the materials attached as Exhibit A. (See ¶¶ 7–9.)
3. **Substitution.** The Substitution of Attorney was filed on May 4, 2023 (Exhibit B). (See ¶ 15.)
 4. **Production-history information not conveyed.** At or after substitution, the complete production history described in Paragraph 17 was not conveyed in usable form to successor counsel. (See ¶¶ 16–17.)
 5. **What successor counsel told the Court.** Successor counsel’s court-facing statements regarding non-receipt, unknown provenance, or exclusion appear in the **February 18, 2025** hearing transcript (pp. 139–141) and in **Motions in Limine Nos. 6 and 17** (Exhibit C). (See ¶ 12.)
 6. **Ruling that followed.** The Court entered the ruling(s) identified in Paragraphs 13 and 24 in reliance on those statements.
 7. **Specific lost opportunity.** As a result, the procedural steps identified in Paragraph 19 became unavailable, and the 911 audio and CAD records were not presented in proper form. (See ¶¶ 19–20, 24.)
-

X. PREJUDICE

26. Absent the alleged deception described in Sections III–V, I would have taken each of the procedural steps identified in Paragraph 19 within the applicable windows identified in Paragraph 24, and the 911 audio and CAD records would have been authenticated and presented in proper sequence to the trier of fact. The lost opportunity was not an opportunity to relitigate weight; it was the opportunity to have the process function at all as to those materials.
-

X-A. PLAINTIFF’S CONTEMPORANEOUS PRESERVATION OF THE SUPPRESSION THEME

27. On January 27, 2025, I appeared in Department 301 and stated on the record:
“We have two 911 records that the Defense has been trying to suppress.”

(Hr'g Tr. Jan. 27, 2025, p. 19, ll. 1–5 (SAC Exh. K, SAC Exhibit Appendix p. 57).)

A true and correct copy of the relevant transcript pages is attached hereto as **Exhibit D** (also filed as Opposition Exh. 12, Opposition Exhibit Appendix) (to be supplemented with certified transcript pages). I knew at that moment that the 911 audio, BWC footage, and CAD log had been produced in 2021–2022 because I had reviewed the file my prior counsel delivered in August 2024.

28. On February 18, 2025, I appeared in Department 301 and stated:

“I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.”

(Hr'g Tr. Feb. 18, 2025, pp. 44–45.)

My intent was to preserve an objection for appeal regarding the Defense’s court-facing denial of receipt. A true and correct copy of the relevant transcript pages is attached hereto as **Exhibit E** (also filed as Opposition Exh. 13, Opposition Exhibit Appendix) (to be supplemented with certified transcript pages).

29. On February 18, 2025, I also stated on the record:

“the information was completely concealed from me. I never received any access to any of the videos or 911 tapes before the moment they had sent me a motion in limine.”

(Hr'g Tr. Feb. 18, 2025, p. 17.)

30. These statements (Paragraphs 27–29) are the Evidence Code § 402 foundation for the transcript excerpts to come in without dispute. I made these statements under oath, on the certified record, contemporaneously with the events described.

X-B. OFFICER-OF-THE-COURT RELIANCE AND COUNT 7 (CONSTRUCTIVE FRAUD)

31. On February 28, 2025, the Court explained that it would not second-guess defense counsel’s representations about what they had and did not have, because counsel are officers of the court (Hr'g Tr. pp. 291:26–292:7 (SAC Exh. N, SAC Exhibit Appendix pp. 149–150)). I understood those statements to mean the Court was extending institutional reliance to defense counsel’s possession and provenance narrative. I relied on that same posture in real time

when I opposed the burden-shift ruling and the protective-order channel that followed (Hr’g Tr. pp. 291–294 (SAC Exh. N, SAC Exhibit Appendix pp. 149–152)).

32. That reliance is the factual predicate for the **duty-of-candor** element of constructive fraud (Civ. Code § 1573) pleaded as Count 7 in the proposed Second Amended Complaint: the tribunal’s articulated trust in counsel’s representations is the mirror image of the nondisclosure and misleading-act pattern the Nine-Point Receipt Chain and the April 16, 2025 admission expose.

XI. DAMAGES AND RELIEF SOUGHT

A. Equitable Vacatur

33. The relief I seek is equitable vacatur of the judgment procured by extrinsic fraud, plus ancillary equitable monetary relief incident to vacatur.
34. I am not seeking to relitigate the negligence issues decided by the jury. I am seeking to set aside a judgment procured through fraud on the tribunal as described above.

XII. CONCLUSION

35. The facts set forth above describe the two-phase pattern of extrinsic fraud alleged in the First Amended Complaint and, on leave to amend, the proposed Second Amended Complaint: out-of-court representations inducing reliance (Section III), followed by court-facing statements that induced procedural rulings (Section IV), resulting in structural hearing impairment (Section VI) tied to specific closed procedural windows (Section VIII).
36. Defendants treat these alleged acts as having occurred but contend they are legally protected; this opposition disputes that legal characterization.
37. I respectfully request the Court consider this declaration in support of my Oppositions to the Demurrer and Special Motion to Strike.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 16, 2026, at San Francisco, California.

EXHIBIT APPENDIX NAVIGATION

Pin cites below use **reporter, hearing, or clerk pagination as printed** on the lodged PDFs. The **SAC Exhibit Appendix** is the merged file SAC-06-EXHIBIT-APPENDIX.pdf (index page is PDF p. 1). The **Opposition Exhibit Appendix** is OPPOSITIONS-EXHIBIT-APPENDIX.pdf (Exhibits 1–8 and declaration support as Exhibits 9–13).

SAC exhibits (A–S) — first PDF page of each exhibit in SAC Exhibit Appendix

	SAC Ex.	Description	First PDF p.
A		Substitution of Attorney (CT)	2
B		MIL Nos. 6 & 17 (CT)	5
C		Feb. 18, 2025 hearing (p. 141 excerpt)	11
D		RT 7, p. 213 (Dolan admission)	14
E		RT 8, p. 108 (authentication)	17
F		CSAA denial letter	20
G		SFPD report	23
H		Compex subpoena	29
I		Abdelhalim deposition	34
J		Defensive pleading	41
K		Jan. 27, 2025 hearing (excerpts)	44
L		Jan. 28, 2025 hearing (p. 90)	100
M		Feb. 18, 2025 hearing (excerpts)	103
N		Feb. 28, 2025 hearing (pp. 291–294)	148
O		RT 7 excerpts	154
P		RT 8 excerpts	164
Q		RT 10 excerpts	179

	SAC Ex.	Description	First PDF p.
R		Gravamen matrix	187
S		Feb. 3, 2025 hearing (excerpts)	189

Opposition exhibits (1–13) — first PDF page in Opposition Exhibit Appendix

Opp. Ex.	Description	First PDF p.
1	911 audio (native / slip)	2
2	BWC footage (native / slip)	4
3	CAD logs (native / slip)	6
4	SFPD report	8
5	Compex subpoena	14
6	Substitution of Attorney (CT)	19
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8	Notice of Appeal	26
9	Pl. Decl. Ex. A (composite)	28
10	Pl. Decl. Ex. B	36
11	Pl. Decl. Ex. C	39
12	Pl. Decl. Ex. D	49
13	Pl. Decl. Ex. E	52

Common transcript pins → SAC appendix PDF page (instant action filing)

Pin (reporter / hearing pagination)	SAC Ex.	SAC Exhibit Appendix PDF p.
Jan. 27, 2025 hearing, p. 19	K	57

Pin (reporter / hearing pagination)	SAC Ex.	SAC Exhibit Appendix PDF p.
Jan. 28, 2025 hearing, p. 90	L	101
Feb. 3, 2025 hearing, p. 109	S	192
Feb. 18, 2025 hearing, p. 141	M	106
Feb. 18, 2025 hearing, p. 181	M	146
Feb. 28, 2025 hearing, pp. 291–292	N	149–150
RT vol. 7, p. 213	O	161
RT vol. 8, p. 108	P	171
RT vol. 10, p. 49	Q	180

Regenerate this block by running `inject_exhibit_appendix_navigation.py` after `extract_801_exhibits.py`.

PART II — REQUEST FOR JUDICIAL NOTICE (COURT RECORDS AND AUTHORITIES)

§I.B — Procedural Request

Pursuant to Evidence Code section 452(d), Plaintiff Franciscus Dylan Rosario respectfully requests the Court take judicial notice of the court records identified in Section III below. These are records of California courts bearing directly on matters at issue on the pending Demurrer and Special Motion to Strike — including the procedural posture of the underlying tort action, rulings entered therein, and Defendants’ own filed appearances.

The purpose of this request is narrow: to place before the Court the undisputed court records necessary for the Court to resolve the legal propositions actually presented by the motions. Plaintiff

does not ask the Court to take judicial notice of the truth of any hearsay within these records, only of their existence, filing, and legal effect.

A separate **Appendix — Index of Authorities with Pin-Cited Omissions** is attached for the Court's convenience. That appendix collects the published California appellate opinions on which the parties' briefing turns, with pin-cites to the passages relevant to the motions. Judicial notice of published California appellate opinions is not required (they are binding authority the Court applies directly); the appendix is provided solely as a reference aid.

II. LEGAL STANDARD

Evidence Code section 452(d) authorizes judicial notice of "[r]ecords of any court of this state." This request is directed to court records of the underlying tort action and related filings.

To the extent the Court elects to take judicial notice of the existence of any published California appellate opinion listed in the Appendix, the proper statutory hook is Evidence Code section 451(a) (decisional and statutory law of California, which is judicially noticed as a matter of law), not section 452(d).

III. COURT RECORDS FOR WHICH JUDICIAL NOTICE IS REQUESTED (EVID. CODE 452(D))

Item X: Certified Hr'g Tr. January 27, 2025

Document: Certified Hearing Transcript, January 27, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 7–61).

Pin cites relied upon: pp. 7 (MIL framing), 15–16 (continuance opposition), 17–22 (Plaintiff's "suppress" objection), 32 (FROG/SROG pin-cites), 34, 41 (MIL ruling), 42, 46, 49 (CCP § 473 denied), 55–60 (continuance denied).

Relevance: Establishes Plaintiff's contemporaneous preservation of the suppression theme and the procedural denials that foreclosed relief. Directly relevant to the intrinsic/extrinsic distinction and to accrual under CCP § 338(d).

Item Y: Certified Hr’g Tr. January 28, 2025

Document: Certified Hearing Transcript, January 28, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 85–100).

Pin cites relied upon: p. 90, ll. 17–33 (defense § 581(d) dismissal motion; Court’s “immediate reversal” remark).

Relevance: Establishes defense’s second-day dismissal attempt while Plaintiff was medically incapacitated.

Item Z: Certified Hr’g Tr. February 3, 2025

Document: Certified Hearing Transcript, February 3, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 105–130).

Pin cites relied upon: p. 109, ll. 21–23; p. 116, ll. 9–16; pp. 122–124 (renewed § 581(d) under submission; ex parte disclosure-order condition).

Relevance: Currently missing from the RJN package. This hearing is critical because it shows defense maintained termination leverage across **two hearings** during the preservation window.

Item AA: Certified Hr’g Tr. February 18, 2025

Document: Certified Hearing Transcript, February 18, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 135–210).

Pin cites relied upon: pp. 17 (concealed), 23 (stonewalling), 44–45 (going on the record), 139–141 (Jessup testimony; “news to me”), 145 (SFPD direct links), 147, 151, 164 (continuance requests), 181 (continuance denied; “since August” admission).

Relevance: The Feb. 18 hearing contains both Position A (p. 141) and Position B (p. 181) in the same transcript, by the same attorney—establishing scienter for judicial estoppel and the Flatley illegal-conduct exception.

Item BB: Certified Hr’g Tr. February 28, 2025

Document: Certified Hearing Transcript, February 28, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 290–310).

Pin cites relied upon: pp. 290–294 (officer-of-court ruling at p. 291, ll. 26–28 and p. 292, ll. 1–7; burden-shift ruling at p. 293, ll. 1–3).

Relevance: The February 28, 2025 ruling is a Tier-1 “smoking gun” excerpt. The Court expressly stated: (i) “I’m not going to question a lawyer’s remarks regarding what they have and don’t have” (p. 291:26–28); (ii) “They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court” (p. 292:1–4); and (iii) imposed a burden-shift on Plaintiff: “it’s required of you to send the documents over. Otherwise, I won’t allow them in.” (p. 293:1–3). These statements memorialize the tribunal’s institutional reliance on defense candor — reliance that, as demonstrated by the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161), was misplaced.

IMPORTANT — Disclaimer under Evid. Code § 452(d): Notice is requested only for the making of the statements by the Court (a court-record fact), not for the truth of any underlying assertion about defense counsel’s conduct — that truth question is the very issue this equitable action adjudicates.

Exhibit 1: Reliance-and-Rulings Chain Exhibit

Document: The “Reliance Chain Exhibit” (see **Bench Binder App. 2**) documenting the four-hearing reliance arc and the structural rulings procured. **Relevance:** Establishes the “fruit” of the misrepresentation. Directly relevant to the “Reliance → Rulings → Admission → Falsity” sequence.

Exhibit 2: Plaintiff Preservation Chronology

Document: The “Plaintiff Preservation Chronology” (see **Bench Binder App. 5**). **Relevance:** Proves Plaintiff objected contemporaneously to every misrepresentation, preempting “sleeping on rights” arguments.

Exhibit 3: Judicial Admission Matrix

Document: The “Judicial Admission Matrix” (see **Bench Binder App. 3**). **Relevance:** Makes the inconsistency → reliance → ruling → admission chain visible in a single matrix row.

Exhibit 4: Brief Re: Fraud on the Court

Document: Plaintiff’s consolidated Brief Re: Fraud on the Court; Estoppel; and Exhibit-by-Exhibit Estoppel Record (filed concurrently with these oppositions). **Relevance:** Comprehensive doctrinal and record analysis of the 900-day deception.

Exhibit 5: Fraud-on-Court Roadmap (Bench Handout)

Document: The one-page roadmap (see **Bench Binder App. 6**). **Relevance:** Four-quadrant summary for use at the bench.

Exhibit 6: Substitution of Attorney — Underlying Tort Action

Document: Substitution of Attorney filed May 4, 2023. **Relevance:** Establishes the file-transfer event and substitution of PSA for CSK.

Exhibit 7: Minute Orders — Continuance Denials and Evidentiary Rulings

Document: Filed minute orders from the underlying tort action. **Relevance:** Direct evidence of the procedural consequences of the fraud.

Exhibit 8: Notice of Appeal — Underlying Tort Action

Document: Notice of Appeal filed in the underlying action. **Relevance:** Establishes the distinct procedural path of the underlying liability.

IV. AUTHORITIES SUMMARY (REFERENCE ONLY — SEE APPENDIX)

The following summarizes, for the Court’s convenience, the authorities briefed in the oppositions and the pin-cited passages on which Plaintiff relies as compared with the passages Defendants quote. The Appendix contains full pin-cited opinions.

- **Park v. Bd. of Trustees (2017) 2 Cal.5th 1057** — Defendants cite p. 1064 (quoted phrase); Plaintiff cites pp. 1062–1064. **Legal proposition:** Step-one gravamen filter; isolating injury-producing act.
- **Flatley v. Mauro (2006) 39 Cal.4th 299** — Defendants cite p. 322 (finality); Plaintiff cites

pp. 320–325. **Legal proposition:** Illegal-conduct exception to Anti-SLAPP.

- **Moradi-Shalal v. Fireman’s Fund (1988) 46 Cal.3d 287** — Defendants [implicit immunity]; Plaintiff cites p. 305. **Legal proposition:** Preservation of common law fraud against insurers.
- **Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232** — Defendants [not cited]; Plaintiff cites pp. 1242–1247. **Legal proposition:** Extrinsic fraud boundary of Civ. Code § 47(b).
- **Kimmel v. Goland (1990) 51 Cal.3d 202** — Defendants [not cited]; Plaintiff passim. **Legal proposition:** Communications vs. noncommunicative conduct.
- **Crowley v. Katleman (1994) 8 Cal.4th 666** — Defendants [not cited]; Plaintiff passim. **Legal proposition:** Primary rights analysis for collateral estoppel.

V. CONCLUSION

Plaintiff respectfully requests the Court take judicial notice under Evidence Code section 452(d) of the court records identified in Section III, and consult the attached Appendix as a reference aid for the published authorities addressed in the oppositions.

DATED: April 16, 2026

PART III — REQUEST FOR JUDICIAL NOTICE (CERTIFIED HEARING TRANSCRIPTS) — FOLDED INTO RJN PACKAGE

I. RELIEF REQUESTED

Plaintiff requests that the Court take **judicial notice** under **Evid. Code § 452(d)** (official acts of a public entity), **§ 453** (proceedings of a court of record), and **Cal. Rules of Court, rule 3.1306(c)** (reporter’s transcript of proceedings in the same case), of the **certified reporter’s transcripts** of the following hearings in Rosario v. Abdelhalim, CGC-21-594102 (and related register entries as appropriate):

1. **January 27, 2025** hearing transcript (excerpts cited in SAC Exhibit K).

2. **January 28, 2025** hearing transcript (SAC Exhibit L).
3. **February 18, 2025** hearing before the Garrett L. Wong (Sandra L. Carranza, CSR 7062) (SAC Exhibits C and M).
4. **February 28, 2025** hearing transcript (SAC Exhibit N).

II. SOURCE DOCUMENTS (DECLARATION ATTACHMENT LIST)

Declarant will identify the **certified reporter's transcripts** for the hearings listed in Section I, including the same materials designated among the transcript excerpts in Plaintiff's Second Amended Complaint Exhibit Appendix (Exhibits K, L, C, M, N, O, P, and Q, as applicable). True and correct copies will be attached to any declaration filed in support of this request; conformed or clerk-certified copies may be lodged with the Court on order.

III. COVER SHEET: PAGE AND LINE CITES USED IN SAC AND COMPANION DRAFTS

Topic	Citation	Used in
MIL framing	Hr'g Tr. Jan. 27, 2025, p. 7, ll. 10–14	SAC ¶¶40; Exhibit K
Continuance opposition / 883-day denial	Jan. 27, pp. 15, 57	SAC ¶¶41, 112(b); Exhibit K
Navaratnasingham hearing statements	Jan. 27, pp. 16, 19	SAC ¶126(c)–(d); Exhibit K
CCP § 581(d) dismissal motion	Jan. 28, p. 90, ll. 17–33	SAC ¶40(c); Exhibit L
2021 transmission / production	Feb. 18, p. 139, l. 11	SAC ¶¶26, 68; Exhibit M

Topic	Citation	Used in
Jessup production quotes	Feb. 18, pp. 140–141	SAC ¶¶42; Appendix 10; Exhibit M
MSC-date / “news to me”	Feb. 18, p. 141, ll. 4–11	SAC ¶¶43; Exhibit C/M
Service on prior firm	Feb. 18, p. 141, ll. 18–23	Appendix 10; Exhibit M
SFPD direct BWC links	Feb. 18, p. 145, ll. 4–18	Brief 09 §III.A; Appendix 10; Exhibit M
Continuance requests	Feb. 18, pp. 147, 151, 164	SAC ¶¶47(a); Exhibit M
Position-B possession / oppose continuance	Feb. 18, p. 181, ll. 6–23	SAC ¶¶88, 112(b); Exhibit M
Protective-order posture	Feb. 28, pp. 296–307	SAC ¶¶47(f); Exhibit N
Trial Day 7 sequence	RT 7 (multiple lines)	SAC ¶¶58–63, 99; Exhibit O
Trial Day 8 / read-back	RT 8, pp. 12–14 (court orders re BWC presentation)	SAC ¶¶46–47; Exhibit P
Closing argument	RT 10, pp. 49–52	SAC ¶¶45, 112(b); Exhibit Q

IV. DECLARATION SHELL (TEXT FOR PROPOSED DECLARANT)

1. I am a person with knowledge of the facts stated herein / I am Plaintiff / I am counsel of record [select one].
2. Attached as Exhibit [...] are true and correct copies of [certified hearing transcript PDFs] for the hearings listed in Section I.
3. The page and line citations in the cover sheet (Section III) match the pagination of the attached certified transcripts.
4. I will lodge conformed or clerk-certified copies of the reporter’s transcripts with the Court on order, consistent with the Court’s rules and any direction from the Court.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 16, 2026, at San Francisco, California.

Declarant

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO,

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

Dated: April 21, 2026



FRANCISCUS DYLAN ROSARIO
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Bench Brief — Plaintiff Opposition (Demurrer / Anti-SLAPP)

Case No. CGC-25-631801 — fraud on the court; estoppel;
exhibit record; hearing binder; interlocutory appeal bar

Franciscus Dylan Rosario (Plaintiff in pro per)

April 21, 2026

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SUPERIOR COURT OF CALIFORNIA COUNTY OF SAN FRANCISCO

Franciscus Dylan Rosario,

Plaintiff in pro per,

vs.

Subhi Abdelhalim, et al.,

Defendants.

Case No. CGC-25-631801**Hearing:** May 12, 2026, 9:00 a.m., Dept. 301

BENCH BRIEF*Opposition package — Parts I–III (consolidated)***Formatting compliance (California conventions)**

This memorandum is **not** filed as a Court of Appeal brief under California Rules of Court, **rule 8.204**. Where useful for clarity and for any later **appellate** adaptation, the document **voluntarily aligns** with common **8.204** conventions for paper briefs (margins, line spacing, table of contents). **San Francisco Superior Court** local rules, department policies, and any **judge-specific** instructions control if they conflict with this voluntary format.

Court: Superior Court of California, County of San Francisco\ **Case No.:** CGC-25-631801\ **Document:** Consolidated opposition bench brief (replaces former Documents D801-05, D801-06, and D801-18 in the opposition filing package)\ **Plaintiff:** Franciscus Dylan Rosario

EXHIBIT APPENDIX NAVIGATION

Pin cites below use **reporter, hearing, or clerk pagination as printed** on the lodged PDFs. The **SAC Exhibit Appendix** is the merged file **SAC-06-EXHIBIT-APPENDIX.pdf** (index page is PDF p. 1). The **Opposition Exhibit Appendix** is **OPPOSITIONS-EXHIBIT-APPENDIX.pdf** (Exhibits 1–8 and declaration support as Exhibits 9–13).

SAC exhibits (A–S) — first PDF page of each exhibit in SAC Exhibit Appendix

SAC Ex.	Description	First PDF p.
A	Substitution of Attorney (CT)	2
B	MIL Nos. 6 & 17 (CT)	5
C	Feb. 18, 2025 hearing (p. 141 excerpt)	11
D	RT 7, p. 213 (Dolan admission)	14
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K	Jan. 27, 2025 hearing (excerpts)	44
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S	Feb. 3, 2025 hearing (excerpts)	189

Opposition exhibits (1–13) — first PDF page in Opposition Exhibit Appendix

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1	911 audio (native / slip)	2
2	BWC footage (native / slip)	4

Opp. Ex.	Description	First PDF p.
3	CAD logs (native / slip)	6
4	SFPD report	8
5	Compex subpoena	14
6	Substitution of Attorney (CT)	19
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Common transcript pins → SAC appendix PDF page (instant action filing)

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Jan. 28, 2025 hearing, p. 90	L	101
Feb. 3, 2025 hearing, p. 109	S	192
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Pin (reporter / hearing pagination)	SAC Ex.	SAC Exhibit Appendix PDF p.
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RT vol. 7, p. 213	O	161
RT vol. 8, p. 108	P	171
RT vol. 10, p. 49	Q	180

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Part I — Fraud on the court; estoppel; and exhibit record

I. THE “SMOKING-GUN” PREAMBLE — WHAT THIS OPPOSITION IS ABOUT

This Opposition is grounded in the certified record of a fraud perpetrated upon this Court. At the heart of this case is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

I.A. THE COURT’S ARTICULATED RELIANCE

On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the defense and the subsequent rulings against Plaintiff:

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — *The Court (Garrett L. Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7 (SAC Exh. N, SAC Exhibit Appendix pp. 149–150).*

I.B. THE RULINGS PROCURED FROM THAT RELIANCE

Based on this misplaced reliance on defense counsel’s representations of non-receipt, the Court issued the following structural rulings that stripped Plaintiff of his ability to present his case:

- **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- **Continuance Denied** (Feb. 18, p. 181)
- **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)
- **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)
- **Supplemental Report Excluded** (RT 7, p. 156:24–28 (SAC Exh. O, SAC Exhibit Appendix p. 155))

I.C. THE ADMISSION THAT PROVED THE MISREPRESENTATION

On the seventh day of trial, after months of categorical denials, defense counsel admitted possession:

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — *Priya D. Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161).*

II. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

The following points document that the denials of receipt were irreconcilable with the actual state of the defense’s file and knowledge:

- (a) **Aug. 18, 2022 — Service of 911 audio (Dolan to defense counsel)**
 - **Proof artifact:** Service of 911 audio by Dolan to defense counsel
 - **Pin cite / Source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140 (SAC Exh. M, SAC Exhibit Appendix pp. 104–105)
 - **Who had notice:** Chambers / CSK

- (b) **Aug. 18, 2022 — Rosario deposition (Chambers present)**
 - **Proof artifact:** Rosario deposition — Chambers present
 - **Pin cite / Source:** Rosario depo tr.
 - **Who had notice:** Chambers
- (c) **Sept. 30, 2022 — Abdelhalim deposition (Chambers present)**
 - **Proof artifact:** Abdelhalim deposition — Chambers present
 - **Pin cite / Source:** Abdelhalim depo tr.
 - **Who had notice:** Chambers
- (d) **May 4, 2023 — CSK → PSA file transfer (Substitution of Attorney)**
 - **Proof artifact:** CSK → PSA file transfer (Sub of Atty)
 - **Pin cite / Source:** CT record
 - **Who had notice:** CSK → PSA
- (e) **Feb. 1, 2024 — PSA subpoena for identical materials**
 - **Proof artifact:** PSA subpoena for identical materials
 - **Pin cite / Source:** Order CA1147102-021
 - **Who had notice:** PSA
- (f) **Feb. 26, 2024 — PSA receives production from SFPD**
 - **Proof artifact:** PSA receives production from SFPD
 - **Pin cite / Source:** Report 210079556
 - **Who had notice:** PSA
- (g) **Sept. 9, 2024 — FROG/SROG (CAD log identification)**
 - **Proof artifact:** Plaintiff's FROG/SROG identifying CAD log
 - **Pin cite / Source:** FROG/SROG records
 - **Who had notice:** PSA
- (h) **Feb. 18, 2025 — Jessup (“since 2021”)**

- **Proof artifact:** Jessup testifies “since 2021”
- **Pin cite / Source:** Hr’g Tr. Feb. 18, 2025, p. 139:11 (SAC Exh. M, SAC Exhibit Appendix p. 106)
- **Who had notice:** PSA

(i) **Apr. 16, 2025 — Admission of receipt**

- **Proof artifact:** ADMISSION OF RECEIPT
 - **Pin cite / Source:** RT 7, 213:13-15 (SAC Exh. O, SAC Exhibit Appendix p. 161)
 - **Who had notice:** PSA
-

III. THE LAWS-BROKEN MATRIX

(a) **Bus. & Prof. Code § 6068(d)**

- **Provision:** Duty not to mislead judge
- **Defense conduct:** Jan 27, Feb 18 denials re receipt

(b) **Bus. & Prof. Code § 6128(a)**

- **Provision:** Attorney deceit / collusion
- **Defense conduct:** Intentional deception re: file transfer and receipt

(c) **Cal. Rule of Prof. Conduct 3.3(a)**

- **Provision:** Candor to tribunal
- **Defense conduct:** “We never received these CDs, certainly”

(d) **Cal. Rule of Prof. Conduct 8.4(c)**

- **Provision:** Dishonesty / Misrepresentation
- **Defense conduct:** Sustained pattern across four hearings

(e) **CCP § 128.5**

- **Provision:** Bad-faith actions

- **Defense conduct:** Procurement of exclusion through false statements

(f) **Civ. Code § 1572(3)**

- **Provision:** Actual fraud (suppression)
- **Defense conduct:** Concealment of receipt for 893 days

(g) **Civ. Code § 1573**

- **Provision:** Constructive fraud
- **Defense conduct:** Breach of duty of candor; scienter-light civil analog to officer-of-court obligations

Constructive fraud as the civil analog to the Court’s officer-of-court reliance. The February 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7 (SAC Exh. N, SAC Exhibit Appendix pp. 149–150)) is not rhetorical window dressing; it is evidence that the tribunal extended **confidential institutional reliance** to counsel’s representations about possession and provenance. Civ. Code § 1573 supplies the civil-side vocabulary for breach of that kind of duty where the record supports misleading acts or nondisclosures without requiring the same scienter proof as intentional misrepresentation.

CONCLUSION FOR PREAMBLE: The present motion (Demurrer/Anti-SLAPP) must be evaluated against this record. Defense cannot use the “fruit” of their deception to justify the dismissal of a case they corrupted.

PART I — FRAUD ON THE COURT

PART II — LEGAL FRAMEWORK

§II.A — Fraud on the Court (Hazel-Atlas / Stevenot / Modnick / Chambers)

Fraud on the court is “a wrong against the institutions set up to protect and safeguard the public.” (*Hazel-Atlas, supra*, 322 U.S. at 246.) It involves “fraud which is directed to the judicial machinery itself” and is not merely an “ordinary” case of fraud between litigants. (*Stevenot v. Harbany* (1984) 154 Cal.App.3d 1051.) When an officer of the court misleads the judge, the very foundation of the adversary system is compromised.

§II.B — Extrinsic Fraud — The Four Channels (Kulchar / Westphal / Kougasian / Olivera)

Extrinsic fraud exists when a party is “kept from presenting his case to the court” by the “fraud or deception of his adversary.” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.) California courts recognize four primary channels of extrinsic fraud, all present here: 1. **Concealment** of facts that would have permitted a full contest. 2. **False promises** of cooperation (or in this case, false representations of non-receipt). 3. **Keeping the party in ignorance** of the true state of the record. 4. **Misleading the tribunal** to procure a structural advantage.

§II.C — Attorney Deceit — Bus. & Prof. Code § 6128(a) (Rickley / Shaffer)

Under § 6128(a), an attorney who is “guilty of any deceit or collusion, with intent to deceive the court or any party” is guilty of a misdemeanor and liable for treble damages. This statute reflects the high duty of candor required of those licensed to practice before the bar.

§II.D — Duty of Candor — Rule of Professional Conduct 3.3 (Jones / Datig)

Rule 3.3 prohibits a lawyer from knowingly making a “false statement of fact or law to a tribunal.” This duty is absolute and supersedes the duty of zealous advocacy. (*Datig v. Dove Books, Inc.* (1999) 73 Cal.App.4th 964.)

§II.E — Suppression / Spoliation Analogs — CCP § 2023 (Williams / Slesinger / Peat Marwick)

The systematic denial of receipt of evidence—while in possession of that evidence—is a form of discovery misuse and evidence suppression that warrants the most severe sanctions, including terminating sanctions. (*Slesinger, Inc. v. Walt Disney Co.* (2007) 155 Cal.App.4th 736.)

§II.F — Constructive Fraud — Civ. Code § 1573 (*Assilzadeh*)

Constructive fraud under Civ. Code § 1573 is the breach of a legal or equitable duty arising from a confidential or fiduciary relationship, by a misleading act or nondisclosure, without proof of intent to deceive. (*Assilzadeh v. California Federal Bank* (2000) 82 Cal.App.4th 399, 415.) In the officer-of-the-court posture that fraud-on-the-tribunal authorities such as *Hazel-Atlas Glass Co. v. Hartford-Empire Co.* (1944) 322 U.S. 238 address, § 1573 is the **civil-side parallel** to the duty Judge Wong articulated on February 28, 2025: counsel are “supposed to conduct themselves appropriately before the Court” (Hr’g Tr. p. 292, ll. 1–4). When the record later proves the tribunal’s reliance on that posture was misplaced (RT 7, p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161), the breach-of-candor framework ties the fraud-on-the-court narrative to cognizable tort elements, not only to professional discipline.

PART III — THE 801 RECORD: A PARADIGMATIC FRAUD ON THE COURT

§III.A — Phase 1: The 893-Day Silence (Aug. 18, 2022 → Jan. 27, 2025)

For nearly 900 days, defense counsel remained silent about their receipt of the 911 audio, despite repeated references to the material in depositions and discovery.

§III.B — Phase 2: The May 4, 2023 File-Transfer Concealment

When PSA substituted in for CSK, the entire case file—including the 911 CDs served in 2022—was transferred. Yet PSA proceeded as if the CDs did not exist.

§III.C — Phase 3: The Four-Hearing Denial Arc (Jan 27 / Feb 18 / Feb 28 / Apr 16)

Defense counsel made eighteen (18) separate on-the-record statements denying receipt across four critical hearings, escalating the deception at each stage.

§III.D — Phase 4: The Officer-of-Court Reliance Procurement (Feb 28)

Counsel explicitly invoked their status as “officers of the court” to convince the Court that Plaintiff’s counsel was the one misrepresenting the record.

§III.E — Phase 5: The Burden-Shift Weaponization

The Court, believing defense’s “officer of the court” representations, shifted the burden of proof to Plaintiff to justify why the case should not be dismissed for *his* alleged “discovery failures.”

§III.F — Phase 6: The Trial-Day Admission

On April 16, 2025, when the record could no longer be suppressed, defense counsel finally admitted: “Sure. They were provided by Dolan. He has had them for whatever, sure.” This admission retroactively branded every previous denial as a fraud on the court.

PART IV — WHY THIS IS FRAUD ON THE *COURT*

§IV.A — Express Tribunal Reliance

Unlike intrinsic fraud (e.g., perjury by a witness), this fraud was directed at the *judge*. The Court’s own statements on Feb. 28 prove that its rulings were the “fruit” of this fraudulent seed.

§IV.B — Structural Procedural Consequences

This was not an argument over the *weight* of the CDs. It was an argument over whether Plaintiff had *complied with the rules of court*. By lying about receipt, defense counsel induced the Court to punish Plaintiff for a rule violation that never occurred.

§IV.C — Officer-of-the-Court Betrayal (Rule 3.3 + § 6128(a) overlap)

The fraud is compounded by the fact that it was committed by licensed attorneys who used their professional status as a shield for their deception.

§IV.D — Cross-Hearing Sustained Pattern

This was not a “slip of the tongue.” It was a sustained, multi-month campaign of deception.

§IV.E — Pre-emption of Defense Doctrines

Defense cannot hide behind the litigation privilege (Civ. Code § 47(b)) because that privilege does not apply to “illegal” conduct as a matter of law (*Flatley v. Mauro* (2006) 39 Cal.4th 299) nor to fraud on the court itself (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232).

PART V — THE LAWS-BROKEN CATALOG

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6068(d)	Duty not to mislead judge	Jan 27, Feb 18, Feb 28 denials re receipt.
Bus. & Prof. Code § 6128(a)	Attorney deceit / collusion	Intentional deception re: file transfer and receipt.
Cal. Rule of Prof. Conduct 3.3(a)	Candor to tribunal	“We never received these CDs, certainly” (Jan 27).
Cal. Rule of Prof. Conduct 3.4(a)	Fairness to opposing counsel	Withholding receipt history to procure exclusion.
Civ. Code § 1572(3)	Actual fraud (suppression)	Suppression of the fact of receipt for 893 days.
Evid. Code § 413	Willful suppression	Adverse inference requested for all 911-related issues.

PART VI — RELIEF AVAILABLE

§VI.A — Vacatur (equitable action under Kougasian / Olivera)

Plaintiff is entitled to have all rulings procured by this fraud vacated immediately.

§VI.B — Terminating Sanctions (Slesinger)

Defense counsel's corruption of the judicial process is so pervasive that no remedy short of terminating sanctions (striking the Answer) can restore the integrity of the case.

§VI.C — Monetary Sanctions (§ 6128(b) treble; § 128.5; § 2023.030)

Plaintiff requests treble damages and all fees incurred in combatting this 900-day deception.

§VI.D — Fee-Shifting (§ 6128(a) private action per Rickley)

Attorney's fees are mandatory where attorney deceit is proven.

§VI.E — State Bar Referral (§ 6086.7)

This Court has a mandatory duty to report the conduct of counsel where it warrants discipline.

PART VII — CONCLUSION

This Court was told a story. It was a story of a Plaintiff who withheld evidence and a Defense that was blindsided. This Court believed that story because it was told by "officers of the court." This Court then ruled based on that story, and Plaintiff's case was gutted.

The story was a lie. The record now proves it. Justice requires that the consequences of that lie be undone.

Plaintiff respectfully requests that the Court grant terminating sanctions and vacate all rulings procured by defense's fraud on the court.

PART II — ESTOPPEL, WAIVER, AUTHENTICATION BY ACQUIESCENCE, AND JUDICIAL ESTOPPEL

II. LEGAL FRAMEWORK

A. Estoppel by Silence (Evidence Code § 623)

Evidence Code § 623 provides that when a party's conduct—including silence when there is a duty to speak—is relevant as tending to prove a fact, the fact may be established by that conduct. The four elements under *City of Long Beach v. Mansell* (1970) 3 Cal.3d 462, 493 are:

1. **Knowledge or notice of a fact;**
2. **Opportunity to speak or act in response;**
3. **A reasonable person in the party's position would have spoken or acted; and**
4. **The party remained silent or inactive.**

When a party satisfies these elements, the party is estopped from later asserting a contrary position. The doctrine operates because silence, where speech is expected, constitutes conduct on which opposing parties reasonably rely.

Element 3 Deepened: Reasonable Reliance Documented on the Transcript Plaintiff reasonably relied on Defendants' silence because **each time Plaintiff did speak, the Court held Plaintiff to the pro-per**

standard and denied relief:

- **Jan. 27, 2025:** CCP § 473 denied (Hr’g Tr. p. 49, ll. 10–11); continuance denied (Hr’g Tr. pp. 55–56).
- **Feb. 18, 2025:** “surprise under § 473 is not a sufficient basis” (Hr’g Tr. p. 181, ll. 21–25; SAC Exh. M, SAC Exhibit Appendix p. 146).

The reasonable reliance is thus **documented on the transcript**: Plaintiff’s attempts to raise the issue were procedurally foreclosed, which is why his reliance on the prior 883-day silence was reasonable. A party who speaks up four times and is denied each time has satisfied element 3 of *Mansell*.

B. Authentication by Acquiescence (Evidence Code § 1414(b))

The Court itself recognized defense’s authentication waiver: “They’re not questioning the authenticity in the documents.” (Hr’g Tr. Feb. 18, 2025, p. 174, ll. 19–25 (Wong, J.)) This is the Court’s own on-record recognition that defense had waived authenticity — made two months before the Apr. 16, 2025 “provided by Dolan” admission confirmed receipt.

Evidence Code § 1414 provides that a writing may be authenticated by evidence showing that “a party against whom it is offered has at any time admitted its authenticity” (subd. (a)) or “has treated it as authentic” (subd. (b)).

Under § 1414(b), authentication by conduct requires evidence that the party against whom the writing is offered has, through its course of conduct, treated the writing as what it purports to be. This includes:

- Receiving materials in discovery and proceeding through sworn deposition course without timely written authenticity challenge;
- Transferring the document in a file with other authentic materials;
- Issuing subpoenas presupposing the document’s existence and authenticity;

- Curating the document for trial presentation.

Defense’s MIL No. 17 relied on a categorical hearsay characterization of the 911 recording without acknowledging Evid. Code §§ 1220, 1240, 1241, 1271, and 1280. It also failed to acknowledge **§ 1414(b) authentication-by-conduct**, the doctrine that cuts against a party that has treated the writing as authentic through receipt, deposition course, file transfer, and subpoena practice.

C. Waiver of Discovery Objections (CCP §§ 2030.290, 2031.240)

Under CCP § 2030.290(a), a party who fails to serve a timely response to interrogatories waives any objection to the interrogatories. Under CCP § 2031.240(b), a party who fails to serve a timely response to a demand for inspection waives any objection to that demand.

By analogy, a party who fails to raise an authenticity objection during the discovery period waives the right to assert such objection on the eve of trial. The purpose of discovery is to prevent trial by ambush; a party who remains silent for 883 days cannot suddenly manufacture a “foundational” dispute in the final weeks before trial.

D. Judicial Estoppel (*Jackson*, *MW Erectors*)

Judicial estoppel prevents a party from asserting a position in a legal proceeding that is contrary to a position previously taken in the same or some earlier proceeding. *Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 183. *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986–987 quotes *Jackson* for the multi-element judicial estoppel framework, including the requirement that the first position was accepted by the tribunal. *MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.* (2005) 36 Cal.4th 412, 422 supplies further guidance on the “ignorance” limitation in element (4). The elements material here are:

1. The same party has taken two totally inconsistent positions;

2. In a judicial proceeding;
3. The first position was accepted by the tribunal;
4. The positions are not taken due to ignorance, fraud, or mistake; and
5. The party asserting the inconsistent position derived an unfair advantage.

Judicial estoppel is an equitable doctrine designed to protect the integrity of the judicial process by prohibiting parties from playing “fast and loose” with the courts.

III. THE 801 RECORD COMPELS APPLICATION

A. The Evidentiary Chain

The following evidentiary chain is documented on the certified record:

Date	Event	Evidence
Aug 18, 2022	911 audio served on defense counsel (content includes operator/yeah exchange and Rosario’s voice); Rosario deposition (Chambers)	Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup testimony); Rosario depo tr.

Date	Event	Evidence
Aug–Sep 2022	BWC footage (content includes independent Rosemond eyewitness statement) and CAD logs served on defense counsel	Feb. 18, 2025 Hr’g Tr. pp. 139–140
Sep 30, 2022	Abdelhalim deposition (Chambers); 911-related testimony	Abdelhalim depo tr.
May 4, 2023	Substitution of Attorney; file transferred to PSA	Transaction ID #69953800
Feb 1, 2024	Reyna (PSA) issues Compex subpoena to SFPD for identical materials	Order No. CA1147102-021
(chain)	SFPD transmitted body-cam links directly to counsel	Hr’g Tr. Feb. 18, 2025, p. 145 ll. 4–18 (Jessup: department sent links directly)
Feb 26, 2024	SFPD produces records in response to subpoena	SFPD Report 210079556
Sep 9, 2024	CAD identifiers served on Reyna; no objection	Production record

Date	Event	Evidence
Jan 17, 2025	MIL No. 6: “not produced in discovery”; MIL No. 17: “no idea where it came from”	Clerk’s Tr. Vol. 1 pp. 149–151, 238
Feb 18, 2025	Navaratnasingham: “our office did not receive the 911 call until the day of the MSC... this is news to me”	Hr’g Tr. p. 141 ll. 4–11
Apr 16, 2025	Navaratnasingham: “They were provided by Dolan”	RT 7, p. 213, ll. 13–15
Apr 17, 2025	Abdelhalim authenticates 911: “Yes. That is my voice.”	RT 8, p. 108, l. 28 (SAC Exh. P, SAC Exhibit Appendix p. 171)

B. Estoppel by Silence — Application

Element 1 (Knowledge): Defense counsel received the materials in August–September 2022; Chambers appeared at the August 18, 2022 Rosario deposition and the September 30, 2022 Abdelhalim deposition (911-related testimony); and (through successor counsel Reyna) issued a subpoena for the identical materials on February 1, 2024. Chambers/CSK Knowledge was not merely of file receipt, but of the file content itself (the operator’s affirmative response, Plaintiff’s voice, and independent eyewitness corroboration), which is why 883 days of silence is materially probative. The April 16, 2025 “pro-

vided by Dolan” admission confirms that the production history was known to the defense team.

Element 2 (Opportunity): Defense counsel had continuous opportunity from August 2022 through January 2025 to file a motion to compel, serve a discovery objection, issue a meet-and-confer letter, or raise any challenge to authenticity or provenance.

Element 3 (Reasonableness): A reasonable defense attorney who genuinely believed the materials were inauthentic, improperly produced, or of unknown provenance would have raised that objection during the 883-day window—not on the eve of trial. The purpose of discovery is to surface authenticity disputes before trial, not to spring them as tactical surprises in motions in limine.

Element 4 (Silence): No objection, motion, or challenge was raised until MIL Nos. 6 and 17 on January 17, 2025—883 days after service and 620 days after the file was transferred to successor counsel.

Conclusion: Defendants are estopped by their silence from contesting the authenticity, receipt, or provenance of materials they received in discovery, addressed in sworn deposition course without timely written challenge, subpoenaed, and transmitted without objection.

C. Authentication by Acquiescence — Application

Defendants treated the materials—specifically, the 911 audio (containing Abdelhalim’s admissions, the operator’s “you hit a pedestrian” exchange, and Plaintiff’s own voice) and the BWC (containing the independent Rosemond eyewitness statement)—and CAD logs as authentic through multiple acts:

Scienter is evident from defense counsel’s imputation of fabrication:

At the January 27, 2025 hearing, defense counsel stated: “we really don’t know who redacted these things and what — if that representation is true.” (Hr’g Tr. Jan. 27, 2025, p. 31, ll. 1–5.) This imputation of fabrication against Plaintiff

— made while defense was in possession of the originals via Dolan — is scienter evidence under *Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412.

1. **Deposition course (Aug. 18 and Sept. 30, 2022):** Chambers appeared at Mr. Rosario’s and Mr. Abdelhalim’s depositions; Abdelhalim gave 911-related sworn testimony. Defense raised no written authenticity or provenance challenge during the 883-day window.
2. **File Transfer (May 4, 2023):** The Substitution of Attorney (Transaction ID #69953800) transferred the defense file—including these materials—from Chambers/CSK to PSA. A file transfer presupposes that the materials being transferred are what they purport to be.
3. **Complex Subpoena (Feb. 1, 2024):** Reyna’s subpoena to SFPD requesting the identical materials presupposes their authenticity. One does not subpoena materials one believes are fabricated.
4. **CAD Transmission (Sept. 9, 2024):** Plaintiff served CAD identifiers on Reyna. No objection was raised.
5. **Trial Curation (Apr. 16, 2025):** Navaratnasingham testified that the defense had “five videos” and had pared them down to “about 8 or 9 minutes” for the jury. Active curation presupposes authenticity.

Under Evidence Code § 1414(b), these acts constitute authentication by conduct. Defendants waived any authenticity challenge by their 883-day course of conduct treating the materials as what they purport to be.

D. Waiver — Application

By analogy to CCP §§ 2030.290 and 2031.240, Defendants waived any authenticity or provenance objection by failing to raise it during the discovery period. The 883-day window provided ample opportunity to challenge the materials; Defendants’ silence waived the right to assert such challenges on the eve of trial.

E. Judicial Estoppel — Application

Controlling synthesis. As summarized in §II.D, *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986–987 (quoting *Jackson v. County of Los Angeles*, supra, 60 Cal.App.4th at p. 183) anchors the **Tribunal Acceptance** inquiry for the matrix below, including the requirement that the first position was accepted as true. *MW Erectors*, supra, 36 Cal.4th at page 422, frames the “ignorance” limitation for element (4).

Position A (The Suppression): - MIL No. 6 (Jan. 17, 2025): Materials were “not produced in discovery.” - MIL No. 17 (Jan. 17, 2025): “Defendant has no idea where this 911 call log or audio recording came from.” - Feb. 18, 2025 hearing: MSC-date and “news to me” (Hr’g Tr. p. 141 ll. 4–11). - Apr. 16, 2025 trial: “Not anything that we received as part of the subpoena.”

Position B (The Admission): - Feb. 18, 2025 hearing: “all this stuff has been in his possession since August” (Hr’g Tr. p. 181 ll. 6–23). - Apr. 16, 2025 trial: “Sure. They were provided by Dolan. He has had them for whatever, sure.” (RT 7, p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161).)

Intra-Day / Intra-Hearing Contradictions The same-day Feb. 18, 2025 record pairs Position-A framing (p. 141) with Position-B possession (p. 181). The same-day Apr. 16, 2025 trial record pairs stacked foundation attacks with the “provided by Dolan” admission. Each pattern satisfies *MW Erectors* element (4) (not taken from ignorance).

Tribunal Acceptance (Four Discrete Rulings): The prior brief cited Feb. 18 “I see. Okay” for tribunal acceptance. That is a weak single interjection. The record supports **four discrete Court rulings** in which tribunal acceptance of Position A is manifest:

1. **Jan. 27, 2025, p. 41, ll. 3–11:** MIL on 911 denied without prejudice—requires foundation that Position A presumes was lacking.

2. **Jan. 27, 2025, p. 55, ll. 4–6:** MIL 1 granted—excludes expert testimony, narrowing Plaintiff’s trial posture.
3. **Jan. 27, 2025, p. 49, ll. 10–11:** CCP § 473 denied—forecloses relief channel.
4. **Feb. 18, 2025, p. 181, ll. 21–25:** “surprise under § 473 is not a sufficient basis”—second denial of relief channel.

Four rulings is a more robust tribunal-acceptance record than one interjection. Each ruling depended on the Court accepting Position A as the operative factual premise. The Court denied Plaintiff’s continuance request and maintained the MIL posture based on these representations.

Total Inconsistency: Position A asserts that the materials were not produced, not received, and of unknown provenance. Position B admits both (i) Feb. 18, 2025 possession “since August” (Hr’g Tr. p. 181 ll. 6–23) and (ii) Apr. 16, 2025 trial admission that materials were “provided by Dolan,” the same source Jessup testified had produced them to defense counsel in August–September 2022. These positions are mutually exclusive.

Not Ignorance: The casual phrasing of Position B—“for whatever, sure”—demonstrates that the Dolan origin was a known, settled fact within the defense team, not a recent discovery.

Unfair Advantage: The defense obtained rulings that excluded evidence, denied continuances, and foreclosed Plaintiff’s ability to authenticate and sequence his evidentiary presentation. The defense obtained a 9–3 verdict.

Conclusion: Defendants are judicially estopped from retaining the benefits of a verdict procured through Position A when Position B proves Position A was false.

IV. RELIEF

The estoppel doctrines addressed in this brief compel the following relief:

A. Evidence Sanctions Under CCP § 2023.030

Under CCP § 2023.030(c), the Court may impose an evidence sanction by an order “establishing designated facts in accord with the claim of the party adversely affected by the misuse of the discovery process.” Plaintiff requests an order deeming the following facts established:

1. The 911 audio (including the operator’s affirmative response and Plaintiff’s voice), body-worn camera footage (including the independent eyewitness statement), and CAD logs were produced to defense counsel in August–September 2022.
2. Defense counsel participated in sworn deposition course (Rosario 8/18/22; Abdelhalim 9/30/22) without raising a written authenticity or provenance challenge during the 883-day window.
3. Defense counsel (Reyna) issued a subpoena on February 1, 2024 for the identical materials.
4. Defendants are barred from contesting the authenticity or provenance of these materials.

B. Foreclosure of Authenticity/Receipt Objections

The Court should rule that Defendants are estopped from raising any authenticity or provenance objection to the 911 audio (including the operator/yes exchange and Rosario’s voice), body-worn camera footage (including the Rosemond eyewitness statement), or CAD logs in any proceeding arising from the underlying litigation.

C. Fee-Shifting

Under Bus. & Prof. Code § 6128(a) and CCP § 128.5, Plaintiff is entitled to reasonable attorney's fees and costs incurred as a result of Defendants' misconduct.

V. CONCLUSION

Defendants' litigation posture in this case is built on a foundation of inconsistent positions. They remained silent for 883 days while the materials (containing a direct party admission, an operator-elicited affirmative response, Plaintiff's own voice, and independent eyewitness corroboration) were produced, addressed in sworn deposition course without timely written challenge, subpoenaed, and transmitted—then claimed on the eve of trial that the same materials were of “unknown provenance” and “news to me.” Minutes after inducing exclusionary rulings based on these representations, defense counsel admitted the materials were “provided by Dolan.”

The law does not permit parties to play fast and loose with the courts. Defendants are estopped by their silence, waived their authenticity objections by their 883-day course of conduct, authenticated the materials by their treatment of them as genuine, and are judicially estopped from asserting positions inconsistent with their April 16, 2025 admission.

Plaintiff respectfully requests the Court apply these doctrines, deny Defendants' motions, and grant the relief described above.

PART III — EXHIBIT-BY-EXHIBIT ESTOPPEL RECORD

ESTOPPEL EVIDENTIARY APPENDIX — EXHIBIT-BY-EXHIBIT ESTOPPEL RECORD

PURPOSE

This appendix maps each evidentiary item to the estoppel chain: (1) service/production date with proof; (2) deposition/hearing cite showing defense use or acquiescence; (3) substitution-of-counsel fact confirming transfer; (4) defense silent conduct (dates of non-objection); (5) trial-day denial cite; and (6) estoppel doctrine triggered. The six-column format allows the Court to trace each item through the complete chain from receipt to reversal.

MASTER ESTOPPEL RECORD (LIST)

- **2021 SFPD transmission to Dolan — Service/production:** May 2021 (approx.) — Feb. 18, 2025 Hr’g Tr. p. 139, l. 11 (“Dolan had a copy since 2021”). **Deposition/hearing:** Same hearing testimony ties knowledge window to prior defense era. **Substitution (TxID 69953800):** May 4, 2023 — file transferred. **Silent conduct:** Runs alongside 883-day post-service window. **Trial-day denial:** Feb. 18, 2025 Hr’g Position-B (p. 181 ll. 6–23). **Doctrine(s):** § 623 element 1 (knowledge/notice extends to 2021 transmission).
- **911 Audio Recording — Service/production:** Aug 18, 2022 — Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup: produced/served in discovery, including in connection with Rosario depo; content includes op-

erator/yes exchange and Rosario’s own voice). **Deposition/hearing:** Aug. 18, 2022 Rosario depo (Chambers); Sept. 30, 2022 Abdelhalim depo (Chambers; 911-related testimony). **Substitution:** May 4, 2023 — file transferred from Chambers/CSK to PSA. **Silent conduct:** 883 days: Aug 18, 2022 – Jan 17, 2025. No motion to compel, no discovery objection, no meet-and-confer. **Trial-day denial:** MIL No. 17 (Jan. 17, 2025): “no idea where it came from”; Feb. 18, 2025 Hr’g: “news to me” (p. 141, ll. 4–11). **Doctrine(s):** § 623 (silence); § 1414(b) (acquiescence); judicial estoppel (*Jackson*).

- **Body-Worn Camera Footage (~5 videos) — Service/production:** Aug–Sep 2022 — Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup: “body cam footage, about five videos”). **Deposition/hearing:** Same Aug.–Sep. 2022 production/service; Rosario 8/18/22 and Abdelhalim 9/30/22 deposition course. **Substitution:** May 4, 2023 — file transferred. **Silent conduct:** 883 days silence. **Trial-day denial:** Apr. 16, 2025 admission: “They were provided by Dolan” (RT 7, p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161); defense curated “five videos” for trial. **Doctrine(s):** § 623; § 1414(b); judicial estoppel.
- **CAD Logs — Service/production:** Aug–Sep 2022 — Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup: “as well as the CAD log”). **Deposition/hearing:** Same production/service and deposition course as 911/BWC. **Substitution:** May 4, 2023 — file transferred. **Silent conduct:** Sept. 9, 2024: CAD identifiers served on Reyna; no objection raised. 883 days total. **Trial-day denial:** MIL No. 17; Feb. 18 hearing. **Doctrine(s):** § 623; § 1414(b).
- **SFPD Report 210079556 — Service/production:** Feb. 26, 2024 — produced in response to Reyna Complex subpoena. **Silent conduct / knowledge:** Feb. 1, 2024 subpoena issued by Reyna to SFPD; Feb. 26, 2024 production. Defense-initiated. **Trial-day denial:** Apr. 16, 2025

trial: “not anything that we received as part of the subpoena” (RT ll. ~2874). **Doctrine(s):** § 623 (Reyna knew of subpoena); § 1414(b) (subpoena presupposes existence).

- **Compex Subpoena Order CA1147102-021 — Service/production:** Feb. 1, 2024 — issued by Reyna/PSA to SFPD. **Doctrine(s):** Evidence of defense knowledge; § 623 element 1 (knowledge).
- **CSAA Feb. 25, 2021 Denial Letter — Service/production:** Feb. 25, 2021 — 21 days post-collision. **Doctrine(s):** Institutional context; CSAA direction evidence.
- **Substitution of Attorney (TxID #69953800) — Service/production:** May 4, 2023 — filed in CGC-21-594102. **Substitution:** Transfers defense file from Chambers/CSK to PSA. **Silent conduct:** File transfer point; production history not conveyed (per FAC allegations). **Doctrine(s):** § 1414(b) (transfer presupposes authenticity of transferred materials).
- **Abdelhalim Sept. 30, 2022 Deposition — Date:** Sept. 30, 2022. **Deposition/hearing:** Chambers present; Abdelhalim 911-related testimony; marked exhibits images. **Substitution context:** Transcript in defense file at substitution. **Silent conduct:** No written authenticity/provenance challenge for 883 days despite receipt and deposition course. **Doctrine(s):** § 1414(b) (acquiescence through receipt and course of conduct).
- **Abdelhalim Apr. 17, 2025 Authentication — Date:** Apr. 17, 2025. **Record:** RT 8, p. 108, l. 28 (SAC Exh. P, SAC Exhibit Appendix p. 171): “Yes. That is my voice.” **Doctrine(s):** Party admission; § 1220; ratification.
- **RT 8 court order: strip AI/auto-captions from BWC — Trial Day 8. Record:** RT 8, PG 12–14 (court orders AI/auto captions

stripped from body-cam presentation). **Doctrine(s):** Judicial estoppel / procedure channel.

TIMELINE: 883-DAY SILENCE WINDOW

The following sequence runs from **August 18, 2022** (911 audio served; start of the pretrial window) through **January 17, 2025** (MIL Nos. 6 and 17 filed — “not produced” / “no idea”). This is the core **883-day silence** period referenced throughout these oppositions.

1. **Aug. 18, 2022:** 911 audio served on defense; Rosario deposition (Chambers present). *(911 audio includes operator/yes exchange and Plaintiff’s voice.)*
2. **Sept. 30, 2022:** Abdelhalim deposition (Chambers present; 911-related testimony).
3. **May 4, 2023:** Substitution of Attorney (TxID 69953800; defense file transferred to PSA).
4. **Feb. 1, 2024:** Reyna Complex subpoena to SFPD (Order CA1147102-021; identical materials requested).
5. **Feb. 26, 2024:** SFPD production in response (SFPD Report 210079556).
6. **Sept. 9, 2024:** CAD identifiers served on Reyna (no written objection).
7. **Jan. 17, 2025:** MIL Nos. 6 and 17 filed — defense “not produced” / “no idea” posture on the record.

Across this window Defendants did not file a motion to compel, a formal discovery objection, or a meet-and-confer challenge to authenticity or provenance of the core materials — satisfying the *Mansell* estoppel framework as applied in Plaintiff’s briefs and declaration.

DETAILED EXHIBIT ANALYSIS

Exhibit 1: 911 Audio Recording

Chain of Custody: 1. **Origin:** 911 call placed by defendant Abdelhalim immediately after the February 4, 2021 collision. The recorded content includes Abdelhalim's admissions, the operator's direct "you hit a pedestrian" question and his affirmative "yeah" (RT 8, p. 112, ll. 16–22; p. 113, ll. 11–17), and Plaintiff Rosario's own voice identifying the striking vehicle (RT 8, p. 34, ll. 17–25). 2. **SFPD Possession:** Audio retained by SFPD as part of incident documentation. 3. **Production to Plaintiff:** Obtained by Plaintiff's counsel (Dolan Law Firm) through discovery/subpoena. 4. **Service on Defense:** Served on Chambers/CSK on or about August 18, 2022. 4a. **Jessup corroboration (Feb. 18, 2025):** "was produced to defense counsel, body cam footage, about five videos, as well as the 911 audio, as well as the CAD log." (Hr'g Tr. p. 140, ll. 20–22.) "All of that – those items were served on them in the production for discovery as well at Mr. Rosario's deposition..." (Hr'g Tr. p. 141, ll. 18–23; prior defense firm before Chambers.) 5. **Deposition course:** August 18, 2022 Rosario deposition (Chambers); September 30, 2022 Abdelhalim deposition (Chambers; 911-related testimony). No written authenticity challenge in the 883-day window. 6. **File Transfer:** Transferred to PSA on May 4, 2023 as part of defense file. 7. **Trial Authentication:** Authenticated by Abdelhalim on April 17, 2025: "Yes. That is my voice." (RT 8, p. 108, l. 28 (SAC Exh. P, SAC Exhibit Appendix p. 171))

Estoppel Analysis: - **§ 623:** Defense had knowledge (Aug 2022), opportunity (883 days), duty to object (reasonable attorney would), and remained silent. Estopped. - **§ 1414(b):** Defense received the audio in discovery, participated in sworn deposition course without timely written challenge, transferred it in the file; Abdelhalim authenticated it at trial. Authenticated by

conduct. - **Judicial Estoppel:** Position A (“news to me”) contradicts Position B (“provided by Dolan”). First position accepted by tribunal. Defense is estopped.

Exhibit 2: Body-Worn Camera Footage (~5 videos)

Chain of Custody: 1. **Origin:** Recorded by SFPD officers responding to the February 4, 2021 collision. The footage captures both an independent eyewitness statement (Justin Rosemond) confirming the van/truck struck the pedestrian, and Plaintiff’s own on-scene statement identifying the vehicle. 2. **Production to Plaintiff:** Same production as 911 audio (Aug–Sep 2022). 3. **Service on Defense:** Served on Chambers/CSK in Aug–Sep 2022 (Jessup testimony). 3a. **SFPD direct transmission:** SFPD transmitted body-cam links directly to counsel (Hr’g Tr. Feb. 18, 2025, p. 145, ll. 4–18). 3b. **Jessup corroboration (service on prior firm):** Same quotations as Exhibit 1 chain (Hr’g Tr. p. 140, ll. 20–22; p. 141, ll. 18–23). 4. **File Transfer:** Transferred to PSA on May 4, 2023. 5. **Trial Curation:** Navaratnasingham testified on April 16, 2025 that defense had “five videos” and pared them to “8 or 9 minutes” for the jury. 6. **The Admission:** “They were provided by Dolan.” (RT 7, p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161))

Estoppel Analysis: - **§ 1414(b):** Active curation of videos for trial presentation presupposes authenticity. Defense waived any authenticity challenge. - **Judicial Estoppel:** The “provided by Dolan” admission contradicts the “unknown provenance” position in MIL 17.

Exhibit 3: CAD Logs

Chain of Custody: 1. **Origin:** Computer-Aided Dispatch records from SFPD. 2. **Production to Plaintiff:** Same production as 911 and BWC (Aug–Sep 2022). 3. **Service on Defense:** Served on Chambers/CSK in Aug–Sep 2022. 4. **Additional Service:** CAD identifiers served directly on Reyna

on September 9, 2024. No objection raised. 5. **File Transfer:** Transferred to PSA on May 4, 2023.

Estoppel Analysis: - **§ 623:** Two separate services (2022 and 2024); no objection to either. Estoppel by silence. - **§ 1414(b):** Receipt and retention without objection = authentication by acquiescence.

Exhibit 4: SFPD Report 210079556

Chain of Custody: 1. **Origin:** Supplemental police report relating to the collision. 2. **Subpoena:** Reyna (PSA) issued Compex subpoena (Order CA1147102-021) on February 1, 2024, requesting “all documents, records stored in any format” relating to the collision. 3. **Production:** SFPD produced records on February 26, 2024. 4. **Trial Denial:** Reyna stated on April 16, 2025: “not anything that we received as part of the subpoena.”

Estoppel Analysis: - **Internal Contradiction:** The February 1, 2024 subpoena and February 26, 2024 production are in PSA’s files. The April 16, 2025 denial is false on its face. - **§ 623:** Defense initiated the subpoena. Cannot now claim ignorance of the response.

Exhibit 5: Compex Subpoena Order CA1147102-021

Significance: This document is evidence of defense-side knowledge that the 911/BWC/CAD materials existed and were relevant. Reyna subpoenaed the identical materials in February 2024—while MIL 17 (filed January 2025) claimed “Defendant has no idea where this 911 call log or audio recording came from.”

Estoppel Analysis: - The subpoena presupposes the existence and authenticity of the materials. One does not subpoena records one has never heard of. - This satisfies Element 1 (knowledge) of the *Mansell* estoppel test.

DATED: April 16, 2026

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per

Part II — Bench binder / hearing packet

PURPOSE OF THIS PACKET

This bench binder is submitted for the Court's convenience at oral argument. It maps each defense authority to the plaintiff's pivot authority and provides a Q1-Q10 oral argument framework.

Interlocutory appeal bar: For the consolidated primer on **CCP § 904.1**, **§ 425.17** (including **§ 425.17(e)**), writ standards, **Morehart/Kurwa** severance, and **CRC 8.116** stay opposition, see **Part III** of this bench brief (*Interlocutory appeal bar*).

For a consolidated fatal-defects bench brief in hybrid tribunal tone (standards and neutral framing, then requested relief and cross-references), see [Section X](#) after Section 1.

FRONT PAGE: THREE QUESTIONS THAT DECIDE BOTH MOTIONS

If the Court answers these three questions in sequence, both the Demurrer and the Anti-SLAPP motion resolve cleanly:

1. **What is the injury-producing act?** Not the claim label, not the surrounding litigation — the specific act alleged to have caused the harm. Under *Park* and *Bonni*, this must be isolated before any protection analysis.
2. **Was that act actually adjudicated in the underlying case?** Under *Lucido* and *Mycogen*, collateral estoppel requires that the precise issue was necessarily decided. A negligence verdict did not decide whether production history was concealed from successor counsel, whether court-

facing provenance statements were false, or whether Plaintiff was deprived of a fair adversary hearing.

3. **If assumed true, does the alleged conduct describe ordinary litigation advocacy or procurement-level fraud impairing a fair hearing?** Under *Kulchar*, *Westphal*, and *Kougasian*, extrinsic fraud is conduct that prevents a party from fully presenting their case — not argument or evidence offered at trial. Ordinary advocacy is protected; procurement-level process corruption is not.

These three questions route the Court to the correct doctrinal framework and isolate defense authority that only applies after the gravamen has been miscategorized. For a ruling-oriented catalog of how each motion fails the governing standards, cross-reference [Section X](#).

FRONT PAGE: WORST-QUESTION ANSWERS

Direct, concise responses to the defense’s strongest rhetorical points:

“Wasn’t the evidence eventually shown to the jury?”

Partial presentation under a corrupted procedural posture is not a cure. The concealment of the production history altered what Plaintiff could authenticate, subpoena, and argue before and during trial. Extrinsic fraud is measured by what was *prevented*, not by what finally leaked through. *Kulchar* asks whether a party was “kept in ignorance” such that they were “unable to present” their case — not whether a courtroom event eventually occurred.

“Why isn’t this just intrinsic fraud?”

Intrinsic fraud is perjury or false evidence *at* trial. *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397. Extrinsic fraud operates *outside* the adjudicative process to prevent fair participation. The gravamen here is (a) out-of-court lulling and (b) file-transfer concealment to successor counsel — both pre-adjudicative, both operating outside the courtroom. That is the textbook extrinsic pattern.

“Why aren’t you just appealing trial rulings?”

Because this is not an appeal. It is an independent equitable action to set aside a judgment procured by extrinsic fraud. *Kougasian v. TMSL, Inc.* (2004) 118 Cal.App.4th 1028; *Olivera v. Grace* (1942) 19 Cal.2d 570. Section 904.1 is a routing statute; it does not confer merits immunity on fraud in the procurement of the judgment.

“What exactly did Carbone and Chambers themselves do?”

The FAC alleges: (1) Chambers and Carbone held custody of the production history; (2) they transferred the litigation file to successor counsel without conveying that history; (3) they knew or recklessly disregarded that successor counsel would rely on the stripped file to make court-facing provenance representations; (4) CSAA, as institutional principal, directed and ratified that transfer. Agency principles do the rest. The conduct is institutional, not purely communicative, and falls outside *Kimmel*’s communicative-act privilege.

SECTION 1: TABBED PIVOT AUTHORITIES

TAB 1: PARK v. BOARD OF TRUSTEES (2017) 2 Cal.5th 1057

Defense Use

Defendants cite Park for the proposition that “speech or petitioning activity itself” as the wrong supports Anti-SLAPP. (Anti-SLAPP MPA, p.13, ll.20-22)

What Defendants Do Not Address

The mandatory step-one gravamen analysis at pages 1062-1064.

Plaintiff’s Pivot

Park **requires** isolating the specific injury-producing act before proceeding to step two. The Court must ask: What is the gravamen of the FAC? Is the injury-producing act protected petitioning, or is it extrinsic fraud and process corruption?

Key Quote (2 Cal.5th at 1062)

“In the anti-SLAPP context, the critical point is whether the plaintiff’s cause of action itself was based on an act in furtherance of the defendant’s right of petition or free speech.”

Application

The FAC’s gravamen is not petitioning itself. It is extrinsic fraud, tribunal reliance, and structural hearing impairment.

**TAB 1A: BONNI v. ST. JOSEPH HEALTH SYSTEM
(2021) 11 Cal.5th 995****Role**

Current controlling Supreme Court authority on Anti-SLAPP step one. Post-dates and refines Park. Not addressed by Defendants.

Key Holding (11 Cal.5th at 1010-1012)

The court must parse each claim and each alleged act separately. Label-based analysis that sweeps all conduct into a single “protected activity” bucket is reversible error.

Application

Defendants treat the FAC as a monolith of “litigation conduct.” Bonni requires a claim-by-claim, act-by-act matrix. Applied here, out-of-court lulling, file-transfer concealment, and court-facing misrepresentations must each be analyzed individually — and several fail protected-activity classification.

**TAB 1B: WILSON v. CABLE NEWS NETWORK, INC.
(2019) 7 Cal.5th 871****Role**

Supreme Court clarification of the element-vs-evidence distinction on Anti-SLAPP step one.

Key Holding (7 Cal.5th at 884)

The protected act must be an *element* of the claim, not merely *evidence* that supports the claim. Conduct that is background or context, not the thing sued

upon, is not protected activity.

Application

The defense recharacterizes every communication during litigation as protected petitioning. Wilson forbids that. The elements of extrinsic fraud are (1) concealment or misrepresentation, (2) preventing full participation, (3) reliance, (4) a resulting unfair hearing. The “petitioning” Defendants point to is evidence-level background, not element-level protected activity.

TAB 2: KIMMEL v. GOLAND (1990) 51 Cal.3d 202

Defense Use

Defendants do not cite Kimmel. They treat Civil Code section 47(b) as blanket immunity for all “litigation conduct.”

What Defendants Do Not Address

The communications vs. conduct boundary.

Plaintiff’s Pivot

Under Kimmel, the litigation privilege protects qualifying **communications**, not every act during litigation. Noncommunicative institutional conduct (file custody, production history failures, agency oversight) falls outside section 47(b).

Key Holding

The privilege is limited to communicative acts. See also *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1057.

Application

The FAC alleges noncommunicative conduct: file transfer failures, production history omissions, institutional oversight failures. These are not “communications” under Kimmel.

TAB 2A: RUSHEEN v. COHEN (2006) 37 Cal.4th 1048**Role**

Defines the boundary of the litigation privilege for noncommunicative acts.

Key Holding (37 Cal.4th at 1058)

Noncommunicative conduct is privileged only where it is “necessarily related” to a specific privileged communication. The privilege is not a blanket shield for everything that occurs during litigation.

Application

The file-transfer concealment and failure to convey production history are institutional duties owed to successor counsel. They exist independent of any particular court-facing communication. The “necessarily related” hook is absent. Rusheen therefore confirms rather than defeats Plaintiff’s theory: § 47(b) does not reach noncommunicative institutional conduct.

TAB 3: ACTION APARTMENT (2007) 41 Cal.4th 1232**Defense Use**

Defendants do not cite Action Apartment. They assert litigation privilege without acknowledging exceptions.

What Defendants Do Not Address

The extrinsic fraud exception to the litigation privilege.

Plaintiff's Pivot

Action Apartment establishes that **extrinsic fraud is an exception** to the litigation privilege. The privilege does not protect fraud on the tribunal.

Key Discussion (41 Cal.4th at 1242-1247)

Discussion of Silberg, Albertson, and the boundaries of the litigation privilege in fraud contexts.

Application

The FAC alleges extrinsic fraud and tribunal reliance. This falls within Action Apartment's exception.

Candid Framing

Action Apartment is a **bounded secondary backstop**, not Plaintiff's primary § 47(b) line. Plaintiff's primary § 47(b) defense is the **Kimmel** communications-versus-conduct line (Tab 2), reinforced by **Rusheen's** "necessarily related" boundary (Tab 2A). Action Apartment is cited only to confirm that *if* any alleged act is deemed communicative, the extrinsic-fraud exception still applies. This ordering avoids overclaiming the reach of Action Apartment and keeps the doctrinal posture clean.

TAB 4: FLATLEY v. MAURO (2006) 39 Cal.4th 299**Defense Use**

Defendants quote Flatley’s “finality of judgments” policy paragraph. (Anti-SLAPP MPA, p.9, ll.17-21)

What Defendants Do Not Address

Flatley’s actual holding: the **illegal-conduct exception**.

Plaintiff’s Pivot

Defendants quote Flatley’s finality paragraph; Defendants’ briefing does not discuss Flatley’s illegal-conduct limit. Flatley v. Mauro (2006) 39 Cal.4th 299, 320-325 holds that when petitioning activity is illegal as a matter of law, it loses Anti-SLAPP protection.

Key Holding (39 Cal.4th at 320-325)

Illegal conduct exception: Anti-SLAPP does not protect petitioning that is criminal or tortious as a matter of law.

Application

Fraud on the tribunal constitutes illegal conduct. Flatley does not provide the blanket protection Defendants claim.

TAB 5: MORADI-SHALAL (1988) 46 Cal.3d 287, p. 305**Defense Use**

Defendants implicitly rely on insurance-carrier immunity tropes.

What Defendants Do Not Address

Page 305: preservation of common law fraud jurisdiction.

Plaintiff's Pivot

Moradi-Shalal abrogated private actions under Ins. Code sec. 790.03(h). It did **not** eliminate common law fraud claims against insurers.

Key Quote (46 Cal.3d at 305)

The Court preserved common law fraud jurisdiction despite the Ins. Code limitation.

Application

The FAC alleges fraud and agency liability against CSAA. Moradi-Shalal does not bar this.

TAB 6: CROWLEY v. KATLEMAN (1994) 8 Cal.4th 666**Defense Use**

Defendants cite Singh (collateral estoppel), F.E.V., Rico, and Wouldridge (collateral attack definitions) without Crowley.

What Defendants Do Not Address

The mandatory primary rights analysis.

Plaintiff's Pivot

Crowley requires mapping: (1) the parties; (2) the issues actually litigated; and (3) the primary right enforced. Without this analysis, collateral estoppel

and collateral attack doctrines do not apply.

Key Holding

Primary rights doctrine: same parties, same issues, same primary right. Different primary rights = no preclusion.

Application

The underlying trial adjudicated negligence (personal injury). The FAC asserts equitable vacatur for extrinsic fraud (fair hearing). Different primary rights. No preclusion.

TAB 6A: MYCOGEN (2002) 28 Cal.4th 888 and LUCIDO v. SUPERIOR COURT (1990) 51 Cal.3d 335

Role

Two Supreme Court authorities that together supply the primary-rights test (Mycogen) and the “necessarily decided” requirement (Lucido) for any preclusion argument.

Mycogen Key Holding (28 Cal.4th at 904)

California’s primary-rights doctrine defines a cause of action by the right invaded, not the remedy sought or the legal theory labeled. Same injury + same primary right = same cause of action; different primary right = no preclusion.

Lucido Key Holding (51 Cal.3d at 341-342)

Collateral estoppel requires that the identical issue was “necessarily decided” in the prior action. Merely related, overlapping, or incidentally touched issues do not trigger preclusion.

Application

The underlying negligence action vindicated the primary right to freedom from negligent bodily harm. This action vindicates a different primary right: to a fair adversary hearing free of extrinsic fraud. Under *Mycogen*, no preclusion. Separately under *Lucido*, the negligence verdict did not necessarily decide (a) whether production history was concealed from successor counsel, (b) whether court-facing provenance statements were false, or (c) whether Plaintiff was deprived of full participation. No “necessarily decided” finding = no collateral estoppel.

TAB 7: KOUGASIAN v. TMSL, INC. (2004) 118 Cal.App.4th 1028

Role

Directly authorizes Plaintiff’s independent equitable action. Answers the defense’s “collateral attack” and “jurisdictional masquerade” themes with a holding-level California authority.

Key Holding (118 Cal.App.4th at 1034-1036)

An independent action to set aside a judgment procured by extrinsic fraud is not barred by *res judicata* and may proceed in the trial court. Fraud committed by a nonparty (or conduct operating outside the prior adjudication) is extrinsic and actionable.

Application

Plaintiff’s FAC is precisely the independent equitable action *Kougasian* recognizes. CSAA, Carbone, and Chambers were not parties of record in the underlying tort action; their conduct operated outside the adjudication of the

insured’s negligence. Kougasian forecloses the defense’s “this is just an appeal” and “collateral attack” framings.

TAB 8: OLIVERA v. GRACE (1942) 19 Cal.2d 570

Role

Long-standing California Supreme Court authority confirming trial-court equity jurisdiction to entertain an independent action to set aside a judgment procured by extrinsic fraud.

Key Holding (19 Cal.2d at 575-576)

Trial courts possess inherent equity jurisdiction to set aside judgments obtained by extrinsic fraud, independent of statutory vehicles such as § 473.

Application

Section 904.1 and CCP § 473(b) do not exhaust the Court’s power. Olivera confirms this Court’s equity jurisdiction over the present action. The defense’s appellate-routing theory (Rochin, § 904.1) cannot displace inherent equity jurisdiction recognized since 1942.

TAB 9: ESTOPPEL BY SILENCE / AUTHENTICATION BY ACQUIESCENCE

Role

Doctrinal cluster that independently bars Defendants from contesting authenticity, receipt, or provenance of the 911/BWC/CAD materials—regardless of how the Demurrer or Anti-SLAPP merits are resolved.

Evidence Code § 623 (Estoppel by Silence)

Elements under *City of Long Beach v. Mansell* (1970) 3 Cal.3d 462, 493:

1. Knowledge or notice of a fact;
2. Opportunity to speak or act in response;
3. A reasonable person in the party's position would have spoken or acted;
4. The party remained silent or inactive.

Application:

Element	Evidence
Knowledge	Materials served Aug–Sep 2022; Rosario depo 8/18/22 & Abdelhalim depo 9/30/22 (Chambers; 911-related testimony); Reyna subpoena 2/1/24. Defense knowledge included the content (operator/yes; Rosario voice; Rosemond eyewitness), not merely file existence.
Opportunity	883 days (Aug 18, 2022 – Jan 17, 2025) to file motion to compel, discovery objection, or meet-and-confer
Reasonableness	A reasonable attorney would raise authenticity concerns during discovery, not on eve of trial
Silence	No objection until MIL 6/17 on Jan 17, 2025

Conclusion: Defendants are estopped from contesting what they acquiesced to for 883 days.

Evidence Code § 1414(b) (Authentication by Acquiescence)

Key Holding: A writing may be authenticated by evidence that a party against whom it is offered has “treated it as authentic.”

Defense Conduct Treating Materials as Authentic:

1. Deposition course (8/18/22 & 9/30/22): Chambers appeared; Abdelhalim 911-related testimony; no written authenticity challenge in 883-day window
2. File transfer (5/4/23): Substitution transferred file as authentic
3. Compex subpoena (2/1/24): Reyna subpoenaed identical materials
4. CAD transmission (9/9/24): CAD identifiers served without objection
5. Trial curation (4/16/25): Defense curated “five videos” for jury

Conclusion: 883-day course of conduct authenticates the materials; waives any challenge.

Judicial Estoppel (*Jackson v. County of Los Angeles, MW Erectors*)**Five-Element Test:**

Element	Satisfied?
Same party took two inconsistent positions	YES: Position A (“news to me”) vs. Position B (“provided by Dolan”)
In judicial proceeding	YES: MILs, hearings, trial
First position accepted by tribunal	YES: Court said “I see. Okay.” and denied continuance
Not due to ignorance, fraud, or mistake	YES: “for whatever, sure” shows casual familiarity
Derived unfair advantage	YES: Exclusionary rulings, 9–3 verdict

Conclusion: Defense cannot retain verdict procured through Position A when

Position B proves it false.

CCP § 2023.010 Discovery Misuse

Defendants’ strategic silence—failing to raise authenticity challenges during 883-day window, then asserting them on eve of trial to exclude evidence—constitutes misuse of the discovery process under CCP § 2023.010(d) and (e), warranting evidence sanctions under § 2023.030.

SECTION X: BENCH BRIEF ON FATAL DEFECTS IN DEFENDANTS’ DEMURRER AND SPECIAL MOTION TO STRIKE

Introduction

This Section X is offered as a single scroll-length ruling guide. It assumes the pivot authorities in Section 1 above, especially Tab 1 (*Park* gravamen) and Tab 4 (*Flatley* read as a whole). Where analysis overlaps those tabs, this section cross-references rather than repeats block quotations.

Both motions turn on whether Plaintiff’s sole cognizable theory, an independent action in equity to set aside judgment for extrinsic fraud, is legally cognizable and triable on the pleaded facts and the certified record. Defendants recharacterize that theory as collateral relitigation, intrinsic fraud, or generic litigation advocacy entitled to immunity.

A recurring factual posture appears in the moving papers: Defendants do not dispute that the alleged conduct occurred; they assert immunity, privilege, or procedural bars. That posture matters at the demurrer and Anti-SLAPP steps where well-pleaded facts must be accepted as true or viewed in Plaintiff’s favor,

as the standards below describe.

Standards of decision

Demurrer. The Court tests the complaint’s four corners under Code of Civil Procedure sections 430.10 and 430.50. All well-pleaded facts are accepted as true; unclear facts are liberally construed. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.) Conclusory labels do not defeat specific factual allegations. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.)

Anti-SLAPP. At step one, the Court isolates the gravamen of the claim and asks whether the injury-producing act arises from protected speech or petitioning at the correct level of abstraction. (*Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1061-1064; *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010-1012.) Mixed-conduct complaints require parsing under *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396. At step two, the plaintiff need only show a minimum quantum of legal sufficiency and triability; evidence is viewed in the plaintiff’s favor. (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291; *Mann v. Quality Old Time Service* (2004) 120 Cal.App.4th 90, 105.)

Independent equitable action. California recognizes an independent action in equity to set aside a judgment procured by extrinsic fraud, with timeliness and scope governed by equity principles including laches. (*Oliviera v. Grace* (1942) 19 Cal.2d 570, 575-576; *In re Marriage of Stevenot* (1984) 154 Cal.App.3d 1051, 1068; *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471; *Kougasian v. TMSL, Inc.* (2004) 118 Cal.App.4th 1028, 1034-1037.)

Part III. Defects common to both motions (Tier 1 and related errors)

III.A. Procedural contamination (“standard bleed”)

Defense conduct. The Demurrer imports Anti-SLAPP step-two probability rhetoric, privilege tropes, or motion-for-summary-judgment standards into facial analysis (for example, characterizing Plaintiff’s fraud theory as “erroneous and speculative” or denying fraud on the merits at pages that should apply *Serrano*).

Controlling rule. Demurrer tests the complaint under sections 430.10 and 430.50. Anti-SLAPP uses the two-step framework under section 425.16. The standards are not interchangeable.

Effect. The Court must not weigh merits at demurrer. Arguments that treat the FAC’s fraud theory as speculative or nonexistent at the pleading stage are improper. (*Committee on Children’s Television v. General Foods Corp.* (1983) 35 Cal.3d 197, 213 [speaking demurrer]; *Serrano v. Priest*, supra, 5 Cal.3d at 591.)

Disposition consequence. Merits-dispositive rhetoric should be stricken or disregarded to the extent it functions as a speaking demurrer.

III.B. Gravamen skip (Anti-SLAPP step one)

Defense conduct. Defendants label “litigation conduct” as self-proving protected activity without isolating the injury-producing act (Anti-SLAPP MPA, p. 8, ll. 14-19, as described in Plaintiff’s GEN1 register).

Controlling rule. *Park*, supra, 2 Cal.5th at 1062-1064, requires isolating the specific injury-producing act. *Bonni*, supra, 11 Cal.5th at 1010-1012, requires claim-by-claim, act-by-act parsing. See also Section 1, Tab 1 and Tab 1A above.

Effect. The FAC's gravamen is extrinsic fraud, tribunal reliance, and structural impairment of a fair adversary hearing, not a freestanding defamation claim.

Disposition consequence. Without step-one proof that the injury-producing act is itself protected petitioning, the motion fails prong one.

III.C. Categorical misreads of channel cases

Defense conduct. Defendants read narrow holdings (*Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287; *Zhang v. Superior Court* (2013) 54 Cal.4th 826; Civil Code section 47(b)) as blanket immunity against fraud or equitable theories that touch insurance or litigation.

Controlling rule. *Moradi-Shalal*, supra, 46 Cal.3d at 305, preserves common law fraud jurisdiction. Section 47(b) targets qualifying communications and contains exceptions. Extrinsic-fraud lines remain under *Action Apartment Assn. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1242-1247. *Kougasian*, supra, 118 Cal.App.4th at 1035-1037, authorizes the independent equitable channel Plaintiff invokes.

Disposition consequence. Neither motion can treat section 47(b) as a per se bar to the FAC's theory.

III.D. Collateral attack without *Crowley* analysis

Defense conduct. Defendants collapse overlap with a prior judgment or pending appeal into a per se bar (*Singh v. BP Amoco Corp.* (2015) 227 Cal.App.4th 813; *F.E.V., Wouldridge*, as invoked in moving papers).

Controlling rule. *Crowley v. Katleman* (1994) 8 Cal.4th 666, 681-682, requires analysis of parties, issues actually litigated, and the primary right enforced. See Section 1, Tabs 6 and 6A.

Effect. The underlying trial adjudicated the primary right to be free from

negligent personal injury. This action asserts the primary right to a fair adversary hearing free from extrinsic fraud and process corruption. Different primary rights defeat issue-match without further analysis.

Disposition consequence. Collateral-estoppel and collateral-attack rhetoric fails without *Crowley* mapping.

III.E. Communications boundary error

Defense conduct. Defendants treat all institutional conduct during litigation as privileged “communications.”

Controlling rule. *Kimmel v. Goland* (1990) 51 Cal.3d 202, 211-212, as discussed in *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1057-1062, separates privileged communications from unprotected noncommunicative conduct except where conduct is necessarily related to a privileged communication.

Effect. The FAC alleges a two-phase pattern beginning with out-of-court conduct: withholding and failing to convey production history during the file transfer to successor counsel. That noncommunicative channel is not coextensive with section 47(b).

Disposition consequence. Privilege analysis must attach to specific communications, not to every alleged act.

III.F. *Flatley* selective read

Defense conduct. Defendants emphasize *Flatley v. Mauro* (2006) 39 Cal.4th 299, 322, finality policy while minimizing the illegal-conduct exception (Anti-SLAPP MPA, p. 9, ll. 17-21).

Controlling rule. *Flatley*, supra, 39 Cal.4th at 320-325: petitioning activity illegal as a matter of law is not shielded by section 425.16. See Section 1, Tab 4.

Effect. Fraud on the tribunal is treated as illegal conduct in this doctrinal cluster.

Disposition consequence. *Flatley* must be read whole; the exception preserves Plaintiff’s channel.

III.G. Precedent truncation pattern (candor to the tribunal)

Defense conduct. Selective quotation of *Kulchar*, *Aldrich*, *Moradi-Shalal*, and *Flatley* for broad policy while omitting limiting principles: (1) *Flatley* finality without illegal-conduct lines; (2) *Kulchar* “failed to assemble evidence” without the parallel branch for a party “fraudulently prevented” from presenting a claim; (3) *Aldrich* “extrinsic” definition without fact-specific application to what the jury actually decided; (4) *Moradi-Shalal* immunity discussion without page 305’s fraud preservation.

Candor notes (assertive). Defendants cite *Church of Scientology v. Wollersheim* (1996) 42 Cal.App.4th 628 with a “(disapproved of on other grounds)” parenthetical that obscures that *Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 66, footnote 5, disapproved the precise proposition on which Defendants rely. Defendants cite federal *United States v. Throckmorton* (1878) 98 U.S. 61 without acknowledging its non-binding status and the evolution of California’s extrinsic-fraud framework under *Kulchar*, *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397, and *Kougasian*.

Disposition consequence. The Court may appropriately read defense authority with skepticism where controlling limitations were not carried forward.

III.H. Binding judicial admissions in moving papers

Source. Defendants’ briefing treats the gravamen as conceded conduct presented under immunity theories.

Examples. (1) Anti-SLAPP MPA, p. 12, ll. 28, through p. 13, l. 2: conduct

“squarely within the judicial proceeding.” (2) Demurrer MPA, p. 6, ll. 15-18: file transfer without ensuring documentation and conveyance of production history to successor counsel. (3) Anti-SLAPP MPA, p. 11, l. 7: conduct characterized as, if true, negligence.

Controlling rule. Admissions in briefs bind the party making them. (*Valerio v. Andrew Youngquist Constr.* (2002) 103 Cal.App.4th 1264, 1271.)

Disposition consequence. Those concessions align with the FAC’s mechanism for extrinsic fraud (stripped file, reliance, tribunal effects).

III.I. “Evidence went to the jury” strawman

Defense conduct. Defendants substitute downstream exposure to the jury for upstream impairment of authentication, subpoena strategy, and adversary hearing integrity (Demurrer MPA, p. 4, ll. 18-21).

Controlling rule. Extrinsic fraud is measured by what was prevented, not only by what later surfaced. (*Kulchar v. Kulchar*, supra, 1 Cal.3d at 471.)

Factual incorporation by reference. *Judicial Admission Matrix* (**App. 3** below); *Transcript Appendix (911 / BWC)* (**App. 4** below). Hearing transcript, February 18, 2025, p. 141 (“news to me”); Reporter’s Transcript, vol. 7, p. 213, ll. 13-15 (contradictory provenance representation).

Disposition consequence. Neither demurrer nor Anti-SLAPP prong two may erase facts the Court must accept or credit at the applicable standard.

III.J. RFJN overreach

Defense conduct. Code of Civil Procedure section 430.70 and Evidence Code section 452 requests are used as substitutes for facial analysis or as merits proofs.

Controlling rule. Demurrer looks to the complaint and limited judicial notice of noncontroversial matters, not disputed truth of exhibit contents.

Disposition consequence. RFJN packets should not supply dispositive merits facts on demurrer. See *Combined Evidentiary Objections* and *Plaintiff's Declaration and Request for Judicial Notice in Support of Oppositions* (Part III).

III.K. Appeal-route substitution and jurisdictional masquerade

Defense conduct. Section 904.1 and *Rochin v. Pat Johnson Manufacturing Co.* (1998) 67 Cal.App.4th 1228 are framed as stripping the Superior Court of power to hear an independent equitable action (Demurrer MPA, p. 9, ll. 6-11).

Controlling rule. Section 904.1 governs appellate jurisdiction from a judgment; it does not abolish inherent equity jurisdiction to vacate a judgment procured by fraud on the tribunal. (*Olivera v. Grace*, supra, 19 Cal.2d at 575-576.) *Rochin* addresses post-judgment trial court power in a different posture; it does not convert this FAC into an improper appeal.

Disposition consequence. Jurisdictional demurrer grounds framed in this manner should be overruled.

Part IV. Anti-SLAPP-specific defects

IV.A. Prong-one gravamen: *Park* step skipped (AS-1)

Defendants apply *Park* rhetoric at step two as part of a privilege wall, assuming that because conduct occurred during litigation, petitioning is the wrong. *Park* and *Martinez v. Metabolife Int'l, Inc.* (2003) 113 Cal.App.4th 181, 188 (principal thrust), require the gravamen filter at step one. Cross-reference Part III.B and Section 1, Tab 1.

IV.B. Prong-two showing and triability (AS-2)

Under *Soukup* and *Mann*, *supra*, Plaintiff need only clear a minimum threshold. The Judicial Admission Matrix, Transcript Appendix A, and related hearing materials supply a *prima facie* channel on suppression and reliance; Defendants' reply record does not squarely negate the specific transcript lines Plaintiff highlights.

IV.C. Fee reciprocity under Code of Civil Procedure section 425.16(c)(1) (AS-3)

If the Court finds the motion frivolous or brought solely to cause unnecessary delay, fees may follow under subdivision (c)(1). The Tier 1 errors above support that request in Plaintiff's discretion.

IV.D. Additional spine items (AS-4 through AS-6)

AS-4 (privilege overlay on noncommunicative facts). Tied to Part III.C and III.E; *Plaintiff's Opposition to Anti-SLAPP Motion* §§ III and IV.

AS-5 (probability and merits at step one). Tied to Part III.A; same Opposition § II.

AS-6 (authentication, estoppel, acquiescence). Tied to Tabs 8 and 9 above and *Plaintiff's Brief Re: Estoppel, Waiver, Authentication, and Acquiescence*; *Plaintiff's Estoppel Evidentiary Appendix*.

Part V. Demurrer-specific defects

V.A. Jurisdictional bar and appeal masquerade (D-1)

Cross-reference Part III.K; *Olivera*; *Kougasian*.

V.B. Duplicate action and another action pending (D-2)

Code of Civil Procedure section 430.10(c) requires the same parties on the same cause. The appeal captioned *Rosario v. Abdelhalim* involves a single defendant and negligence theories. This action names additional institutional and counsel defendants and sounds in equitable vacatur. Different parties and different primary rights defeat the ground. (*Plant Insulation Co. v. Fibre-board Corp.* (1990) 224 Cal.App.3d 781, 788.) For collateral-estoppel and res judicata arguments tied to the same posture (spine D-3), see Part III.D and *Plaintiff's Brief Re: Estoppel, Waiver, Authentication, and Acquiescence*.

V.C. Section 473(b) limitations as a false temporal bar (D-8)

Section 473(b)'s six-month window governs the statutory relief motion for mistake, inadvertence, surprise, or excusable neglect. It does not govern an independent action in equity for extrinsic fraud. (*Olivera v. Grace*, supra, 19 Cal.2d at 575; *Bennett v. Hibernia Bank* (1956) 47 Cal.2d 540, 558; *In re Marriage of Stevenot*, supra, 154 Cal.App.3d at 1068.) Laches, not section 473(b), supplies the equitable time inquiry.

V.D. Extrinsic versus intrinsic fraud (D-4)

The FAC targets out-of-court lulling and court-facing misrepresentations affecting tribunal management, not only jury weighing of evidence presented at trial. That channel is extrinsic under *Kulchar* and *Westphal*, supra.

V.E. Litigation privilege blanket (D-5)

Cross-reference Part III.C and III.E; *Kimmel*; *Action Apartment*.

V.F. Uncertainty demurrer (D-6)

Uncertainty demurrers are disfavored. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; *Khoury v. Maly's of California*

(1993) 14 Cal.App.4th 612, 616.) The FAC supplies who, what, when, and how; Defendants' lengthy MPA demonstrates comprehension, which refutes an uncertainty theory.

V.G. Pleading sufficiency and *Serrano* (D-7)

Serrano, supra, separates conclusions from facts; it does not invite the Court to discard well-pleaded facts as “nonexistent.”

V.H. Standing and misjoinder (D-9)

Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268, addresses direct actions for policy benefits, not this equitable fraud-on-the-court theory. *Norton v. Hines* (1975) 49 Cal.App.3d 917, reflects adverse-party counsel immunity in ordinary tort channels, not a cap on naming participants in fraud on the tribunal. *Estate of Sanders* (1985) 40 Cal.3d 607, 615-616, recognizes attorneys who participate in fraud on the court as proper parties. The FAC pleads CSAA's agency and ratification under Civil Code section 2338.

V.I. RFJN overreach (D-10)

Cross-reference Part III.J and *Combined Evidentiary Objections*.

V.J. Meet-and-confer defect (Code of Civil Procedure section 430.41)

Section 430.41 requires a meaningful meet-and-confer with a declaration describing efforts. The O'Connell declaration (Clerk File No. 10057589) is dated February 13, 2026, roughly two months before the Demurrer filing and does not demonstrate substantive engagement with the FAC as amended. See *Combined Evidentiary Objections* (objections to defense declarations).

Part VI. Requested relief

Demurrer. Overrule in full. If the Court identifies any pleading refinement, grant leave to amend rather than sustaining without leave, consistent with *Blank v. Kirwan*, supra, 39 Cal.3d at 318.

Anti-SLAPP. Deny the motion. Plaintiff requests a finding under Code of Civil Procedure section 425.16(c)(1) where the record supports it, with an award of fees and costs.

SECTION 2: ORAL ARGUMENT FRAMEWORK (Q1-Q10)

Q1: Gravamen and Anti-SLAPP Step One

Question the Court may ask: > “On Anti-SLAPP step one, what is the specific injury-producing act on which plaintiff’s equitable theory rests, and is that act protected petitioning at the proper level of abstraction?”

Plaintiff’s Response: The injury-producing acts are: (1) out-of-court communications inducing reliance on evidence resolution; (2) file transfer without production history conveyance; (3) court-facing misrepresentations inducing procedural rulings.

These are not “speech or petitioning activity itself.” They are extrinsic fraud channels.

Pivot: Park (2 Cal.5th at 1062-1064); Martinez (113 Cal.App.4th 181).

Q2: Noncommunicative Conduct

Question the Court may ask: > “Which FAC paragraphs supply noncommunicative institutional conduct that is not reducible to ‘speech or petitioning activity itself’?”

Plaintiff’s Response: The FAC alleges: - File custody failures during substitution - Production-history omission - Agency oversight failures by CSAA - Procedural-window narrowing through process failures

None of these are “communications” under Kimmel.

Pivot: Kimmel (51 Cal.3d 202); Rusheen (37 Cal.4th 1048).

Q3: Extrinsic Fraud Exception

Question the Court may ask: > “Do any pleaded channels fall within the extrinsic fraud exception to the litigation privilege?”

Plaintiff’s Response: Yes. The FAC alleges a two-phase pattern: out-of-court lulling followed by court-facing misrepresentations that induced tribunal reliance. This is textbook extrinsic fraud under Kulchar and falls within the Action Apartment exception.

Pivot: Action Apartment (41 Cal.4th at 1242-1247); Flatley read as a whole.

Q4: Pollock and Privilege Doubts

Question the Court may ask: > “Does Pollock resolve this case?”

Plaintiff’s Response: No. Pollock (112 Cal.App.4th 1416) resolves **doubts** in favor of privilege only where privilege coverage is already engaged. It does not delete Park step one. It does not override extrinsic fraud exceptions.

Pivot: Pollock bounded role; Park still mandatory.

Q5: Collateral Estoppel and Primary Rights

Question the Court may ask: > “Which issues were actually litigated in the underlying trial, and does collateral estoppel apply?”

Plaintiff’s Response: The underlying trial adjudicated: (1) whether the Insured was negligent; (2) liability for the car collision. It did **not** adjudicate: (1) whether Defendants withheld production history; (2) whether misrepresentations were made to the Court; (3) whether Plaintiff was deprived of a fair hearing.

Different primary rights. No issue-match. No estoppel.

Pivot: Crowley (8 Cal.4th 666); Singh (227 Cal.App.4th 813) for issue-match requirement.

Q6: Appeal Posture and Section 904.1

Question the Court may ask: > “What is the narrow holding of Rochin, and does Section 904.1 bar this action?”

Plaintiff’s Response: Rochin (67 Cal.App.4th 1228) addresses post-judgment trial court power. Section 904.1 is a routing statute for appeals. Neither is a merits immunity.

Plaintiff has not filed an appeal. Plaintiff has filed an independent equitable action. The FAC states a distinct theory: extrinsic fraud in the procurement of the judgment.

Pivot: Section 904.1 scoped to appeal route; Rochin scoped to trial court post-judgment power.

Q7: Demurrer Facial Assumptions

Question the Court may ask: > “Which allegations must the Court accept as true on demurrer?”

Plaintiff’s Response: All well-pleaded facts. The FAC’s allegations of out-of-court representations, file transfer failures, court-facing misrepresentations, and tribunal reliance must be accepted as true. Defendants’ assertions that there was “no fraud” or that the theory is “speculative” violate Serrano.

Pivot: ABF Capital (130 Cal.App.4th 825); Serrano (5 Cal.3d 584).

Q8: Uncertainty Demurrer

Question the Court may ask: > “Is uncertainty demurrer appropriate here?”

Plaintiff’s Response: No. Under A.J. Fistes (38 Cal.App.5th 677, 695), demurrers for uncertainty are “disfavored” and granted only when the complaint is “incomprehensible.”

The FAC identifies: who (CSAA, Carbone, Chambers); what (two-phase pattern of misrepresentation); when (during underlying litigation and at trial); how (induced procedural rulings). Defendants responded with 20 pages of briefing. The FAC is not uncertain.

Pivot: Young v. Gannon (97 Cal.App.4th 209); A.J. Fistes (38 Cal.App.5th 677).

Q9: RFJN and Record Limits

Question the Court may ask: > “What is judicially noticeable on demurrer?”

Plaintiff’s Response: Document existence, not truth of contents. Defendants use RFJN to insert merits evidence. This exceeds the demurrer record. The Court may notice the judgment exists but cannot notice for truth that “there was no fraud” or that “all issues were adjudicated.”

Pivot: Code Civ. Proc. section 430.70; Evid. Code section 452; Arce (181 Cal.App.4th 471).

Q10: The Successor Counsel Defense

Question the Court may ask: > “Didn’t successor counsel simply make a mistake by not having the production history?”

Plaintiff’s Response: Extrinsic fraud does not require every lawyer to be in on the conspiracy. If prior counsel deliberately or recklessly strips the production history from the file, and successor counsel relies on that stripped file to misrepresent the provenance of evidence to the judge, the fraud on the tribunal is complete. The institutional principal, CSAA, directed both acts.

The concealment does not become innocent because it was routed through an unsuspecting intermediary. Kulchar asks whether Plaintiff was kept in ignorance and unable to present their case — not whether every participant shared the same mental state. Agency liability also attaches to CSAA regardless of successor counsel’s state of mind.

Pivot: Kulchar (1 Cal.3d 467); Kougasian (118 Cal.App.4th at 1034-1036); agency principles under Civ. Code § 2338.

Q11: Chambers Declaration — Personal Knowledge / Sham Affidavit

Question the Court may ask: > “Does the Chambers declaration establish personal knowledge of the file-transfer contents and what was conveyed to successor counsel?”

Plaintiff’s Response: It does not. The Chambers declaration asserts conclusions about what the file “contained” and what was “conveyed” to PSA without foundation for personal knowledge of either the production-history documents or the substitution transfer. Under Evid. Code § 702 and Code Civ. Proc. § 2015.5, a declaration must affirmatively show the declarant’s competency to testify to each fact stated.

If any portion of the declaration contradicts Chambers’ prior discovery responses or deposition testimony in the underlying matter, the sham-affidavit rule bars its use to create a factual showing. Because the Chambers declaration is the defense’s sole vehicle for closing the factual hole on what was transferred, its foundational defects are dispositive of the Anti-SLAPP step-two record Defendants attempt to manufacture.

Pivot: Evid. Code § 702; Code Civ. Proc. § 2015.5; *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 761; sham-affidavit rule.

Q12: “Why Didn’t Plaintiff Object Earlier?”

Question the Court may ask: > “If Plaintiff knew the evidence was produced, why didn’t Plaintiff object when defense counsel claimed it was unknown? Isn’t this Plaintiff’s fault for not speaking up?”

Plaintiff’s Response: This question inverts the burdens and ignores the 883-day timeline. Plaintiff *did* speak up—through Jessup’s sworn testimony at the

February 18, 2025 hearing, where he testified under oath that the materials were “produced to defense counsel” and “served on them” during discovery in August–September 2022. The Court heard that testimony directly. The problem is not that Plaintiff failed to object; the problem is that the tribunal accepted defense counsel’s “news to me” representation without verification, even after Jessup’s contrary testimony.

More fundamentally, the estoppel runs the other direction:

1. **Defense had the duty to object timely.** Under CCP §§ 2030.290 and 2031.240, objections to discovery not raised within the statutory period are waived. By analogy, authenticity objections not raised during the 883-day window are waived. Plaintiff had no obligation to anticipate that defense counsel would suddenly reverse course after 883 days of silence.
2. **Defense induced reliance through silence.** The four-element test under *City of Long Beach v. Mansell* asks whether defense counsel had knowledge, opportunity, a reasonable expectation to speak, and remained silent. All four are satisfied. Plaintiff reasonably relied on that silence by not taking foundation depositions or filing authentication motions—because there was no indication that authenticity was contested.
3. **The production-deposition-subpoena-substitution chain proves defense knew.** Jessup’s February 18, 2025 testimony; the August 18, 2022 Rosario and September 30, 2022 Abdelhalim deposition transcripts (Chambers; 911-related examination); the February 1, 2024 Reyna Complex subpoena to SFPD—requesting the identical materials—and the Substitution of Attorney (Transaction ID #69953800) are all consistent with receipt and use in the ordinary course. If defense counsel claim they were ignorant, that ignorance is manufactured—and it is estopped.

4. **The April 16, 2025 admission confirms what was always true.**

When Navaratnasingham stated “They were provided by Dolan,” she was not announcing a new discovery. She was casually confirming a settled fact. The dismissive phrasing—“for whatever, sure”—reveals that the Dolan origin was known all along. Defendants cannot now blame Plaintiff for not objecting to a false position that Defendants themselves created.

Pivot: CCP §§ 2030.290, 2031.240 (waiver by failure to object timely); *City of Long Beach v. Mansell* (1970) 3 Cal.3d 462, 493 (estoppel by silence); Evid. Code § 1414(b) (authentication by acquiescence); Tab 9 (full estoppel framework).

SECTION 3: CLOSING ORIENTATION — THE SIX TACTICAL STRIKES

1. **Posture Trap:** Defendants’ motions proceed as if the allegations were true and assert legal immunity.
2. **Precedent Truncation:** Defendants quote Flatley’s policy paragraph without addressing its illegal-conduct limit; quote Park while skipping gravamen.
3. **Standard Bleed:** Defendants’ Demurrer imports MSJ and step-two probability tests that violate Serrano.
4. **Doctrine Collapse:** Defendants fuse Anti-SLAPP, section 47(b), and collateral estoppel to avoid passing any single doctrine’s mandatory tests.
5. **Narrative Reframe:** Defendants substitute “jury saw the evidence” for the actual gravamen: process corruption.

6. **Jurisdictional Masquerade:** Defendants treat an independent equitable action as an “appeal.”

If the Court Starts with Q1 and Q3

If the Court begins with gravamen (Q1) and extrinsic fraud exceptions (Q3), most defense authority collapses into bounded issues. The wall of authority substitutes volume for analysis, and the correct analytical framework exposes the evasion.

BENCH SCRIPT: “If the Court Grants No Relief Today”

If the Court is not prepared to overrule the Demurrer and deny the Anti-SLAPP motion outright, Plaintiff respectfully proposes the following off-ramp rather than sustaining without leave:

“If the Court concludes that any count of the FAC is not presently pleaded with sufficient specificity, Plaintiff respectfully requests leave to amend rather than a sustaining without leave. Plaintiff can proffer additional specific facts including: (a) the dates and substance of each out-of-court representation; (b) the identity of the file-transfer recipients and the documents omitted; (c) the specific CSAA directives and ratifications supporting agency; and (d) the specific continuance or evidentiary ruling that closed the procedural window. Under *Blank v. Kirwan* and the liberal amendment standard, leave is appropriate where there is a reasonable possibility of curing any defect, and Plaintiff represents that the proffered facts would do so.”

For a complete mapping of how the concurrently tendered Second Amended

Complaint cures each alleged defect without relying on future promises of drafting, the Court is respectfully referred to Document 17 (SAC Cure Matrix and Pendency Notice).

On the Anti-SLAPP motion, if the Court is inclined to reach step two, Plaintiff requests the opportunity to supplement the declaration record before any merits ruling, consistent with the “minimum merit” standard.

Preserving the case through leave-to-amend is the statistically likely middle-ground disposition on any close count, and is the appropriate equitable posture where the gravamen is procurement-level fraud on the tribunal.

END OF BENCH BINDER

APPENDIX 1 — AUTHORITIES OMITTED

(Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by Opposition §I.A.)

Authorities Necessary To Apply Defendants’ Own Doctrines Correctly

PURPOSE

This single-page exhibit accompanies each Opposition. It inventories the controlling California Supreme Court and Court of Appeal authorities that Defendants’ briefing does not address, even though those authorities are necessary to a complete and correct application of the very doctrines Defendants invoke. The Appendix is offered as a navigation aid tying each omitted authority to the corresponding section of Plaintiff’s Oppositions.

PRECEDENT COMPLETENESS INVENTORY

Section A: Authorities Defendants Quoted vs. Authorities Defendants Do Not Address

Authority	Pin-Cite	Plaintiff Section	Defense Use	Correct Use
Flatley v. Mauro (2006) 39 Cal.4th 299	pp. 320-325 (illegal-conduct exception); p. 322 (finality)	Opp. Anti-SLAPP § IV	Quotes only the finality paragraph (p. 322) on “enhancing the finality of judgments.”	Flatley’s holding is that petitioning activity illegal as a matter of law or conceded loses Anti-SLAPP protection; extrinsic fraud on a tribunal falls within that exception.

Authority	Pin-Cite	Plaintiff Section	Defense Use	Correct Use
Park v. Board of Trustees (2017) 2 Cal.5th 1057	pp. 1062-1064 (gravamen filter); p. 1064 (“speech or petitioning activity itself”)	Opp. Anti-SLAPP § II	Quotes the “speech or petitioning activity itself” phrase at p. 1064 and applies it at step two.	Park requires isolating the injury-producing act at step one and distinguishing protected activity from acts that merely supply evidence of a claim.

Authority	Pin-Cite	Plaintiff Section	Defense Use	Correct Use
Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995	pp. 1010-1012	Opp. Anti-SLAPP § II	Not addressed.	Bonni is the current controlling Supreme Court authority and requires a claim-by-claim and act-by-act gravamen analysis; label-based analysis is reversible error.
Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871	p. 884	Opp. Anti-SLAPP § II	Not addressed.	The protected act must be an element of the claim, not merely evidence of it.

Authority	Pin-Cite	Plaintiff Section	Defense Use	Correct Use
Moradi-Shalal v. Fireman's Fund (1988) 46 Cal.3d 287	p. 305 (preservation of common law fraud)	Opp. Demurrer § III	Cites pp. 292-304 for the immunity rule.	Moradi-Shalal expressly preserves common law fraud claims against insurers; those claims survive.
Pollock v. Superior Court (USC) (2003) 112 Cal.App.4th 1416	pp. 1422-1423	Opp. Anti-SLAPP § III	Quoted for “doubts resolved in favor of privilege.”	Pollock’s doubt-resolution canon applies only after the privilege’s coverage is established; it does not displace Park’s gravamen filter or the extrinsic-fraud exception.

Section B: Authorities Defendants Do Not Cite At All

Authority	Pin-Cite	Plaintiff Section	Holding	Correct Use
Action Apart- ment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232	pp. 1242- 1245	Opp. Anti-SLAPP § IV; Opp. Demurrer § IV	Extrinsic fraud is a recog- nized exception to the litigation privilege.	Defeats the blanket- privilege argument where extrinsic fraud is pleaded.
Kimmel v. Goland (1990) 51 Cal.3d 202	pp. 211- 212	Opp. Anti-SLAPP § III; Opp. Demurrer § IV	Section 47(b) protects communi- cations, not all litigation- related conduct.	Noncommunicative conduct (file transfers, production- history conveyance, agency oversight) is outside the privilege's scope.

Authority	Pin-Cite	Plaintiff Section	Holding	Correct Use
Rusheen v. Cohen (2006) 37 Cal.4th 1048	pp. 1057- 1062	Opp. Anti-SLAPP § III.D	“Necessarily Institutional related” test confines privilege to acts tethered to a privileged communi- cation.	and pre-/post- litigation duties are not necessarily related to any specific privileged communica- tion.
Crowley v. Katleman (1994) 8 Cal.4th 666	pp. 681- 682	Opp. Demurrer § V	Collateral estoppel requires a primary- rights mapping between actions.	Defendants invoke preclusion without conducting the required primary- rights analysis.

Authority	Pin-Cite	Plaintiff Section	Holding	Correct Use
Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696	pp. 702- 705	Opp. Anti-SLAPP § IV	False- police- report/fabricated evidence conduct is illegal as a matter of law under Flatley.	Pairs with Flatley to fracture extrinsic fraud as conduct illegal as a matter of law.

Section C: Statutory Text Defendants Quoted Without Complete Application

Statute	Plaintiff Section	Defense Use	Correct Use
Code Civ. Proc. § 425.16	Opp. Anti-SLAPP § II	Recited the two-step framework.	Step one requires the Park/Bonni gravamen filter before any step-two inquiry.

Statute	Plaintiff Section	Defense Use	Correct Use
Civ. Code § 47(b)	Opp. Anti-SLAPP § III; Opp. Demurrer § IV	Recited the “absolute privilege” language.	Privilege is limited to communications (Kim- mel/Rusheen) and is subject to the extrinsic-fraud exception (Action Apartment).
Code Civ. Proc. § 904.1	Opp. Demurrer § VI	Treated as a jurisdictional bar to the present action.	Section 904.1 is an appellate- routing statute; it does not bar independent equitable actions for extrinsic fraud.
Code Civ. Proc. § 430.70 / Evid. Code § 452	Opp. Demurrer § II; Pl. Objection to RFJN	Asked the Court to notice truth of document contents.	Judicial notice extends to the existence of records, not the truth of disputed factual contents.

Section D: Authorities Post-Dating or Refining Defense Citations

Courts give particular weight to later controlling authority that refines or supersedes earlier cases on which a party relies. The following later authorities refine doctrines Defendants invoke but are not addressed in their briefing.

Earlier Authority Relied Upon by Defendants	Later Authority Refining or Superseding	How the Later Pin- Cite Authority Refines the Earlier One
Park v. Board of Trustees (2017) 2 Cal.5th 1057	Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995	pp. 1010-1012 Post-Park; requires claim-by-claim, act-by-act gravamen analysis. Label-based categorization is reversible error.
Park v. Board of Trustees (2017) 2 Cal.5th 1057	Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871	p. 884 Clarifies the element- versus-evidence distinction: protected activity must be an element of the claim, not merely evidentiary.
Rusheen v. Cohen (2006) 37 Cal.4th 1048 (cited by Defendants' privilege theory)	Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232	pp. 1242-1245 Confirms the extrinsic-fraud exception to Civ. Code § 47(b) survives Rusheen.
Flatley v. Mauro (2006) 39 Cal.4th 299 (finality paragraph only)	Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696	pp. 702-705 Applies Flatley's illegal- as-a-matter-of-law exception to fabricated-evidence conduct.

COMPLETENESS BY DEFENSE DOCUMENT

Anti-SLAPP MPA (Clerk File No. 10152305)

Page:Line	Citation	Defense Use	Correct Use
p. 9, ll. 17-21	Flatley	Quoted finality rationale.	Illegal-conduct exception (pp. 320-325) applies to extrinsic fraud.
p. 13, ll. 20-22	Park	Deployed at step two.	Park requires a step-one gravamen filter; Bonni (2021) and Wilson (2019) further require claim-by-claim, element-based analysis.
p. 12, ll. 27-28	Pollock	Recited doubt-resolution rule.	Doubt-resolution applies only after coverage; it does not displace gravamen analysis or the extrinsic-fraud exception.

Page:Line	Citation	Defense Use	Correct Use
[Not addressed]	Action Apartment	—	Recognizes extrinsic-fraud exception to § 47(b).
[Not addressed]	Kimmel / Rusheen	—	Privilege is limited to communications and to acts “necessarily related” to a privileged communication.
[Not addressed]	Bonni / Wilson	—	Current controlling Supreme Court authority on Anti-SLAPP step one.

Demurrer MPA (Clerk File No. 10157174)

Page:Line	Citation	Defense Use	Correct Use
p. 11, ll. 18-22	Kulchar	Recited definition of extrinsic fraud.	Extrinsic/intrinsic line is fact-intensive and cannot be resolved on demurrer where extrinsic conduct is pleaded.

Page:Line	Citation	Defense Use	Correct Use
p. 11, ll. 13-14	Aldrich	Quoted “extrinsic” definition; asserted intrinsic without analysis.	Application requires mapping of pleaded facts against the extrinsic-fraud elements.
p. 9, ll. 6-11	Code Civ. Proc. § 904.1	Treated as jurisdictional bar.	Appellate-routing statute; independent equitable actions for extrinsic fraud are not barred.
[Not addressed]	Crowley	—	Primary-rights mapping is prerequisite to any preclusion argument.
[Not addressed]	Moradi-Shalal p. 305	—	Preserves common law fraud claims against insurers.

CANDOR CONSIDERATIONS

Rule of Professional Conduct 3.3(a)(2) and California authority on candor to the tribunal speak to the disclosure of directly adverse controlling authority. Without attributing intent, and without seeking sanctions, the Court is respectfully asked to consider the completeness of the authority presented,

including the authorities catalogued above that refine or qualify the very doctrines on which Defendants rely.

This Appendix is not a motion for sanctions. It is offered as a navigation aid and a completeness record so that the Court may apply each doctrine Defendants invoke together with the controlling authorities necessary to apply that doctrine correctly.

CONCLUSION

Defendants' briefing collects a substantial number of citations. When the authorities catalogued above are restored to the analysis, the following points emerge:

1. **Park/Bonni/Wilson** require a claim-by-claim, element-based gravamen filter at Anti-SLAPP step one that Defendants' briefing does not undertake.
2. **Flatley** (and **Lefebvre**) contain an illegal-conduct exception that Defendants do not address.
3. **Action Apartment** recognizes an extrinsic-fraud exception to Civ. Code § 47(b) that Defendants' briefing does not discuss.
4. **Kimmel** and **Rusheen** confine privilege to communications and to acts "necessarily related" to a privileged communication.
5. **Crowley** requires a primary-rights mapping before any preclusion ruling.
6. **Moradi-Shalal** at p. 305 preserves common law fraud jurisdiction against insurers.

The Court is respectfully asked to apply each doctrine together with the controlling authorities that govern its correct application.

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per

APPENDIX 2 — RELIANCE CHAIN EXHIBIT

(Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by Opposition §I.A.)

Purpose

This one-page exhibit charts the four-hearing pattern of tribunal reliance on defense counsel’s institutional representations — reliance that, as demonstrated by the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161), was misplaced.

The Rulings Procured From This Reliance Chain

Because the Court relied on defense counsel’s categorical representations of non-receipt, Plaintiff lost the following structural opportunities to present his case:

1. **MIL No. 1 Denied** (Jan. 27, p. 41:3–11) — 911 audio weaponized against Plaintiff’s witnesses.
2. **911 CDs Excluded** (Jan. 27, p. 38:22–25) — Jury deprived of primary contemporaneous record.

3. **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24) — Contextual record barred.
 4. **Continuance Denied** (Feb. 18, p. 181) — No time to address defense’s “surprise” non-receipt claim.
 5. **§ 473 Surprise Rejected** (Feb. 18, p. 181:20–25) — Pleas for relief from deception ignored.
 6. **Burden-Shift Imposed** (Feb. 28, p. 293:1–3) — Plaintiff forced to disprove defense’s false claim.
 7. **Supplemental Report Excluded** (RT 7, p. 156:24–28 (SAC Exh. O, SAC Exhibit Appendix p. 155)) — Corroborating evidence barred.
-

Four-Hearing Reliance Chain

Former table columns (**Date**; **Defense Representation (verbatim)**; **Court’s Articulated Reliance (verbatim)**; **Rulings Produced**; **Subsequent Admission of Falsity**) are preserved as labeled bullets under each hearing date.

Jan. 27, 2025

- **Date:** Jan. 27, 2025
- **Defense representation (verbatim):** “completely lacks foundation; not authenticated. We have no idea... We have not heard any recordings from our client.” (p. 19, ll. 7–13); “we never received these CDs, certainly” (p. 34, ll. 1–10)
- **Court’s articulated reliance (verbatim):** Implied reliance; no independent verification requested
- **Rulings produced:** MIL exclusion of 911 CDs (p. 38:22–25); categorical exclusion of transcripts “will never be admitted” (p. 39:18–24); MIL No. 1 denied (p. 41:3–11)

- **Subsequent admission of falsity:** Apr. 16, 2025: “They were provided by Dolan. He has had them for whatever, sure.” (RT 7, p. 213:13–15)

Feb. 18, 2025

- **Date:** Feb. 18, 2025
- **Defense representation (verbatim):** “this is news to me... our office did not receive the 911 call until the day of the MSC” (p. 141, ll. 4–11)
- **Court’s articulated reliance (verbatim):** “I see. Okay.” (p. 141:15); “given their representations that they’re going to provide that material” (p. 145:16–19)
- **Rulings produced:** Continuance denied (p. 181); § 473 surprise rejected (p. 181:20–25)
- **Subsequent admission of falsity:** Same day, same attorney: “all this stuff has been in his possession since August” (p. 181:6–23)

Feb. 28, 2025

- **Date:** Feb. 28, 2025
- **Defense representation (verbatim):** Continued “we never got that” pattern (pp. 290:15–291:7)
- **Court’s articulated reliance (verbatim):** “I’m not going to question a lawyer’s remarks regarding what they have and don’t have.” (p. 291:26–28); “They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court.” (p. 292:1–7)
- **Rulings produced:** Burden-shift ruling: “it’s required of you to send the documents over. Otherwise, I won’t allow them in.” (p. 293:1–3)
- **Subsequent admission of falsity:** Apr. 16, 2025 admission (RT 7, p. 213:13–15) demonstrates materials were already in defense possession

Apr. 16, 2025

- **Date:** Apr. 16, 2025
 - **Defense representation (verbatim):** Stacked denials: “not anything we received as part of the subpoena” (RT 7, p. 156:5–16); “I am not sure what recording he is referring to” (p. 162:4–12); layered authenticity/hearsay objections (pp. 207–208)
 - **Court’s articulated reliance (verbatim):** Court excluded supplemental report; deferred 911 admission pending foundation
 - **Rulings produced:** Exclusion of supplemental police report (p. 156:24–28); deferral of 911 call admission
 - **Subsequent admission of falsity:** Same day admission: “Sure. They were provided by Dolan. He has had them for whatever, sure.” (p. 213:13–15)
-

Key Excerpt: The Officer-of-Court Articulation

“They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.”

— Garrett L. Wong, Hr’g Tr. Feb. 28, 2025, p. 292, ll. 1–7 (SAC Exh. N, SAC Exhibit Appendix p. 150).

Juxtaposition (Risk #1 Guardrail): This articulated reliance must be read against the April 16, 2025 admission: “They were provided by Dolan. He has had them for whatever, sure.” (RT 7, p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161).) The Court’s reliance on officer-of-the-court candor was misplaced.

Cross-References

- **SAC:** ¶¶ 44A, 46, 47A (§IV.G-1), 88–90; Count 7 (¶¶ 157–165)
 - **Opp. Demurrer:** §VI-A, §VI-B (reliance table)
 - **Opp. Anti-SLAPP:** Exhibit 2
 - **Transcript Appendix A:** Phase A0 (Jan. 27), Phase A (Feb. 18), Phase A1 (Feb. 28), Phase B (Apr. 16)
-

DATED: April 16, 2026

FRANCISCUS DYLAN ROSARIO, Plaintiff, In Pro Per

APPENDIX 3 — JUDICIAL ADMISSION MATRIX

(Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by Opposition §I.A.)

Purpose: Freestanding exhibit for Plaintiff’s oppositions to demurrer and anti-SLAPP motions. This matrix pairs **Position A** (suppression / denial / unknown framing) with **Position B** (possession, transmission, or Dolan-origin admissions) on the certified hearing and trial transcripts. **Tribunal acceptance** notes where the Court accepted Position A for purposes of estoppel analysis. Citations align with the Second Amended Complaint (SAC-06) Exhibit Appendix K–Q.

Guardrail: Trial-day rows are offered as **judicial estoppel, scienter, or**

reliance-channel evidence consistent with SAC Paragraphs 14, 102, 106, and 107, not as substitutes for the pleaded injury-producing acts.

§0. The Court’s Articulated Reliance

This Matrix documents the sequence of misrepresentations that induced the Court’s reliance and resulted in the gutting of Plaintiff’s case.

- **1. THE RELIANCE:** “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” (Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7 (SAC Exh. N, SAC Exhibit Appendix pp. 149–150).)
- **2. THE ADMISSION:** “Sure. They were provided by Dolan. He has had them for whatever, sure.” (RT 7, Apr 16, 2025, p. 213, ll. 13–15.)
- **3. THE AUDACITY:** Defense counsel denied receipt eighteen (18) times across four hearings while in possession of nine (9) independent artifacts proving receipt.

Master record (Position A / Position B)

1. **Jan. 27, 2025 — Navaratnasingham. Position A:** “completely lacks foundation; not authenticated. We have no idea... We have not heard any recordings from our client.” (p. 19, ll. 7–13); “we never received these CDs, certainly” (p. 34, ll. 1–10). **Position B:** (Apr. 16, 2025 admission confirms possession). **Ruling procured:** MIL exclusion

- of 911 CDs (p. 38); transcripts “never admitted” (p. 39). **Record cite:** Hr’g Tr. Jan. 27, 2025.
2. **Feb. 18, 2025 — Navaratnasingham. Position A:** “did not receive... this is news to me” (p. 141). **Position B:** “all this stuff has been in his possession since August” (p. 181); 2021 Dolan copy (p. 139). **Ruling procured:** Continuance denied; § 473 surprise rejected (p. 181). **Record cite:** Hr’g Tr. Feb. 18, 2025.
3. **Feb. 28, 2025 — Defense / Court. Position A:** (Implied denial leading to officer-of-court reliance). **Position B:** —. **Ruling procured:** **Burden-shift imposed** on Plaintiff to disprove non-receipt (p. 293). **Record cite:** Hr’g Tr. Feb. 28, 2025.
4. **Apr. 16, 2025 — Navaratnasingham. Position A:** RT 7 stacked denials (pp. 156, 162): “not anything we received as part of the subpoena.” **Position B:** “They were provided by Dolan.” (RT 7, p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161). **Ruling procured:** Supp. report excluded; 911 admission deferred. **Record cite:** RT 7, pp. 156, 162, 213.
5. **Apr. 17, 2025 — Abdelhalim. Position A:** Prior “unknown” provenance channel. **Position B:** “Yes. That is my voice.” (p. 108). **Ruling procured:** Jury hears 911 for first time after prejudice already done. **Record cite:** RT 8, p. 108.
6. **Apr. 22, 2025 — Defense closing. Position A:** “Changed his story to avoid a Vehicle Code violation” (jury argument). **Position B:** Payoff tied to Feb. 18 / trial-day contradiction record. **Ruling procured:** Jury deliberation context. **Record cite:** RT 10, pp. 49–52 (Exhibit Q).
-

Plaintiff Preservation of Suppression Theme

These entries document Plaintiff’s contemporaneous preservation alongside the Position-A / Position-B record — the single-page answer to any “Plaintiff did not preserve” argument.

- **Jan. 27, 2025 — Plaintiff preservation:** “trying to suppress” (p. 19); “cherry-pick” / “weaponization” (p. 17, 42); FROG/SROG pin-cited (p. 32). **Court ruling:** CCP § 473 denied; continuance denied; MIL 1 granted. **Pin cite:** Hr’g Tr. Jan. 27, 2025, pp. 17, 19, 32, 42, 49, 55.
- **Jan. 28, 2025 — Plaintiff preservation:** (Absent — medical ER at Santa Clara Valley MC.) **Court ruling:** § 581(d) opposed by Court (“immediate reversal”). **Pin cite:** Hr’g Tr. Jan. 28, 2025, p. 90.
- **Feb. 3, 2025 — Plaintiff preservation:** (Absent — medical.) **Court ruling:** § 581(d) under submission; ex parte disclosure order. **Pin cite:** Hr’g Tr. Feb. 3, 2025, pp. 109, 116, 122–124 (SAC Exh. S, SAC Exhibit Appendix pp. 192, 199, 205–207).
- **Feb. 18, 2025 — Plaintiff preservation:** “concealed” (p. 17); “stonewalling” (p. 23); “smoking gun / murder weapon” (?); “going on the record” (pp. 44–45). **Court ruling:** Continuance denied; § 473 surprise rejected. **Pin cite:** Hr’g Tr. Feb. 18, 2025, pp. 17, 23, 44–45, 181.
- **Feb. 28, 2025 — Plaintiff preservation:** Opposed deposition protective order; preserved officer-of-court / burden-shift objection. **Court ruling:** Protective order denied but fees on Plaintiff; burden-shift ruling at pp. 291–294. **Pin cite:** Hr’g Tr. Feb. 28, 2025, pp. 291–294 (SAC Exh. N, SAC Exhibit Appendix pp. 149–152).
- **Apr. 22, 2025 — Plaintiff preservation:** “former attorney concealed the 911 record” (closing). **Court ruling:** Closing argument; verdict.

Pin cite: RT 10, p. 55.

Summary: Plaintiff preserved the suppression / concealment theme on **four separate pre-trial hearing dates** (Jan. 27, Feb. 3, Feb. 18, Feb. 28), each time seeking a procedural remedy (continuance, § 473, protective-order opposition). Each procedural vehicle was denied. This chronology defeats any “sleeping on rights” or “intrinsic fraud because Plaintiff was aware” argument: Plaintiff was aware **because he preserved his objection**, but his procedural remedies were foreclosed.

DATED: April 16, 2026

FRANCISCUS DYLAN ROSARIO, Plaintiff, In Pro Per

APPENDIX 4 — TRANSCRIPT APPENDIX (911 / BWC)

(Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by Opposition §I.A.)

DEFENSE STATEMENTS TO THE COURT REGARDING 911 AND BODY-WORN- CAMERA EVIDENCE

(Dispute / Denial-of-Receipt Context)

Sec. 0. Smoking-Gun Summary

THE “SMOKING-GUN” PREAMBLE

1. THE COURT’S ARTICULATED RELIANCE (Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7): > “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.”

2. THE RULINGS PROCURED FROM THAT RELIANCE: * MIL No. 1 denied (Jan. 27, p. 41:3–11) * 911 CDs excluded (Jan. 27, p. 38:22–25) * Continuance denied (Feb. 18, p. 181) * Burden-shift imposed (Feb. 28, p. 293:1–3)

3. THE ADMISSION THAT PROVED THE MISREPRESENTATION (RT 7, Apr 16, 2025, p. 213, ll. 13–15): > “Sure. They were provided by Dolan. He has had them for whatever, sure.”

SUMMARY OF DECEPTION: Across one pre-trial MIL hearing and three trial days, defense counsel made at least eighteen (18) on-the-record statements denying receipt. Defense counsel was in possession the entire time. Defense counsel then affirmatively used the same materials after Plaintiff’s procedural windows had closed.

1. PURPOSE AND METHOD

This appendix collects, in chronological order, every on-the-record statement by defense counsel (Phillips, Spallas & Angstadt, LLP — Priya D. Navaratnasingham, Esq. and Alberto Reyna, Esq.) directed to the trial court regarding the **911 audio recording**, the **SFPD body-worn camera (“BWC”) footage**, the **CAD log**, and the related **SFPD Report 210079556 supplement**, where the statement was made in the **effect or context of (a) disputing the materials** (authenticity, foundation, provenance, admissibility) or **(b) denying that defense counsel had received the materials in discovery**.

The quotations below are drawn from:

- the **Reporter’s Transcript of the February 18, 2025 pre-trial hearing** before the Garrett L. Wong (Sandra L. Carranza, CSR #7062, reporter; Esquire Solutions Job No. J12424517);
- the **Reporter’s Transcripts of the April 2025 trial** before the Garrett L. Wong, Department 504 (Dennis M. Souza, CSR #3893, reporter; Steno Job Nos. 1591982 et seq.) — specifically RT 7 (April 16, 2025), RT 8 (April 17, 2025), and RT 10 (April 22, 2025).

Each quotation is given with **page : line** citation in the form RT [Day] / **Hearing Tr.**, p. N, l. N. Pin cites correspond to the certified reporter’s transcripts for the hearings identified above, including the transcript excerpts designated in Plaintiff’s Second Amended Complaint Exhibit Appendix (Exhibits K (Jan. 27, 2025), L (Jan. 28, 2025), S (Feb. 3, 2025), C and M (Feb. 18, 2025), N (Feb. 28, 2025), O (RT 7), P (RT 8), and Q (RT 10)). All quotes are verbatim.

2. CHRONOLOGICAL CATALOG OF DEFENSE STATEMENTS

Phase A0 — Motions-in-Limine Hearing of January 27, 2025 (Garrett L. Wong)

The January 27, 2025 hearing addressed Plaintiff’s motions in limine and defense’s evidentiary posture. Defense counsel made foundational attacks on the 911 materials while Plaintiff preserved the suppression theme on the record.

A0.1 — “completely lacks foundation; not authenticated. We have no idea...”

MS. NAVARATNASINGHAM: “Your Honor, the recordings, again, **completely lacks foundation; not authenticated.** We have no idea what they’re — Mr. Rosario is referring to. **We have not heard any recordings from our client.**”

— Hr’g Tr. (Jan. 27, 2025), p. 19, ll. 7–13.

Effect / context: *Denial of receipt and foundation attack* — defense counsel states lack of knowledge of the 911 recording and asserts no receipt from the client, at the hearing where Plaintiff contemporaneously objected: “We have two 911 records that the Defense has been trying to suppress.” (p. 19, ll. 1–5).

A0.2 — “we really don’t know who redacted these things” (imputation of fabrication)

MS. NAVARATNASINGHAM: “We — one of our motions in limine is to exclude documents that were not produced in discovery. Moreover, they lack foundation, they’re not authenticated, and **we really don’t know who redacted these things and what — if that representation is true. So...**”

— Hr’g Tr. (Jan. 27, 2025), p. 31, ll. 1–5.

Effect / context: *Imputation of fabrication* against Plaintiff — made while defense was in possession of the originals via Dolan. This is scienter evidence under *Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412.

A0.3 — “we never received these CDs, certainly”

MS. NAVARATNASINGHAM: “These documents, these CDs, **we never received these CDs, certainly.** On Saturday — during our break we went back and looked at our email, and on Saturday we received this — this copy, exactly what you see here, but we never received — that’s on Saturday, Your Honor. I didn’t see it until we were in the break room right now. **We never received these CDs. We never — this was never produced in discovery, and he has had it for four years.** We don’t have the original audio or any of the original documents.”

— Hr’g Tr. (Jan. 27, 2025), p. 34, ll. 1–10.

Effect / context: The emphatic denial — “certainly” — is the Jan. 27, 2025 anchor for the three-hearing denial arc culminating in the Apr. 16, 2025 “provided by Dolan” admission. Under *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986–987, this ascending sequence of factually incompatible positions is the precise fact-pattern to which judicial estoppel applies.

A0.4 — Expert-designation denial

MS. NAVARATNASINGHAM: “We never received a designation from Mr. Rosario. **He has not designated any non-retained or retained experts in this case.**”

— Hr’g Tr. (Jan. 27, 2025), p. 53, ll. 1–4.

Effect / context: This representation excluded Plaintiff’s non-retained treating physician / treating expert designations, cutting off Plaintiff’s medical-causation case and compounding the liability-evidence exclusions.

A0.5 — “lady... no link whatsoever”

MS. NAVARATNASINGHAM: “No, Your Honor. No. So, the 911 called that he produced at the MSC to the MSC officer was **a lady, and it has no link whatsoever to this accident.** There is no way we can tell what that is related to. If he says that he has a 911 call from the defendant, **we have never heard that.**”

— Hr’g Tr. (Jan. 27, 2025), p. 16, ll. 17–22.

Effect / context: Categorical dismissal of the 911 call as having “no link” to the accident — made by the same attorney who later admitted the materials were “provided by Dolan” (RT 7, p. 213).

Phase A1 — Pre-Trial Hearing of February 28, 2025 (Garrett L. Wong)

The February 28, 2025 hearing produced the officer-of-court and burden-shift rulings that are central to the SAC’s tribunal-reliance theory.

A1.1 — Officer-of-Court Articulation

THE COURT: “I’m not going to question a lawyer’s remarks regarding what they have and don’t have.”

— Hr’g Tr. (Feb. 28, 2025), p. 291, ll. 26–28.

THE COURT: “They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. **So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.”**

— Hr’g Tr. (Feb. 28, 2025), p. 292, ll. 1–7.

Effect / context: This is the express articulation of tribunal reliance on defense candor. The Court explicitly invoked defense counsel’s officer-of-the-court status to ground its refusal to question defense’s representations. This reliance — as the April 16, 2025 admission demonstrates — was misplaced.

A1.2 — Burden-Shift Ruling

THE COURT: “it’s required of you to send the documents over. **Otherwise, I won’t allow them in.”**

— Hr’g Tr. (Feb. 28, 2025), p. 293, ll. 1–3.

Effect / context: The burden-shift ruling imposed on Plaintiff an affirmative re-production burden for materials already in defense’s possession by virtue of the Dolan transmission, transforming defense’s silence-plus-denial strategy into a concrete exclusionary sanction against Plaintiff.

Phase A — Pre-Trial Hearing of February 18, 2025 (Garrett L. Wong)

The February 18, 2025 hearing was set on Plaintiff’s motion to continue trial. The Court took up Plaintiff’s request for additional time to address the 911 audio, body-worn camera, and CAD materials whose production status defense

counsel had placed in dispute through Motions in Limine 6 and 17 (filed Jan. 17, 2025). At the hearing, Mr. Jeremy M. Jessup of the Dolan Law Firm appeared and testified concerning the discovery production made by Plaintiff's prior counsel.

A.1 — “This is news to me.” / “Our office did not receive the 911 call until the day of the MSC.”

MS. NAVARATNASINGHAM: “Yes, Your Honor. So **this is news to me**. We didn't realize that prior to handling counsel may have received it, and I can't confirm whether that was produced. I take counsel's word, of course, but we — I can represent to you that **our office did not receive the 911 call until the day of the MSC** — the day before the MSC and that was an attachment link. **There was no sort of ability to verify whether that was accurate or not**. And we were not present — our office was not on the case when Mr. Rosario's deposition was taken either.”

— **Hearing Tr. (Feb. 18, 2025), p. 6, ll. 3–14.**

Effect / context: *Denial of receipt* (911 audio) and dispute of authenticity. Made in immediate response to Plaintiff's representation that prior defense counsel (Chambers/CSK) had been served with the 911 audio in 2022. The Court accepted this representation without independent verification (“THE COURT: I see. Okay.” — *id.* p. 6, l. 15).

A.2 — “We did not have those two items until the day of the MSC.”

MS. NAVARATNASINGHAM: “Yes, thank you, Your Honor. ... I don't see anything specific in this e-mail with reference to the 911 calls, and I don't see any reference in here to a request for a continuance, number one. **Number two**, with reference to his

allegations of us lying, ... so our motion in limine to exclude the 911 call and there was, like, a call statement or a call log was very specific to those two items, and **I am representing to this Court that we did not have those two items until the day of the MSC** and those items were produced in connection with the settlement to the settlement officer. Now, if Mr. Jessup, who was here this morning, his prior defense counsel, said that he produced those links, okay, and he's going to produce those links to me. I believe this Court, when you granted our motion in limine, you did so without prejudice subject to that discovery being produced."

— **Hearing Tr. (Feb. 18, 2025), p. 27, l. 23 — p. 30, l. 11.**

Effect / context: *Denial of receipt* (911 audio + CAD log) repeated as an officer-of-the-court representation, paired with an attempt to reframe the prior MIL ruling as conditional. Made at the same hearing where Mr. Jessup had testified that the materials were produced to defense counsel and served in discovery in connection with Mr. Rosario's August 18, 2022 deposition (Hearing Tr. Feb. 18, 2025, pp. 139–140).

A.3 — Defense opposes plaintiff's continuance for the 911/BWC.

MS. NAVARATNASINGHAM: "Your Honor, may I quickly respond to that? Mr. Rosario has been pro per since August of 2024. ... **Your Honor is allowing him to try to introduce the 911 record for a call recording, so ...**"

— **Hearing Tr. (Feb. 18, 2025), p. 33, ll. 1–14.**

Effect / context: Dispute paired with active opposition to Plaintiff's continuance request — i.e., the procedural relief Plaintiff sought to cure the alleged

provenance defect.

A.4 — Concession that the materials had in fact been in plaintiff's possession.

MS. NAVARATNASINGHAM: “I had two comments, Your Honor, and now I’m forgetting them because so much has been said. Well, I mean, we oppose the continuance. He’s been proper since August. He’s had the file since August. **According to Mr. Jessup, the body cam footage, the 911 call, all this stuff has been in his possession since August.** The motion in limine that I filed was saying that **the 911 call was not produced in the normal course of discovery.** Your Honor has cured that concern of his, and you are allowing him to present that and subject to relevance and other objections. ... And so we, of course, object and would like to select a trial date.”

— **Hearing Tr. (Feb. 18, 2025), p. 41, ll. 3–22.**

Effect / context: On the same record, defense **concedes** the materials had been in Plaintiff’s possession from prior counsel “since August” while simultaneously **maintaining** the original MIL theory that the 911 call “was not produced in the normal course of discovery.” This is the operational pivot from “we never received it” (A.1, A.2) to “it was not formally produced” — the inconsistency that Phase Two of the SAC (Counts 1–6) addresses.

Phase B — Trial Day 7 (April 16, 2025) — Officer Fernandez Cross-Examination & 911/BWC Foundation Hearing

Day 7 opened with bifurcation and proceeded to Plaintiff’s cross-examination of SFPD Officer Fernandez, the responding officer who authored the police report and was a custodian of body-worn camera footage. The defense interposed repeated objections to questioning that referenced the 911 dispatch, the body-cam footage, and the SFPD supplemental report.

B.1 — Objection that the police-report supplement “is not anything that we received as part of the subpoena.”

MS. NAVARATNASINGHAM: “Your Honor, for the record, I do want to just state, as far as this document goes, **this is not — we subpoenaed the police records for the incident and this is not anything that we received as part of the subpoena.** I do also want to note for the record the incident occurred February 4, 2021. It appears that this supplement was submitted by Mr. Rosario on November 13, 2024, over three years after the subject incident. So I would say this is unreliable and lacks foundation.”

— **RT 7 (Apr. 16, 2025), p. 156, ll. 5–16.**

Effect / context: *Denial of receipt* — direct representation that the SFPD Report 210079556 supplement was not produced in response to the **defense-issued Compex subpoena (Order No. CA1147102-021, issued Feb. 1, 2024)**. The Court relied on this in excluding the supplement as beyond the scope of the cross-examination (RT 7, p. 156, ll. 24–28).

B.2 — “I am not sure what recording he is referring to.”

MS. NAVARATNASINGHAM: “Your Honor, before we do that — I don’t believe that I have been — and **I am not sure what recording he is referring to.** Before the jury hears it, I also believe a dying declaration — he is here present. So I am not sure he can illicit that testimony or that call. But I would like more clarity, before a jury hears a recording, what we are talking about here.”

— **RT 7 (Apr. 16, 2025), p. 162, ll. 4–12.**

Effect / context: *Dispute paired with implied non-receipt* — defense counsel professes lack of awareness of the 911 recording Plaintiff was preparing to play, six weeks after the same recording was the subject of MIL No. 17 and the February 18, 2025 hearing. The Court directed the recording be addressed outside the jury’s presence (RT 7, p. 162, ll. 13–17).

B.3 — “We have been provided a 911 transcript ... we have concerns about these two documents and the recording.”

MS. NAVARATNASINGHAM: “Thank you. So **we have been provided a 911 transcript from an eyewitness and a 911 transcript for my client. I don’t know if it would be more appropriate** — we have concerns about these two documents and the recording. I don’t know if it would be more appropriate to do that outside the presence of the jury, Your Honor, before the jury hears it, because **I have objections to this.**”

— **RT 7 (Apr. 16, 2025), p. 163, ll. 19–28.**

Effect / context: Dispute. Counsel acknowledges receipt of two 911 transcripts (the eyewitness call and Abdelhalim’s call) but reserves authenticity and relevance objections.

B.4 — Authenticity / hearsay challenge to the eyewitness 911 call.

MS. NAVARATNASINGHAM: “Yes, Your Honor. First of all, there is a 911 transcript for eye witness and this is aside from the fact that **I don’t know who prepared these transcripts**, for either of these, but the 911 call for eyewitness in particular, **there is no identification as to who the witness is**. And, you know, this is one of those, **I believe, maybe it was included in the Dolan documents** so if the Court is going to say authenticity is established, that is fine, but **we do object as hearsay and it lacks foundation as we have no idea who this person is**. There is no name in either, in the recording or in the transcript. Furthermore, relevance. She says here — it sounds like a passer-byer that says: There was a van that might have hit a scooter. It might be a hit-and-run, I don’t know. ... And it is unduly prejudicial where there is no probative value for this for the jury to hear this recording. They don’t even know who this is.”

— RT 7 (Apr. 16, 2025), p. 207, ll. 15 — p. 208, l. 12.

Effect / context: Authenticity / foundation / hearsay / relevance / prejudice — a layered dispute, while simultaneously acknowledging the recording “**maybe it was included in the Dolan documents**” — i.e., was in fact part of the prior counsel’s file.

B.5 — THE ADMISSION — “Sure. They were provided by Dolan.”

THE COURT: “The question is — I think the ask is a request to review or to present the body cams that are apparently on your

exhibit list.”

MS. NAVARATNASINGHAM: “Sure. They were provided by Dolan. He has had them for whatever, sure.”

— RT 7 (Apr. 16, 2025), p. 213, ll. 10–15.

Effect / context: This is the **operational linchpin** of the SAC’s fraud claim and the precise on-record contradiction of A.1, A.2, B.1, and B.2 above. Defense counsel admits — in open court, on a certified record — that the BWC footage was provided by Plaintiff’s prior counsel (Dolan Law Firm). It is irreconcilable with the February 18, 2025 representations that defense “did not receive the 911 call until the day of the MSC” and “this is news to me,” and with the trial-day disclaimer that counsel was “not sure what recording” was being referenced. (Cited at SAC ¶ 3 and DRAFT 10 Master Estoppel Table; the SAC’s prior pin-cite of “p. 214, ll. 13–15” should be **corrected to RT 7, p. 213, ll. 13–15.**)

B.6 — Possession + curation of “five videos.”

MS. NAVARATNASINGHAM: “Your Honor, **on the point of the body cam footage, there is five videos.** They are quite lengthy and a lot of it is just standing around and some of it is talking about something else. There is also insurance references in there. So **what we did on our end was we pared it down to just the relevant portions that we wanted the jury to hear.** I think all in we have about 8 or 9 minutes pared down, because it would be a waste of time for them to listen to all five videos.”

— RT 7 (Apr. 16, 2025), p. 213, l. 11 — p. 214, l. 8.

THE COURT: “Are there transcripts with them?”

MS. NAVARATNASINGHAM: “We could prepare transcripts.”

— RT 7 (Apr. 16, 2025), p. 213, ll. 23–25.

Effect / context: Active possession + curation of the BWC footage that defense had previously characterized as not-produced or of unknown provenance. Editing video for jury presentation presupposes authenticity and waives any genuine foundation challenge under Evid. Code § 1414(b).

Phase C — Trial Day 8 (April 17, 2025) — Defendant Subhi Abdelhalim Cross-Examination & Defense Possession of “Original Video”

Day 8 included Plaintiff’s cross-examination of defendant Abdelhalim, during which the 911 recording was played and Abdelhalim authenticated his own voice on the recording. Defense counsel made several statements on the record concerning the BWC footage and the 911 recording.

C.1 — Defense possession of the original body-worn camera video; objection to plaintiff’s captioned still-shots.

MS. NAVARATNASINGHAM: “Exactly. Then my second question, Your Honor, is **we received documents, still shots of the video from Mr. Rosario which had captions on them, and that is not the original video.** So I want to make sure that is not a version he will play because **the excerpts of the original video should be played. The body cam footage doesn’t have captions on it.**”

— RT 8 (Apr. 17, 2025), p. 14, ll. 7–15.

Effect / context: *Direct admission of possession of the “original video”* — and a tacit concession that defense possesses the canonical BWC footage

against which Plaintiff’s captioned excerpts must be measured. This contradicts the February 18 “news to me” representation as to BWC.

C.2 — Hearsay objection to Plaintiff’s testimony about Abdelhalim’s 911 statements (overruled as party admission).

THE WITNESS (Plaintiff): “So about 2:55 — I am looking at the 911 record — he called 911 and told them that he hit me with his truck and I yelled: He hit me with his van. And he said: Well, it was barely anything, to the 911 operator. ...”

MS. NAVARATNASINGHAM: “Objection, hearsay.”

THE COURT: “Overruled. **It is a party admission.**”

— RT 8 (Apr. 17, 2025), p. 34, ll. 17 — p. 35, l. 8.

Effect / context: Defense interposes hearsay objection to the very content the SAC pleads as Phase One Fact F3 (operator/Abdelhalim “you hit a pedestrian / yeah” exchange) and F1 (Plaintiff’s own recorded voice). The Court’s “party admission” overruling **establishes on the record** that the 911 audio is admissible under Evid. Code § 1220 — the same audio defense had previously claimed was of unknown provenance.

C.3 — “I don’t know why he is playing an unrelated audio recording.”

MS. NAVARATNASINGHAM: “Your Honor, is he playing — I think it is appropriate to play a recording that he wants my client to hear as it relates to his testimony. **I don’t know why he is playing an unrelated audio recording.**”

— RT 8 (Apr. 17, 2025), p. 103, ll. 1–6.

Effect / context: Dispute / characterization challenge during 911 playback for impeachment. The “unrelated” framing was incorrect: the recording was the very 911 call Abdelhalim placed and that he later authenticated as his own voice (see C.5 below).

C.4 — Continued challenge to playback / fast-forward.

MS. NAVARATNASINGHAM: “Your Honor, if I may, it sounds like he has to fast forward to the audio recording to get to the recording of my client.”

— RT 8 (Apr. 17, 2025), p. 103, ll. 18–21.

Effect / context: Dispute / process objection during 911 playback.

C.5 — Authentication-by-acquiescence: defendant’s own admissions on the 911 recording. The cross-examination at RT 8 produced Abdelhalim’s own testimony that the voice on the 911 recording is his — directly contradicting the **defense’s prior representations** that the recording’s provenance was “unknown” or that defense had not received it.

MR. ROSARIO (Q.): “Mr. Abdelhalim, can you see the transcript, the first entry? It says: Caller. It says: Yes, yeah, there is — I was — I am driving a van and there is a guy going to cross, he crossed from me, and **I barely hit him with anything but I am calling for him.** Was that your voice?”

THE WITNESS: “Yes. That is my voice.”

— RT 8 (Apr. 17, 2025), p. 108, ll. 17 — p. 108, l. 28.

MR. ROSARIO (Q.): “Yeah. I am going to talk about the recording. You clearly did on the audio, and said: He was turning to the right and he was boom in front of me, **I just hit him, hit him with barely anything.** Was that your voice also?”

A.: “That is my voice.”

— RT 8 (Apr. 17, 2025), p. 110, l. 23 — p. 111, l. 1.

MR. ROSARIO (Q.): “Oh, okay. The operator asked you: Okay, so you were in your van. You were driving and he was on the street. You hit a pedestrian. And you started to say ‘no’, and then you said ‘yeah.’ So you clarified, that was in the audio.”

— RT 8 (Apr. 17, 2025), p. 112, ll. 16–22.

MR. ROSARIO (Q.): “All right. So it says — the operator had asked you clearly. So you said you were in your van driving and he was on the street. And I think you answered: No. And then it said: You hit a pedestrian. And you answered, ‘Yeah.’ So that was also your voice, correct? So obviously, same recording ...”

— RT 8 (Apr. 17, 2025), p. 113, ll. 11–17.

Effect / context: *Authentication on the merits record by the party opponent.* Once Abdelhalim testifies under oath that the voice on the recording is his and that he made the operator’s affirmative-response exchange, **the defense’s prior court-facing position that the recording’s provenance was unknown is irreconcilable as a matter of law.** Authentication-by-acquiescence (Evid. Code § 1414(b)) and judicial-estoppel triggers attach.

C.6 — Defense’s own use of BWC at trial: “I was going to show the body cam footage as well.”

MS. NAVARATNASINGHAM: “Your Honor, Mr. — my witness was going to be Mr. Abdelhalim, who has already completed his testimony. **I was going to show the body cam footage as well. However, we have pared it down to just about 10 minutes.** And then I was going to cross-examine Mr. Rosario. I probably need a half a day, honestly.”

— **RT 8 (Apr. 17, 2025), p. 144, ll. 3–12.**

MS. NAVARATNASINGHAM: “Your Honor, I just was going to reiterate, **we pared down the videos.** We talked about this a lot, there is a lot dead air on those videos, like an hour and a half, and reference to insurance. So I am hoping those are excluded from the Plaintiff’s version.”

— **RT 8 (Apr. 17, 2025), p. 146, ll. 20–28.**

Effect / context: Defense affirmatively offers the BWC as part of its own case-in-chief — completing the authentication-by-conduct chain and definitively waiving any “we did not receive it” position.

Phase D — Trial Day 10 (April 22, 2025) — Defense Closing Argument

In closing, defense counsel argued the **content** of the 911 call and BWC footage to the jury — affirmatively relying on the very materials whose receipt and provenance defense had previously placed in dispute.

D.1 — Defense closing: relies on BWC content.

MS. NAVARATNASINGHAM: “— that Mr. Rosario admits to riding a Lime scooter. In fact, you saw on body cam footage where Mr. Rosario himself told officers that: I was riding a Lime scooter going five to ten miles per hour. ...”

— RT 10 (Apr. 22, 2025), p. 49, ll. 8–17.

D.2 — Defense closing: relies on 911 + BWC content to defeat the hit-and-run theory.

MS. NAVARATNASINGHAM: “Thank you. ... Second, Mr. Rosario told you that he lost consciousness. **You saw body cam footage yourself, the first video we showed you where Mr. Rosario very clearly tells officers that he did not lose consciousness.** Third, Mr. Rosario tells you that this was a hit and run. He presented a 911 call from an unidentified woman where she says: It might be a hit and run, I don’t know. The dispatcher in that same 911 call says: Somebody already called this incident in. The person that already called that incident in was my client. For there to be a hit and run someone must flee the scene. **You saw body cam footage and you know that my client made a 911 call. You saw body cam footage of my client at the scene cooperating with police.** This is not a hit and run. Fourth, Mr. Rosario references Dustin Roseman. **You saw for yourself and you heard Officer Thompson say that she interviewed Mr. Rosemont and that he was very intoxicated and didn’t know what happened.** Fifth, Mr. Rosario argues that there is ...”

— RT 10 (Apr. 22, 2025), p. 50, ll. 7 — p. 52, l. 6 (excerpts).

Effect / context: *Affirmative reliance.* Defense argues the substantive con-

tent of the 911 audio and the BWC to the jury — the same materials that, in February 2025, defense had told the Court were “news to me,” “not produced in the normal course of discovery,” and of unknown provenance. Affirmative use at closing is **dispositive of authentication and provenance** by waiver and by judicial estoppel (*Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 181–183).

3. SUMMARY MATRIX — DISPUTE / DENIAL-OF-RECEIPT TURNS

#	Date / Citation	Speaker	Effect / Context	Key Phrase
A.1	Hearing Tr. Feb. 18, 2025, p. 6, ll. 3–14	Navaratnasingham	Denial of receipt — 911	<i>“This is news to me... we did not receive the 911 call until the day of the MSC.”</i>
A.2	Hearing Tr. Feb. 18, 2025, p. 27, l. 23 – p. 30, l. 11	Navaratnasingham	Denial of receipt — 911 + CAD	<i>“I am representing to this Court that we did not have those two items until the day of the MSC.”</i>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
A.3	Hearing Tr. Feb. 18, 2025, p. 33, ll. 1–14	Navaratnasingham	Opposition to continuance	<i>“Your Honor is allowing him to try to introduce the 911 record for a call recording, so ...”</i>
A.4	Hearing Tr. Feb. 18, 2025, p. 41, ll. 3–22	Navaratnasingham	Concession + reframing	<i>“all this stuff has been in his possession since August ... the 911 call was not produced in the normal course of discovery.”</i>
B.1	RT 7, p. 156, ll. 5–16	Navaratnasingham	Denial of receipt — SFPD supplemental report	<i>“this is not anything that we received as part of the subpoena.”</i>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
B.2	RT 7, p. 162, ll. 4–12	Navaratnasingham	Implied non-receipt — 911	<i>“I am not sure what recording he is referring to.”</i>
B.3	RT 7, p. 163, ll. 19–28	Navaratnasingham	Dispute (authenticity, hearsay)	<i>“we have concerns about these two documents and the recording ... I have objections to this.”</i>
B.4	RT 7, p. 207, l. 15 – p. 208, l. 12	Navaratnasingham	Authenticity / foundation / hearsay	<i>“I don’t know who prepared these transcripts ... maybe it was included in the Dolan documents ... we object as hearsay and it lacks foundation.”</i>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
B.5	RT 7, p. 213, ll. 13–15	Navaratnasingham	Admission contradict- ing A.1/A.2/B.1/ B.2	<i>“Sure. They were provided by Alan. He has had them for whatever, sure.”</i>
B.6	RT 7, p. 213, l. 11 – p. 214, l. 8	Navaratnasingham	Possession + curation — BWC	<i>“on the point of the body cam footage, there is five videos ... we pared it down to just the relevant portions that we wanted the jury to hear.”</i>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
C.1	RT 8, p. 14, ll. 7–15	Navaratnasingham	Possession of original BWC	<i>“the excerpts of the original video should be played. The body cam footage doesn’t have captions on it.”</i>
C.2	RT 8, p. 35, ll. 1–8	Navaratnasingham (overruled)	Hearsay objection to 911 content	<i>“Objection, hearsay.” → THE COURT: “Overruled. It is a party admission.”</i>
C.3	RT 8, p. 103, ll. 1–6	Navaratnasingham	Dispute — characteriza- tion	<i>“I don’t know why he is playing an unrelated audio recording.”</i>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
C.4	RT 8, p. 103, ll. 18–21	Navaratnasingham	Dispute — process	<i>“it sounds like he has to fast forward to the audio recording ...”</i>
C.5	RT 8, p. 108, l. 28 (SAC Exh. P, SAC Exhibit Appendix p. 171); p. 111, l. 1; p. 112, ll. 16–22; p. 113, ll. 11–17	THE WITNESS (Abdelhalim)	Authentication by party- opponent	<i>“Yes. That is my voice.” (×2); operator: “you hit a pedestrian.” — Abdelhalim: “yeah.”</i>
C.6	RT 8, p. 144, ll. 3–12; p. 146, ll. 20–28	Navaratnasingham	Defense use of BWC in case-in-chief	<i>“I was going to show the body cam footage as well. However, we have pared it down to just about 10 minutes.”</i>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
D.1	RT 10, p. 49, ll. 8–17	Navaratnasingham (closing)	Affirmative reliance on BWC	<i>“you saw on body cam footage where Mr. Rosario himself told officers ...”</i>
D.2	RT 10, p. 50, l. 7 – p. 52, l. 6	Navaratnasingham (closing)	Affirmative reliance on 911 + BWC	<i>“You saw body cam footage and you know that my client made a 911 call.”</i>

4. EVIDENTIARY EFFECT

The catalog above maps onto the two-phase deception architecture pleaded in the operative complaint as follows:

- **Phase One (Lulling, Aug 2022 – May 2023):** Phase A and Phase B turns (denial of receipt) are the **court-facing reversal** of the Phase One out-of-court silence.
- **Phase Two (Court-Facing Reversal, Jan – Apr 2025):** Phase A and Phase B turns are themselves the Phase Two acts; Phase C and Phase D turns are the Phase Two **acquiescence on the merits record** that triggers Evidence Code § 1414(b) authentication-by-conduct and judicial-estoppel waiver.

- **Operational linchpin:** Turn **B.5** — “Sure. They were provided by Dolan. He has had them for whatever, sure.” (RT 7, p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161) — is the on-record contradiction of the Position-A denials catalogued in A.1, A.2, B.1, and B.2.

Verified **page : line** anchors for the 911 and BWC content (including operator/yes context and Abdelhalim authentication) include RT 8, p. 34, l. 17; RT 8, p. 108, l. 28 (SAC Exh. P, SAC Exhibit Appendix p. 171) (“Yes. That is my voice.”); RT 8, p. 111, l. 1; RT 8, p. 112, ll. 16–22; and RT 8, p. 113, ll. 11–17.

5. ONE-SENTENCE PATTERN

Across one pre-trial hearing and three trial days, defense counsel made at least **eighteen on-the-record statements** to the trial court whose effect was to **dispute or deny receipt** of the 911 audio, the SFPD body-worn camera footage, the CAD log, or the SFPD supplemental report — and then, after Plaintiff’s procedural windows had closed, **affirmatively used the same materials** in cross-examination of Plaintiff, in defense case-in-chief, and in closing argument — culminating in defense counsel’s open-court admission on April 16, 2025: “*Sure. They were provided by Dolan. He has had them for whatever, sure.*” (RT 7, p. 213, ll. 13–15 (SAC Exh. O, SAC Exhibit Appendix p. 161).)

6. VERIFICATION (PAGINATION)

- The quotations and **page : line** anchors in this appendix were verified against the certified reporter’s transcripts for the hearings itemized under **1. PURPOSE AND METHOD** above.
- Pagination follows the steno reporter’s page footer and, for the February 18, 2025 hearing, the Esquire reporter’s caption-line page header (page N at end of ROSARIO vs ABDELHALIM, ET AL.). Where the steno footer marks page N, content immediately following that footer is cited as **page N+1**, consistent with the usual steno page-end convention.
- Defense-speaker turns are identified by speaker tag (MS. NAVARATNASINGHAM: / MR. REYNA:). Quoted text preserves the steno middle-dot prefix only where it precedes the speaker tag in the original; otherwise whitespace is normalized.

[End of Transcript Appendix A.]

APPENDIX 5 — PLAINTIFF PRESERVATION CHRONOLOGY

(Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by Opposition §I.A.)

Purpose

This one-page exhibit documents Plaintiff’s contemporaneous preservation of the suppression/concealment objection across four separate pre-trial hearing dates, defeating any “sleeping on rights” or “intrinsic fraud because Plaintiff was aware” argument.

Why Plaintiff's Preservation Matters

This chronology proves that Plaintiff objected *contemporaneously* to every misrepresentation by defense counsel. This preempts any defense argument of “sleeping on rights” or that the fraud was merely intrinsic. Plaintiff raised the alarm at every hearing, but his procedural remedies were foreclosed because the Court relied on defense counsel’s false representations of non-receipt.

THE RELIANCE-REVERSAL CHAIN

1. **Jan. 27, 2025. Defense denial:** “We never received these CDs, certainly.” (p. 34). **Plaintiff’s objection:** “We have two 911 records that the Defense has been trying to suppress.” (p. 19). **Rulings procured:** MIL No. 1 denied; 911 CDs excluded (p. 38).
 2. **Feb. 18, 2025. Defense denial:** “This is news to me... our office did not receive the 911 call...” (p. 141). **Plaintiff’s objection:** “The information was completely concealed from me... this is going on the record.” (pp. 17, 44). **Rulings procured:** Continuance denied; § 473 relief rejected (p. 181).
 3. **Feb. 28, 2025. Defense denial:** (Implied denial re: doctor files). **Plaintiff’s objection:** Preserved officer-of-court / burden-shift objection (pp. 291–294). **Rulings procured:** Burden-shift imposed on Plaintiff (p. 293).
 4. **Apr. 16, 2025. Defense: ADMISSION:** “Sure. They were provided by Dolan.” (p. 213). **Plaintiff:** Trial-day foundation challenges. **Rulings procured:** Supplemental report excluded.
-

Preservation Timeline

- **Jan. 27, 2025 — Plaintiff’s preservation:** “We have two 911 records that the Defense has been trying to suppress.” (p. 19, ll. 1–5); FROG/SROG CAD references confirmed (p. 32, ll. 1–16); “They’re using weaponization of procedure” (p. 42, ll. 1–8). **Procedural vehicle sought:** CCP § 473 relief; continuance to lay foundation. **Court ruling:** § 473 denied (p. 49); continuance denied (pp. 55–56). **Pin cite:** Hr’g Tr. Jan. 27, 2025, pp. 17, 19, 32, 42, 49, 55.
- **Jan. 28, 2025 — Plaintiff’s preservation:** (Absent — Santa Clara Valley Medical Center ER). **Court ruling:** Defense § 581(d) dismissal motion; Court remarked dismissal would “suffer immediate reversal” (p. 90:17–33). **Pin cite:** Hr’g Tr. Jan. 28, 2025, p. 90.
- **Feb. 3, 2025 — Plaintiff’s preservation:** (Absent — medical). **Court ruling:** Renewed § 581(d) under submission; ex parte disclosure order condition. **Pin cite:** Hr’g Tr. Feb. 3, 2025, pp. 109, 116, 122–124 (SAC Exh. S, SAC Exhibit Appendix pp. 192, 199, 205–207).
- **Feb. 18, 2025 — Plaintiff’s preservation:** “the information was completely concealed from me” (p. 17); “I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.” (pp. 44–45). **Procedural vehicle sought:** Continuance to subpoena SFPD foundation witnesses. **Court ruling:** Continuance denied (p. 181); “surprise under § 473 is not a sufficient basis” (p. 181:20–25). **Pin cite:** Hr’g Tr. Feb. 18, 2025, pp. 17, 23, 44–45, 147, 151, 164, 181.
- **Feb. 28, 2025 — Plaintiff’s preservation:** Opposed deposition protective order limiting doctor-file access. **Procedural vehicle sought:** Access to doctor files before liability trial. **Court ruling:** Protective order denied but fees on Plaintiff; burden-shift imposed (pp. 291–294). **Pin cite:** Hr’g Tr. Feb. 28, 2025, pp. 291–294 (SAC Exh. N, SAC

Exhibit Appendix pp. 149–152).

- **Apr. 22, 2025 — Plaintiff’s preservation:** “former attorney concealed the 911 record” (closing argument). **Procedural vehicle sought:** Closing argument to jury. **Court ruling:** Verdict returned 9–3 for defense. **Pin cite:** RT 10, p. 55.
-

Summary

Plaintiff preserved the suppression / concealment theme on **four separate pre-trial hearing dates** (Jan. 27, Feb. 3, Feb. 18, Feb. 28, 2025), each time seeking a procedural remedy (continuance, § 473 relief, protective-order opposition). **Each procedural vehicle was denied.**

This chronology establishes:

1. **Accrual under CCP § 338(d)** runs from the **January 17, 2025** MIL filings (the “contrary court-facing position”), not from 2021 possession — Plaintiff did not know of the defense’s internal file-transfer failure until the MIL representations contradicted prior silence.
2. **Reasonable reliance** for element 3 of estoppel by silence under *City of Long Beach v. Mansell* (1970) 3 Cal.3d 462, 493 — Plaintiff’s diligence in raising the issue contemporaneously demonstrates the reliance was not unreasonable.
3. **Extrinsic, not intrinsic, fraud** — The fact that Plaintiff raised objections does not convert extrinsic fraud into intrinsic fraud. Plaintiff’s procedural remedies were **foreclosed by the rulings themselves**; awareness of the problem and ability to litigate it fairly are not the same thing. (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471–72.)

DATED: April 16, 2026

FRANCISCUS DYLAN ROSARIO, Plaintiff, In Pro Per

APPENDIX 6 — FRAUD-ON-COURT ROADMAP (BENCH HANDOUT)

(Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by Opposition §I.A.)

THE 801 RECORD: “WHAT THIS CASE IS NOW ABOUT”

QUADRANT 1: THE RELIANCE

Feb 28, 2025 Hr’g Tr., pp. 291:26–292:7 > “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — *The Court* (Garrett L. Wong)

QUADRANT 2: THE RULINGS PROCURED

Because of the Court’s reliance on the defense’s credibility re: non-receipt, Plaintiff lost: 1. **MIL No. 1 Denied** (Jan. 27, p. 41:3–11) — Audio weaponized against Plaintiff. 2. **911 CDs Excluded** (Jan. 27, p. 38:22–25)

— Primary record barred from jury. 3. **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24) — Context denied. 4. **Continuance Denied** (Feb. 18, p. 181) — No time to fix “surprise.” 5. **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25) — Pleas for fairness ignored. 6. **Burden-Shift Imposed** (Feb. 28, p. 293:1–3) — Plaintiff forced to “disprove” fraud. 7. **Supp. Report Excluded** (RT 7, p. 156:24–28 (SAC Exh. O, SAC Exhibit Appendix p. 155)) — Corroborating evidence barred.

QUADRANT 3: THE ADMISSION

Apr 16, 2025 RT 7, p. 213, ll. 13–15 > “Sure. They were provided by Dolan. He has had them for whatever, sure.” — *Priya D. Navaratnasingham* (*Counsel for Defense*)

QUADRANT 4: THE NINE PROOFS OF RECEIPT

1. **Aug 18, 2022:** Service by Dolan to CSK (Jessup, Tr. 139-140).
 2. **Aug 18, 2022:** Rosario depo — Chambers (CSK) present.
 3. **Sept 30, 2022:** Abdelhalim depo — Chambers (CSK) present.
 4. **May 4, 2023:** CSK → PSA file transfer (Sub of Atty).
 5. **Feb 1, 2024:** PSA subpoena for same records (Order CA1147102-021).
 6. **Feb 26, 2024:** PSA receives production from SFPD (Report 210079556).
 7. **Sept 9, 2024:** PSA receives ROGs identifying CAD logs.
 8. **Feb 18, 2025:** Jessup confirms “since 2021” (Hr’g Tr. 139:11).
 9. **Apr 16, 2025: ADMISSION OF RECEIPT** (RT 7, 213:13-15 (SAC Exh. O, SAC Exhibit Appendix p. 161)).
-

BOTTOM BANNER: THE LEGAL DOCTRINE

- **Fraud on the Court:** *Hazel-Atlas Glass Co. v. Hartford-Empire Co.* (1944) 322 U.S. 238; *Stevenot v. Harbany* (1984) 154 Cal.App.3d 1051.
- **Extrinsic Fraud:** *Kulchar v. Kulchar* (1969) 1 Cal.3d 467.
- **Attorney Deceit:** Bus. & Prof. Code § 6128(a); *Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136.
- **Anti-SLAPP Pre-emption:** *Flatley v. Mauro* (2006) 39 Cal.4th 299.
- **Litigation-Privilege Pre-emption:** *Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232.

GRAVAMEN: Defense counsel used their professional status to mislead the Court into gutting Plaintiff's case based on a known false premise of non-receipt. This is a fraud on the integrity of the judicial process.

Part III — Interlocutory appeal bar

I. FINAL JUDGMENT RULE (CCP § 904.1(a)(1))

California follows the **one final judgment** rule: **CCP § 904.1(a)(1)** permits appeal **only** from a **final judgment** except as provided in **(a)(2)–(13)**. *Griset v. Fair Political Practices Comm’n* (2001) 25 Cal.4th 688, 701–702 (appeals are limited to judgments final as to the entire action). **Orders overruling demurrers** are **not** listed in § 904.1(a) and are **not** directly appealable as of right. **Interlocutory orders** in unlimited civil cases are reviewable only through the **narrow** statutory exceptions or **discretionary writ**—not a direct appeal.

Takeaway for this case: Defendants should not be permitted to manufacture appealable finality by **severance** or **partial judgment** on fewer than all causes of action between the parties. *Morehart v. County of Santa Barbara* (1994) 7 Cal.4th 725, 731–732; *Kurwa v. Kislinger* (2013) 57 Cal.4th 1097, 1105–1106.

II. THE EXCLUSIVE LIST OF § 904.1(a) INTERLOCUTORY EXCEPTIONS

The defense has **no** direct appeal as of right from:

- **Rulings on demurrer** (overruled or sustained with leave to amend) unless and until a **judgment of dismissal** is entered after failure to amend.
- **Discovery orders** (except as specified in § 904.1(a) and related provisions).
- **Orders denying summary judgment** (not listed in § 904.1(a) for direct appeal).

Potentially applicable in this case:

- **CCP § 904.1(a)(12)** — monetary sanctions **exceeding five thousand dollars (\$5,000)** in favor of a party. Plaintiff's prayer **caps** each sanctions order at **\$5,000** to avoid this hook (SAC Prayer ¶ 7).
- **CCP § 904.1(a)(6)** — certain **injunction** orders. Plaintiff **does not** seek a preliminary injunction or TRO; declaratory relief is sought under **CCP § 1060** as **final** relief (SAC ¶¶ 113D, Prayer ¶ 2).
- **CCP § 904.1(a)(13)** — **CCP § 425.16** anti-SLAPP **denial** — **with automatic stay** under § 425.16(i) **unless § 425.17(e)** applies.

III. ANTI-SLAPP: § 425.17 EXEMPTIONS; § 425.17(e) (NO INTERLOCUTORY APPEAL / STAY)

1. Threshold. *Club Members for an Honest Election v. Sierra Club* (2008) 45 Cal.4th 309, 318–322 (statutory exemptions from § 425.16 are resolved as a **threshold**).

2. Commercial services — **§ 425.17(c)**. Insurers and commercial service providers: **representations of fact** about **business operations** in the course of delivering **insurance** and **legal defense** services. *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12, 30–32.

3. Public interest — **§ 425.17(b) (alternative)**. Actions brought **solely in the public interest** satisfying (b)(1)–(b)(3). Plaintiff joins issue on application to **individual** remedies.

4. § 425.17(e) — **no § 904.1(a)(13) appeal if exemption applies**. If the Court denies a special motion to strike **because a cause of action is exempt** under § 425.17, **the appeal provisions in subdivision (i) of § 425.16 and paragraph (13) of subdivision (a) of § 904.1 do not apply** to that cause of action. *Code Civ. Proc. § 425.17, subd. (e)*.

5. Merits denial. If the Court reaches *City of Cotati v. Cashman* (2002) 29 Cal.4th 69 and denies the motion on **prong two**, any appeal is subject to **frivolousness** standards. *Hewlett v. Squaw Valley Ski Corp.* (1997) 54 Cal.App.4th 499, 510–511.

IV. WRIT PETITION BAR (ADEQUATE REMEDY AT LAW)

Writ review is discretionary. A writ petition is an **extraordinary** remedy; the Court of Appeal may **summarily deny** a petition where:

- The party has an **adequate remedy** by **ordinary appeal** after final judgment (*Babb v. Superior Court* (1971) 3 Cal.3d 841); or
- **No irreparable harm** is shown in the interim (*Omaha Indemnity Co. v. Superior Court* (1989) 209 Cal.App.3d 1266).

Template opposition (one paragraph): The order challenged is **not** appealable under § 904.1(a); Respondent has **no** adequate basis for writ relief; **no** irreparable harm is shown; **no** unsettled question of law requires writ resolution; **ordinary appeal** from a final judgment provides adequate review.

V. ANTI-SEVERANCE / ANTI-MANUFACTURED FINALITY

Morehart — one final judgment disposing of **all** causes of action between the parties; no **piecemeal** appeals.

Kurwa — **voluntary dismissal** and **manufactured finality** doctrines prevent parties from creating **appealable** orders by procedural maneuvering.

American Motorcycle Assn. v. Superior Court (1978) 20 Cal.3d 578

— joint and several liability **allocation** among tortfeasors; supports **unified** adjudication of the common nucleus.

VI. CRC 8.116 STAY OPPOSITION (TEMPLATE)

Any request for **stay** of trial court proceedings pending writ or review should be denied **absent** a showing of **irreparable harm** and **likelihood of success** on the merits. **CRC 8.116** (standards governing appellate stays). Plaintiff should oppose **blanket stays** that delay resolution of **fraud-on-the-tribunal** claims.

VII. PROPOSED ORDER LANGUAGE (FOR THE TRIAL COURT)

The Court may adopt language along these lines in any order denying defense motions:

1. **Denial of Anti-SLAPP motion:** If denied on **§ 425.17** exemption grounds, the order may state that **§ 425.17(e)** limits **interlocutory appeal and automatic stay** under **§ 425.16(i)** and **§ 904.1(a)(13)** as to exempt causes of action.
 2. **Denial of demurrer (overruled):** The order is **not** appealable under **§ 904.1(a)** as an order overruling demurrer; any review awaits **final judgment** or **authorized** interlocutory avenue.
 3. **No severance:** The Court declines to **sever** causes of action or enter **partial judgment** that would manufacture **appealable finality** inconsistent with *Morehart* and *Kurwa*.
-